

Jharkhand Juvenile Justice (Care and Protection of Children) Rules, 2017

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State of Jharkhand - Act

Jharkhand Juvenile Justice (Care and Protection of Children) Rules, 2017

JHARKHAND

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Jharkhand Juvenile Justice (Care and Protection of Children) Rules, 2017

Rule JHARKHAND-JUVENILE-JUSTICE-CARE-AND-PROTECTION-OF-CHILDREN-RULES-2017 of 2017

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Jharkhand Juvenile Justice (Care and Protection of Children) Rules, 2017

Published vide Notification No. M.S./ICPS-490/2016-1790, dated 13.6.2017

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No. - M.S./ICPS-490/2016-1790. - In exercise of the powers conferred by the provision to sub-section (1) of section 110 of the Juvenile Justice (Care and Protection of Children) Act, 2015 (

2 of 2016

), the State Government hereby makes the following state rules, namely:-

Chapter -I Preliminary

1.

Short title and commencement.

(1)

These rules may be called the Jharkhand Juvenile Justice (Care and Protection of Children) Rules, 2017.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these model rules, unless the context otherwise requires,-

(i)

"Act" means the Juvenile Justice (Care and Protection of Children) Act, 2015 (2 of 2016

);

(ii)

"Authority" means the Central Adoption Resource Authority constituted under section 68 of the Act;

(iii)

"Case Worker" means a representative from a registered voluntary or non governmental organisation who shall accompany the child to the Board or the Committee and may perform such tasks as may be assigned to him by the Board or the Committee;

(iv)

"Child Adoption Resource Information and Guidance System" means an online system for facilitating and monitoring the adoption programme;

(v)

"Child Study Report" means the report which contains details about the child, such as his date of birth and social background;

(vi)

"community service" means service rendered by children in conflict with law who are above the age of fourteen years and includes activities like maintaining a park, serving the elderly, helping at a local hospital or nursing home, serving disabled children, serving as traffic volunteers etc.

(vii)

"form" means the forms annexed to these rules;

(viii)

"Home Study Report" means a report containing details of prospective adoptive parents or foster parents, and shall include social and economic status, family background, description of home and atmosphere, and health status;

(ix)

"individual care plan" is a comprehensive development plan for a child based on age and gender specific needs and case history of the child, prepared in consultation with the child, in order to restore the child's self-esteem, dignity and self-worth and nurture him into a responsible citizen and accordingly the plan shall address the following, including but not limited to, needs of a child, namely:-

(a)

health and nutrition needs, including any special needs;

(b)

emotional and psychological needs;

(c)

educational and training needs;

(d)

leisure, creativity and play;

(e)

protection from all kinds of abuse, neglect and maltreatment;

(f)

restoration and follow up;

(g)

social mainstreaming;

(h)

life skill training.

(x)

"in country adoption" means adoption of a child by a citizen of India residing in India;

(xi)

"Medical Examination Report" means the report of a child given by a duly licensed physician;

(xii)

"Person-in-charge" means a person appointed for the management of the Child Care Institution;

(xiii)

"POCSO" means the Protection of Children from Sexual Offences Act, 2012 (32 of 2012);

(xiv)

"rehabilitation-cum-placement officer" means an officer designated in every Child Care Institution for the purpose of rehabilitation of children;

(xv)

"Selection Committee" means a committee constituted by the State Government under rule 87 of these rules;

(xvi)

"social background report" means the report of a child in conflict with law containing the background of the child prepared by the Child Welfare Police Officer;

(xvii)

"social investigation report" means the report of a child containing detailed information pertaining to the circumstances of the child, the situation of the child on economic, social, psycho-social and other relevant factors, and the recommendation thereon;

(xviii)

"Social worker" means a person with post graduate degree in Social Work or Sociology or Psychology or Child Development or a graduate with minimum seven years of experience in child education and development or protection issues, who is engaged by a Child Care Institution or authorised by District Child Protection Unit or State Child Protection Society or State Adoption Resource Agency or Central Adoption Resource Authority for preparing social investigation report or individual care plan of the child, child study report, home study report of prospective adoptive parent or foster parents, rendering post-adoption services, and performing any other functions as assigned to such person under the Act or these rules;

Explanation: - For the purposes of this definition, it is clarified that the qualifications of the social worker member of the Board shall be as under section 4 of the Act.

(xix)

"special educator" shall have the same meaning as assigned to it in the Protection of Children from Sexual Offences Rules, 2012;

(xx)

"State Child Protection Society" means a society constituted under section 106 of the Act;

(xxi)

"Disposal" in relation to proceedings by Child Welfare Committee means an order passed by the Child Welfare Committee under Section 36 (3) of the Act; however such disposal shall not be taken to imply closure of proceeding before the Committee.

(xxii)

"Final disposal" in relation to any proceeding by the Juvenile Justice Board means order passed under section 18 of the Act.

(xxiii)

"Inquiry" for the purpose of Section 5, 6, 12, 14, 16, 17, 18, 19 and 23 means the proceeding through which Board or the Children Court, as the case may be, makes decision regarding child's involvement in the alleged offence or otherwise. Such Inquiry starts from the date of first production of the child before the Board and concludes with Board or the Children Court, as the case may be, giving finding in this regard. Conclusion of such inquiry shall not be taken to imply

closure of proceedings before the Board or the Children Court, as the case may be.

(xxiv)

"Inquiry" for the purpose of Section 36 means the proceeding through which Child Welfare Committee takes a decision regarding restoration or rehabilitation of Child.

(xxv)

"Police Investigation Report" means a report filed before the Board or the Children Court, as the case may be, by the Child Welfare Police Officer on completion of police investigation of the offence within the given time frame in relation to the alleged involvement of child and shall be deemed to have same status and effect as a Police Report under Section 173 of Code of Criminal Procedure Code.

(xxvi)

"School" for the purpose of Section 94 is any school recognized by government not including playschool.

(2)

All words and expressions defined in the Act and used, but not defined in these rules, shall have the same meaning as assigned to them in the Act.

Chapter VII

Juvenile Justice Board

3.

Board.

- There shall be one or more Boards in each district to be constituted by the State Government through a notification in the Official Gazette.

4.

Composition of the Board.

(1)

The Board shall consist of a Metropolitan Magistrate or a Judicial Magistrate of First Class having at least three years experience to be designated as the Principal Magistrate of the Board and two social worker members, of whom one shall be a woman, forming a Bench.

(2)

The social worker members shall be appointed by the State Government on the recommendations of the Selection Committee constituted under these rules.

(3)

The social worker members shall not be less than thirty five years of age and not more than sixty years of age at the time of appointment and shall have a degree with at least seven years of experience of working with children in the field of education, health, protection or welfare activities, or should be a practicing professional with a degree in child psychology or psychiatry or sociology or in the field of law.

(4)

As far as possible, the two social worker members so selected for a Board shall be from different fields.

(5)

All members of the Board including the Principal Magistrate, shall be given induction training and sensitisation within a period of sixty days from the date of appointment.

5.

Term of Members of the Board.

(1)

The term of the social worker member of the Board shall not be more than for a period of three years from the date of appointment. In case the members are not appointed, the existing member shall continue to hold office until his/her successor assumes office or for an additional period of three months which ever earlier.

(2)

A social worker member of the Board shall be eligible for appointment of maximum of two terms subject to his performance in the previous term and recommendation by Selection Committee

(3)

The members may resign at any time, by giving one month's notice in writing to the State Government.

(4)

Any vacancy in the Board shall be filled by appointment of another person from the panel of names prepared by the Selection Committee.

6.

Sittings of the Board.

(1)

The Board shall hold its sittings in the premises of an observation home or at a place in proximity to the observation home or, at a suitable premise in any Child Care Institution meant for children in conflict with law run under the Act, and in no circumstances shall the Board operate from within any court or jail premises.

(2)

The Board shall sit when the case is in progress.

(3)

The Board shall ensure that only those person(s), in the presence of whom the child feels comfortable, are allowed to remain present during the sitting. Jharkhand Gazette (Extraordinary), Tuesday, 9th January, 2018

(4)

The Board shall hold its sittings in a child-friendly premises which shall not look like a court room in any manner and the sitting arrangement should be such to enable the Board to interact with the child face to face.

(5)

While communicating with the child, the Board shall use child friendly techniques through its conduct and shall adopt a child friendly attitude with regard to body language, facial expression, eye contact, intonation and volume of voice while addressing the child.

(6)

The Board shall not sit on a raised platform and there shall be no barriers, such as witness boxes or bars between the Board and the child.

(7)

The Board shall sit on all working days for a minimum of six hours commensurate with the working hours of a Magistrate Court, unless the case pendency is less in a particular district and the State Government issues an order in this regard, or the State Government may, by notification in the Official Gazette constitute more than one Board in a district after giving due consideration to the pendency of the cases, area or terrain of the district, population density or any other consideration.

(8)

When the Board is not sitting, a child in conflict with law may be produced before an individual member of the Board. For the said purpose, one member of the Board shall always be available or accessible to take cognizance of any matter of emergency and necessary directions required to deal with the emergency situation shall be given by such member to the Special Juvenile Police Unit or the local police of the district. The Principal Magistrate shall draw up a monthly duty roster of the members who shall be so available and accessible every day, including on Sundays and holidays. The roster shall be circulated in advance to all the police stations, the Chief Judicial Magistrate/ Chief Metropolitan Magistrate, the District Judge, the District Magistrate, the Committees, the District Child Protection Unit and the Special Juvenile Police Unit.

(9)

In case, Principal Magistrate is on leave, the Magistrate incharge should be a Judicial Magistrate First Class trained under JJ Act. In no case, any decision should be postponed or withheld when principal Magistrate is on leave and represented through incharge judicial Magistrate.

(10)

Principal Magistrate shall facilitate the functioning of social worker members of the Board so that they can exercise powers under the provisions of the Act or these Rules.

(11)

The social worker members of Board shall be paid remuneration as notified by state government from time to time.

(12)

The State Government shall provide support to Board which consist of -

(i)

Infrastructure: a well-furnished Board Room with electricity, light and fans, waiting room for children, separate rooms for

Principal Magistrate and Members, a record room, a room for Probation Officers, room for legal services advocates , counselling and guidance unit, waiting room for parents and visitors, safe drinking water facility and clean toilets;

(ii)

Furniture: i.e. chairs, tables, file cabinets, computer chairs etc. as per requirement for Board room, Chambers, offices;

(iii)

Information Technology based logistic: computer sets with printers, video conferencing facilities, photocopiers with scanner, telephone with internet broadband connection, television for the waiting hall; and

(13)

Provision of TA - TA should be given to the Board members on the official visits as per norms prescribed by the State Government for the purpose Jharkhand Gazette (Extraordinary), Tuesday, 6 9th January, 2018

(14)

No person shall be eligible for selection as a member of the Board, if he:

(i)

has any past record of violation of human rights or child rights;

(ii)

has been convicted of an offence involving moral turpitude, and such conviction has not been reversed or has not been granted full pardon in respect of such offence;

(iii)

has been removed or dismissed from service of the Central Government or a State Government or an undertaking or corporation owned or controlled by the Central Government or a State Government;

(iv)

has ever indulged in child abuse or employment of child labour or any other violation of human rights or immoral act; and

(v)

be holding such full-time occupation that may not allow her/him to give necessary time and attention to the work of the Committee as per the Act and the Rules.

7.

Functions of the Board.

(1)

The Board shall perform the following additional functions, namely:

(i)

whenever necessary, the Board shall provide a translator or interpreter or special educator who shall be paid not less than Rs.1500 per day and in case of translator, not exceeding Rs.100 per page. For the said purpose, the District Child Protection Unit shall maintain a panel of translators, interpreters and special educators who shall forward the same to the Board, the qualifications of the translator, interpreter and special educator shall be as prescribed under the POCSO Act, 2012 and rules framed there under;

(ii)

wherever required issue rehabilitation card in Form 14 to the child in conflict with law to monitor the progress made by the child;

(iii)

wherever required, pass appropriate orders for re-admission or continuation of the child in school where the child has been disallowed from continuing his education in a school on account of the pendency of the inquiry or the child having stayed in a Child Care Institution for any length of time;

(iv)

interact with Boards in other districts to facilitate speedy inquiry and disposal of cases through due process of law, including sending a child for the purpose of an inquiry or rehabilitation to a Board in another district or State;

(v)

inspect Child Care Institutions for children in conflict with law, issue directions in cases of any noticeable lapses, suggest improvements, seek compliance and recommend suitable action, including against any employee found in dereliction of duty to the District Child Protection Unit;

(vi)

maintain a suggestion box or grievance redressal box in the premises of the Board at a prominent place to encourage

inputs from children and adults alike which shall be operated by the nominee of the Principal Magistrate;

(vii)

ensure smooth functioning of Children's Committees in the Child Care Institutions for children in conflict with law, for realising children's participation in the affairs and management of such Child Care Institutions;

(viii)

review the Children's suggestion book at least once in a month;

(ix)

ensure that the Legal cum Probation Officer in the District Child Protection Unit and the State or District Legal Aid Services Authority extends free legal services to a child; and

(x)

deploy, if necessary, the services of student volunteers or non governmental organisation volunteers for para-legal and other tasks such as contacting the parents of child in conflict with law and collecting relevant social and rehabilitative information about the child.

(xi)

Take suitable action for dealing with unforeseen situations that may arise in the implementation of the Act and remove such difficulties in the best interest of the child;

(xii)

Take notice of violation of section 24 of the Act and pass appropriate directions to the person or authority causing or responsible for such violation and to ensure that the disqualification stands removed;

(xiii)

Principal Magistrate of the Board shall be deemed to be Registrar of Births under Registration of Births and Deaths Act, 1969 in relation to children under its jurisdiction and shall issue Birth certificated based on age determination carried out by the Board, if such Birth Certificate does not exist already. A copy of such birth certificate shall be kept in the record of Board and a copy shall be provided to the child. No fees shall be charged from the child for birth registration; Provided that State Government shall take necessary steps to establish linkages between Board and the Office of concerned Registrar of Births and Deaths in this regard within six months from such rules coming into force and may issue a procedure to be followed by all concerned.

(xiv)

On receipt of a written complaint by the Committee in respect of any offence having been committed against a child in need of care and protection, Board shall pass appropriate orders within 15 days from receipt of such written complaint and a copy of such order shall be sent to the Committee concerned for its information and record;

(xv)

Board, on its own motion or on oral or written request made by or on behalf of victim, may grant financial assistance or victim compensation, as may be the case, to be paid from the Juvenile Justice Fund or under any other scheme in force in this regard.

(xvi)

Every Board which has a jail situated in the area under its jurisdiction, shall at least once in a month carry out inspection of that jail/jails under Section 8(3)(m) of the Act. Such inspections shall be carried out in FORM prescribed for this purpose and within three days from such inspection, such form shall be submitted to the State Legal Services Authority. State Legal Services Authority shall verify the status of the cases mentioned in the FORM from the concerned court on whose orders the identified person has been kept in the Jail and if it is found that no age inquiry has been conducted by the concerned Court in the case, then it shall intimate the concerned court to carry out an age determination as per section 94 of the Act and if any person is then found to be a child on the date of commission of offence, then that case will be transferred by the Court concerned to the Board having jurisdiction over that case and the child shall be immediately ordered to be produced before the Board by jail authorities;

Chapter III

Procedure in Relation to Children in Conflict With Law

8.

Pre-Production action of Police and other Agencies.

(1)

No First Information Report shall be registered except where heinous offence is alleged to have been committed by the

child, or when such offence is alleged to have been committed jointly with adults. In all other matters, the Special Juvenile Police Unit or the Child Welfare Police Officer shall record the information regarding the offence alleged to have been committed by the child in the general daily diary followed by a social background report of the child in Form 1 and circumstances under which the child was apprehended, wherever applicable, and forward it to the Board before the first hearing:

Provided that the power to apprehend shall only be exercised with regard to heinous offences, unless it is in the best interest of the child. For all other cases involving petty and serious offences and cases where apprehending the child is not necessary in the interest of the child, the police or Special Juvenile Police Unit or Child Welfare Police Officer shall forward the information regarding the nature of offence alleged to be committed by the child along with his social background report in Form 1 to the Board and intimate the parents or guardian of the child as to when the child is to be produced for hearing before the Board.

(2)

Immediately conduct an investigation on the point of age of such child and may form an opinion about possibility of a person being a child based on physical appearance or any easily available documents which indicates age of such child. In case of doubt in age for borderline cases, Child Welfare Police Officer, will record the age in Form 47 and submit it to the Board.

(3)

take immediate action, as per law, against the alleged perpetrators, if the version of the child reveals that he has been subjected to any neglect/ exploitation/abuse/ill treatment by anyone;

(4)

When a child alleged to be in conflict with law is apprehended by the police, the police officer concerned shall place the child under the charge of the Special Juvenile Police Unit or the Child Welfare Police Officer, who shall immediately inform:

(i)

the parents or guardian of the child that the child has been apprehended along with the address of the Board where the child will be produced and the date and time when the parents or guardian need to be present before the Board;

(ii)

the Probation Officer concerned, that the child has been apprehended so as to enable him to obtain information regarding social background of the child and other material circumstances likely to be of assistance to the Board for conducting the inquiry; and

(iii)

a Child Welfare Officer or a Case Worker ,to accompany the Special Juvenile Police Unit or Child Welfare Police Officer while producing the child before the Board within twenty- four hours of his apprehension.

(5)

The police officer apprehending a child alleged to be in conflict with law shall:

(i)

not send the child to a police lock-up and not delay the child being transferred to the Child Welfare Police Officer from the nearest police station. The police officer may under sub-section (2) of section 12 of the Act send the person apprehended to an observation home only for such period till he is produced before the Board i.e. within twenty-four hours of his being apprehended and appropriate orders are obtained as per rule 9 of these rules;

(ii)

not hand-cuff, chain or otherwise fetter a child and shall not use any coercion or force on the child;

(iii)

inform the child promptly and directly of the charges levelled against him through his parent or guardian and if a First Information Report is registered, copy of the same shall be made available to the child or copy of the police report shall be given to the parent or guardian;

(iv)

provide appropriate medical assistance, assistance of interpreter or a special educator, or any other assistance which the child may require, as the case may be;

(v)

not compel the child to confess his guilt and he shall be interviewed only at the Special Juvenile Police Unit or at a

child-friendly premises or at a child friendly corner in the police station, which does not give the feel of a police station or of being under custodial interrogation. The parent or guardian, may be present during the interview of the child by the police;

(vi)

not ask the child to sign any statement; and

(vii)

inform the District Legal Services Authority for providing free legal aid to the child.

(6)

The Child Welfare Police Officer shall be in plain clothes and not in uniform.

(7)

The Child Welfare Police Officer shall record the social background of the child and circumstances of apprehending in every case of alleged involvement of the child in an offence in Form 1 which shall be forwarded to the Board forthwith. For gathering the best available information, it shall be necessary upon the Special Juvenile Police Unit or the Child Welfare Police Officer to contact the parent or guardian of the child.

(8)

A list of all designated Child Welfare Police Officers, Child Welfare Officers, Probation Officers, Para Legal Volunteers, District Legal Services Authorities and registered voluntary and non-governmental organisations in a district, Principal Magistrate and members of the Board, members of Special Juvenile Police Unit and Child line Services with contact details shall be prominently displayed in every police station.

(9)

When the child is released in a case where apprehending of the child is not warranted, the parents or guardians or a fit person in whose custody the child alleged to be in conflict with law is placed in the best interest of the child, shall furnish an undertaking on a nonjudicial paper in Form 2 to ensure their presence on the dates during inquiry or proceedings before the Board.

(10)

The State Government shall maintain a panel of voluntary or non-governmental organisations or persons who are in a position to provide the services of probation, counselling, case work and also associate with the Police or Special Juvenile Police Unit or the Child Welfare Police Officer, and have the requisite expertise to assist in physical production of the child before the Board within twenty-four hours and during pendency of the proceedings and the panel of such voluntary or non-governmental organisations or persons shall be forwarded to the Board.

(11)

The State Government shall provide funds to the police or Special Juvenile Police Unit or the Child Welfare Police Officer or Case Worker or person for the safety and protection of children and provision of food and basic amenities including travel cost and emergency medical care to the child apprehended or kept under their charge during the period such children are with them.

9.

Production of the child alleged to be in conflict with law before the Board.

(1)

When the child alleged to be in conflict with law is apprehended, he shall be produced before the Board within twenty-four hours of his being apprehended, along with a report explaining the reasons for the child being apprehended by the police.

(2)

On production of the child before the Board, the Board may pass orders as deemed necessary, including sending the child to an observation home or a place of safety or a fit facility or a fit person.

(3)

Where the child produced before the Board is covered under section 83 of the Act, including a child who has surrendered, the Board may, after due inquiry and being satisfied of the circumstances of the child, transfer the child to the Committee as a child in need of care and protection for necessary action, and or pass appropriate directions for rehabilitation, including orders for safe custody and protection of the child and transfer to a fit facility recognised for the purpose which shall have the capacity to provide appropriate protection, and consider transferring the child out of the district or out of the State to another State for the protection and safety of the child.

(4)

Where the child alleged to be in conflict with law has not been apprehended and the information in this regard is forwarded by the police or Special Juvenile Police Unit or Child Welfare Police Officer to the Board, the Board shall require the child to appear before it at the earliest so that measures for rehabilitation, where necessary, can be initiated, though the final report may be filed subsequently.

(5)

In case the Board is not sitting, the child alleged to be in conflict with law shall be produced before a single member of the Board under sub-section (2) of section 7 of the Act.

(6)

In case the child alleged to be in conflict with law cannot be produced before the Board or even a single member of the Board due to child being apprehended during odd hours or distance, the child shall be kept by the Child Welfare Police Officer in the Observation Home in accordance with rule 69 D of these rules or in a fit facility and the child shall be produced before the Board thereafter, within twenty-four hours of apprehending the child.

(7)

In case the Board is not sitting, the child alleged to be in conflict with law shall be produced before a single member of the Board under sub-section (2) of section 7 of the Act, who shall be empowered to exercise all the powers of the Board, including bail and pass orders accordingly.

(8)

When a child is produced before an individual member of the Board, and an order is obtained, such order shall be ratified by the Board in its next meeting.

10.

Post-production processes by the Board.

(1)

On production of the child before the Board, the report containing the social background of the child, circumstances of apprehending the child and offence alleged to have been committed by the child as provided by the officers, individuals, agencies producing the child shall be reviewed by the Board and the Board may pass such orders in relation to the child as it deems fit, including orders under sections 17 and 18 of the Act, namely:

(i)

disposing of the case, if on the consideration of the documents and record submitted at the time of his first appearance, his being in conflict with law appears to be unfounded or where the child is alleged to be involved in petty offences;

(ii)

referring the child to the Committee where it appears to the Board that the child is in need of care and protection;

(iii)

releasing the child in the supervision or custody of fit persons or fit institutions or Probation Officers as the case may be, through an order in Form 3, with a direction to appear or present a child for an inquiry on the next date; and

(iv)

directing the child to be kept in the Child Care Institution, as appropriate, if necessary, pending inquiry as per order in Form 4.

(2)

In all cases of release pending inquiry, the Board shall notify the next date of hearing, not later than fifteen days of the first summary inquiry and also seek social investigation report from the Probation Officer, or in case a Probation Officer is not available the Child Welfare Officer or social worker concerned through an order in Form 5.

(3)

When the child alleged to be in conflict with law, after being admitted to bail, fails to appear before the Board, on the date fixed for hearing, and no application is moved for exemption on his behalf or there is not sufficient reason for granting him exemption, the Board shall, issue to the Child Welfare Police Officer and the Person-in-charge of the Police Station directions for the production of the child.

(4)

If the Child Welfare Police Officer fails to produce the child before the Board even after the issuance of the directions for production of the child, the Board shall instead of issuing process under section 82 of the Code of Criminal Procedure, 1973 pass orders as appropriate under section 26 of the Act.

(5)

In cases of heinous offences alleged to have been committed by a child, who has completed the age of sixteen years, the Child Welfare Police Officer shall produce the statement of witnesses recorded by him and other documents prepared during the course of investigation within a period of one month from the date of first production of the child before the Board, a copy of which shall also be given to the child or parent or guardian of the child.

(6)

In cases of petty or serious offences, the final report shall be filed before the Board at the earliest and in any case not beyond the period of two months from the date of information to the police, except in those cases where it was not reasonably known that the person involved in the offence was a child, in which case extension of time may be granted by the Board for filing the final report.

(7)

When witnesses are produced for examination in an inquiry relating to a child alleged to be in conflict with law, the Board shall ensure that the inquiry is not conducted in the spirit of strict adversarial proceedings and it shall use the powers conferred by section 165 of the Indian Evidence Act, 1872 (1 of 1872) so as to interrogate the child and proceed with the presumptions in favour of the child.

(8)

While examining a child alleged to be in conflict with law and recording his statement during the inquiry under section 14 of the Act, the Board shall address the child in a child friendly manner in order to put the child at ease and to encourage him to state the facts and circumstances without any fear, not only in respect of the offence which has been alleged against the child, but also in respect of the home and social surroundings, and the influence or the offences to which the child might have been subjected to.

(9)

The Board shall take into account the report containing circumstances of apprehending the child and the offence alleged to have been committed by him and the social investigation report in Form 6 prepared by the Probation Officer or the voluntary or non governmental organisation, along with the evidence produced by the parties for arriving at a conclusion.

(10)

Benefit of Sec 167 (2) of CRPC Act should also be extended to the child.

10A.

Preliminary assessment into heinous offences by Board.

(1)

The Board shall in the first instance determine whether the child is of sixteen years of age or above; if not, it shall proceed as per provisions of section 14 of the Act.

(2)

For the purpose of conducting a preliminary assessment in case of heinous offences, the Board may take the assistance of psychologists or psycho-social workers or other experts who have experience of working with children in difficult circumstances. A panel of such experts may be made available by the District Child Protection Unit, whose assistance can be taken by the Board or could be accessed independently.

(3)

While making the preliminary assessment, the child shall be presumed to be innocent unless proved otherwise.

(4)

Where the Board, after preliminary assessment under section 15 of the Act, passes an order that there is a need for trial of the said child as an adult, it shall assign reasons for the same and the copy of the order shall be provided to the child forthwith.

(5)

The age of the child shall be determined by the Board, before it takes a final decision on the basis of the preliminary assessment as to whether the matter should be disposed of by it or transferred to the Children's Court.

(6)

The Board shall, before taking a decision in this regard, take into consideration the social investigation report in Form 6 prepared by the probation officer or the recognized voluntary or non-governmental organization.

(7)

For the purpose of conducting a preliminary assessment, the Board shall interact with the child alleged to be in conflict

with law as well as his family members, where available. The child may, in addition be represented through his counsel and the submissions on behalf of the child would be considered and recorded in the order in full detail.

(8)

The gravity of the offence by itself shall not be the determining factor for taking a decision based on the preliminary assessment.

(9)

While making the preliminary assessment, the Board shall be guided by the fundamental principle that the child in conflict with law is presumed to be innocent of any malafide or criminal intent up to the age of eighteen years and therefore must consider whether there is material available on record which could prima facie dispel the presumption.

(10)

The Board shall take into consideration the principle of best interest of the child and the objective of rehabilitation and reintegration of the child in the society.

(11)

The Board, while conducting a preliminary assessment, may consider:

(i)

whether the child also qualifies as a child in need of care and protection;

(ii)

whether the child has himself been a victim of any offence in the past;

(iii)

whether the child has had a history of abuse and exploitation;

(iv)

whether the unlawful conduct has been done for survival;

(v)

whether the alleged offence has been committed due to situational factors such as the child being put to extreme mental trauma and cruelty to compel him to commit an offence;

(vi)

whether the child had committed the offence under coercion or fear of mental or physical harm to himself or to some other person connected with him or her by blood or friendship or affinity;

(vii)

whether the alleged offence has been committed under the control of adults, or with an adult or the child has been used by a group of adults, and if so, the Board shall consider the aspect whether independent of the influence of the adults, the child may not have committed the offence;

(viii)

whether the child suffers from a mental illness or disorder;

(ix)

whether the child is prone to taking drugs or alcohol;

(x)

whether the child is under the influence of peer groups or associates with those who present risk of harm e.g. sexual offenders, drug peddlers etc or criminals;

(xi)

whether the child has been involved in violent incidents prior to the alleged offence;

(xii)

whether the child has been previously involved and held involved in any offence;

(xiii)

whether the child has suicidal tendencies or of harming himself; and

(xiv)

whether the child has been recruited or used or forced by any non-State, self-styled militant group or outfit declared as such by the Central or the State Government and whether such child was in a position to desist influences and pressures exerted by such actors in the given circumstances of his or her life etc.

(12)

Where the Board, after preliminary assessment under section 15 of the Act, passes an order that there is a need for trial

of the said child as an adult, it shall assign reasons for the same and the copy of the order shall be provided to the child on the same day.

(13)

The Board, at the time of passing the order to transfer the trial of the case to the Children's Court, shall specify the date and time and the court where the child is to appear/ be produced.

(14)

The Board, while transferring the trial of the case to the Children's Court having jurisdiction to try such offences, shall handover the records available with it, including the reports of experts and the social investigation report forming the basis of the preliminary assessment, a copy of the same can be retained with JJB.

(15)

Any statement made by the child during the interaction to the Board or the Principal Magistrate or the Member, at the time of preliminary assessment shall not be used against the child in any manner during the course of inquiry or trial before the Children's Court or before the Board itself.

11.

Completion of Inquiry.

(1)

Where after preliminary assessment under section 15 of the Act, in cases of heinous offences allegedly committed by a child, the Board decides to dispose of the matter, the Board may pass any of the dispositional orders as specified in section 18 of the Act.

(2)

Before passing an order, the Board shall obtain a social investigation report in Form 6 prepared by the Probation Officer or Child Welfare Officer or social worker as ordered, and take the findings of the report into account.

(3)

All dis-positional orders passed by the Board shall necessarily include an individual care plan in Form 7 for the child in conflict with law concerned, prepared by a Probation Officer or Child Welfare Officer or a recognised voluntary organisation on the basis of interaction with the child and his family, where possible.

(4)

Where the Board is satisfied that it is neither in the interest of the child himself nor in the interest of other children to keep a child in the special home, the Board may order the child to be kept in a place of safety and in a manner considered appropriate by it.

(5)

Where the Board decides to release the child after advice or admonition or after participation in group counselling or orders him to perform community service, necessary direction may also be issued by the Board to the District Child Protection Unit for arranging such counselling and community service.

(6)

Where the Board decides to release the child in conflict with law on probation and place him under the care of the parent or the guardian or fit person, the person in whose custody the child is released may be required to submit a written undertaking in Form 8 for good behaviour and well-being of the child for a maximum period of three years.

(7)

The Board may order the release of a child in conflict with law on execution of a personal bond without surety in Form 9.

(8)

In the event of placement of the child in a fit facility or special home, the Board shall consider that the fit facility or special home is located nearest to the place of residence of the child's parent or guardian, except where it is not in the best interest of the child to do so.

(9)

The Board, where it releases a child on probation and places him under the care of parent or guardian or fit person or where the child is released on probation and placed under the care of fit facility, it may also order that the child be placed under the supervision of a Probation Officer who shall submit periodic reports in Form 10 and the period of such supervision shall be maximum of three years.

(10)

Where it appears to the Board that the child has not complied with the probation conditions, it may order the child to be

produced before it and may send the child to a special home or place of safety for the remaining period of supervision.

(11)

In no case, the period of stay in the special home or the place of safety shall exceed the maximum period provided in clause (g) of sub-section (1) of section 18 of the Act.

12.

Pendency of Inquiry.

(1)

For the purpose of sub-section (3) of section 16 of the Act, the Board shall maintain a 'Case Monitoring Sheet' of every case and every child in Form 11. The said Form shall be kept at the top of each case file and shall be updated from time to time. The following points shall be considered so far as 'progress of inquiry' mentioned in Form 11 is concerned:

(i)

time schedule for disposal of the case shall be fixed on the first date of hearing;

(ii)

scheduled date given in column No. (2) of 'progress of inquiry' shall be the outer limit within which the steps indicated in column (1) are to be completed.

(2)

The Board shall submit a quarterly report in Form 12 about the pendency of the cases, visits to Homes etc. to the Chief Judicial Magistrate or Chief Metropolitan Magistrate; Deputy Commissioner, District Judge, High level Committee formed under Sec 16 (2) of the Act and High Court

(3)

The District Judge shall conduct an inspection of the Board once every quarter and appraise the performance of the members of the Board on the basis of their participation in the proceedings of the Board and submit a report to the Selection Committee constituted under rule 87 of these rules.

13.

Procedure in relation to Children's Court and Monitoring Authorities.

(1)

Upon receipt of preliminary assessment from the Board the Children's Court may decide whether there is need for trial of the child as an adult or as a child and pass appropriate orders.

(2)

Where an appeal has been filed under sub-section (1) of section 101 of the Act against the order of the Board declaring the age of the child, the Children's Court shall first decide the said appeal.

(3)

Where an appeal has been filed under sub-section (2) of section 101 of the Act against the finding of the preliminary assessment done by the Board, the Children's Court shall first decide the appeal.

(4)

Where the appeal under sub-section (2) of section 101 of the Act is disposed of by the Children's Court on a finding that there is no need for trial of the child as an adult, it shall dispose of the same as per section 19 of the Act and these rules.

(5)

Where the appeal under sub-section (2) of section 101 of the Act is disposed of by the Children's Court on a finding that the child should be tried as an adult the Children's Court shall call for the file of the case from the Board and dispose of the matter as per the provisions of the Act and these rules.

(6)

The Children's Court shall record its reasons while arriving at a conclusion whether the child is to be treated as an adult or as a child.

(7)

Where the Children's Court decides that there is no need for trial of the child as an adult, and that it shall decide the matter itself:

(i)

It may conduct the inquiry as if it were functioning as a Board and dispose of the matter in accordance with the provisions of the Act and these rules.

(ii)

The Children's Court, while conducting the inquiry shall follow the procedure for trial in summons case under the Code of Criminal Procedure, 1973.

(iii)

The proceedings shall be conducted in camera and in a child friendly atmosphere, and there shall be no joint trial of a child alleged to be in conflict with law, with a person who is not a child.

(iv)

When witnesses are produced for examination the Children's Court shall ensure that the inquiry is not conducted in the spirit of strict adversarial proceedings and it shall use the powers conferred by section 165 of the Indian Evidence Act, 1872 (1 of 1872)

(v)

While examining a child in conflict with law and recording his statement, the Children's Court shall address the child in a child-friendly manner in order to put the child at ease and to encourage him to state the facts and circumstances without any fear, not only in respect of the offence which is alleged against the child, but also in respect of the home and social surroundings and the influence to which the child might have been subjected.

(vi)

The dispositional order passed by the Children's Court shall necessarily include an individual care plan in Form 7 for the child in conflict with law concerned, prepared by a Probation Officer or Child Welfare Officer or recognized voluntary organisation on the basis of interaction with the child and his family, where possible.

(vii)

The Children's Court, in such cases, may pass any orders as provided in subsections (1) and (2) of section 18 of the Act.

(8)

Where the Children's Court decides that there is a need for trial of the child as an adult:

(i)

It shall follow the procedure prescribed by the Code of Criminal Procedure, 1973 of trial by sessions and maintaining a child friendly atmosphere.

(ii)

The final order passed by the Children's Court shall necessarily include an individual care plan for the child as per Form 7 prepared by a Probation Officer or Child Welfare Officer or recognized voluntary organisation on the basis of interaction with the child and his family, where possible.

(iii)

Where the child has been found to be involved in the offence, the child may be sent to a place of safety till the age of twenty-one years.

(iv)

While the child remains at the place of safety, there shall be yearly review by the Probation Officer or the District Child Protection Unit or a social worker in Form 13 to evaluate the progress of the child and the reports shall be forwarded to the Children's Court.

(v)

The Children's Court may also direct the child to be produced before it periodically and at least once every three months for the purpose of assessing the progress made by the child and the facilities provided by the institution for the implementation of the individual care plan.

(vi)

When the child attains the age of twenty-one years and is yet to complete the term of stay, the Children's Court shall:

(a)

interact with the child in order to evaluate whether the child has undergone reformatory changes and if the child can be a contributing member of the society.

(b)

take into account the periodic reports of the progress of the child, prepared by the Probation Officer or the District Child Protection Unit or a social worker, if needed and further direct that institutional mechanism if inadequate be strengthened.

(c)

After making the evaluation, the Children's Court may decide to:

(ca)

release the child forth with;

(cb)

release the child on execution of a personal bond with or without sureties for good behaviour;

(cc)

release the child and issue directions regarding education, vocational training, apprenticeship, employment, counselling and other the rapeutic interventions with a view to promoting adaptive and positive behaviour etc.;

(cd)

release the child and appoint a monitoring authority for the remainder of the prescribed term of stay. The monitoring authority, where appointed shall maintain a Rehabilitation Card for the child in Form 14.

(vii)

For the purpose of sub-rule (vi) (c) (cd) of this rule:

(a)

A Probation Officer or Case Worker or Child Welfare Officer or a fit person may be appointed as a monitoring authority.

(b)

The District Child Protection Unit shall maintain a list of such persons who can be engaged as monitoring authorities which shall be sent to the Children's Court along with bi-annual updates.

(c)

The child shall for the first quarter after release, meet with the monitoring authority on a fortnightly basis or at such intervals as may be directed by the Children's Court. The monitoring authority shall fix a time and venue for such meetings in consultation with the child. The monitoring authority will forward its observations on the progress of the child on a monthly basis to the Children's Court.

(d)

At the end of the first quarter the monitoring authority shall make recommendations regarding the further follow up procedure required for the child.

(e)

Where the child, after release is found to be indulging in criminal activities or associating with people with criminal antecedents, he shall be brought before the Children's Court for further orders.

(f)

If it is found that the child no longer requires to be monitored, the monitoring authority shall place the detailed report with recommendations before the Children's Court which shall issue further directions either terminating the monitoring or for its continuation.

(g)

After the first quarter, the child shall meet the monitoring authority at such intervals as may be directed by the Children's Court based on the recommendations made by the monitoring authority at the end of the first quarter and the monitoring authority shall forward its report to the Children's Court which shall review the same every quarter.

14.

Record Keeping and Destruction of records.

(1)

The records of conviction in respect of a child in conflict with law shall be kept in safe custody till the expiry of the period of appeal or for a period of seven years, and no longer, and thereafter be destroyed by the Person-in-charge or Board or Children's Court, as the case may be:

Provided that in case of a heinous offence where the child is found to be in conflict with law under clause (i) of sub-section (1) of section 19 of the Act, the relevant records of conviction of such child shall be retained by the Children's Court.

(2)

The records of proceedings and related documents before Board or the Children Court, as the case may be, shall be maintained and destroyed as may be prescribed by State Government

Chapter IV

Child Welfare Committee

15.

Composition, Qualifications and Term of Members of the Committee.

(1)

There shall be one or more Committees in each district to be constituted by the State Government through a notification in the Official Gazette.

(2)

The Chairperson and members of the Committee shall be appointed by the State Government on the recommendation of the Selection Committee under rule 87 of these rules.

(3)

The Chairperson and the members shall be above the age of thirty-five years and not more than 60 years age shall have a minimum of seven years of experience of working with children in the field of education, health, protection, or welfare activities, with a degree or should be a practicing professional with a degree in child psychology or psychiatry or social work or sociology or human development or in the field of law or a retired judicial officer.

(4)

A member of the Committee shall be eligible for appointment of maximum of two terms subject to his performance in the previous term and recommendation by Selection committee.

(5)

All persons, on selection shall mandatorily be given training under rule 89 within a period of sixty days from the date of appointment.

(6)

No person shall be eligible for selection as a chairperson or member of the Committee, if he:

(i)

has any past record of violation of human rights or child rights;

(ii)

has been convicted of an offence involving moral turpitude, and such conviction has not been reversed or has not been granted full pardon in respect of such offence;

(iii)

has been removed or dismissed from service of the Central Government or a State Government or an undertaking or corporation owned or controlled by the Central Government or a State Government;

(iv)

has ever indulged in child abuse or employment of child labour or any other violation of human rights or immoral act; and

(v)

be holding such full-time occupation that may not allow her/him to give necessary time and attention to the work of the Committee as per the Act and the Rules.

(7)

Notwithstanding end of term of a chairperson or member, the existing chairperson or member term shall not be more than for a period of three years from the date of appointment. In case the members are not appointed, the existing member shall continue to hold office until his/her successor assumes office or for an additional period of three months whichever is earlier.

(8)

The Chairperson and the members may resign at any time by giving one month's notice in writing to the State Government.

16.

Rules and Procedures of Committee.

(1)

The Chairperson and members of the Committee shall be paid such sitting allowance, travel allowance and any other allowance, as the State Government may prescribe but not less than Rs.1500 /- per sitting.

(2)

A visit to an existing Child Care Institution by the Committee shall be considered as a sitting of the Committee.

(3)

The Committee shall hold its sittings in the premises of a children's home or, at a place in proximity to the children's

home or, at a suitable premises in any institution run under the Act for children in need of care and protection.

(4)

The Committee shall ensure that no person(s) un-connected with the case remains present in the room when the session is in progress.

(5)

The Committee shall ensure that only those person(s), in the presence of whom the child feels comfortable, shall be allowed to remain present during the sitting.

(6)

At least one member of the Committee shall always be available or accessible to take cognizance of any matter of emergency and issue necessary directions to the Special Juvenile Police Unit or local police of the district. For this purpose the Chairperson of the Committee shall draw up a monthly duty roster of the Committee members who shall be available and accessible every day, including on Sundays and holidays. The roster shall be circulated in advance to all the police stations, the Chief Judicial Magistrate/Chief Metropolitan Magistrate, the District Judge, the District Magistrate, the Board, the District Child Protection Unit and the Special Juvenile Police Unit.

(7)

The Committee shall sit on all working days for a minimum of six hours commensurate with the working hours of a magistrate court, unless the case pendency is less in a particular district and the State Government concerned issues an order in this regard:

Provided that the State Government may, by notification in the Official Gazette constitute more than one Committee in a district after giving due consideration to the pendency of the cases, area or terrain of the district, population density or any other consideration.

(8)

On receiving information about a child or children in need of care and protection, who cannot be produced before the Committee, the Committee shall reach out to the child or children and hold its sitting at a place that is convenient for such child or children.

(9)

While communicating with the child, the Committee members shall use child friendly techniques through their conduct.

(10)

The Committee shall hold its sittings in a child - friendly premises which shall not look like a court room in any manner and the sitting arrangement should be such to enable the Committee to interact with the child face to face.

(11)

The Committee shall not sit on a raised platform and there shall be no barriers, such as witness boxes or bars between the Committee and the children

(12)

The Committee shall be provided infrastructure and staff by the State Government which consists of V

(i)

Infrastructure: a well-furnished Board Room with electricity, light and fans, waiting room for children, separate rooms for Principal Magistrate and Members, a record room, a room for Probation Officers, room for legal services advocates , counselling and guidance unit, waiting room for parents and visitors, safe drinking water facility and clean toilets;

(ii)

Furniture: i.e. chairs, tables, file cabinets, computer chairs etc. as per requirement for Board room, Chambers, offices;

(iii)

Information Technology based logistic: computer sets with printers, video conferencing facilities, photocopiers with scanner, telephone with internet broadband connection, television for the waiting hall.

17.

Additional Functions and Responsibilities of the Committee.

- In addition to the functions and responsibilities of the Committee under section 30 of the Act, the Committee shall perform the following functions to achieve the objectives of the Act, namely:

(i)

document and maintain detailed case record along with a case summary of every case dealt by the Committee in Form 15;

- (ii) maintain a suggestion box or grievance redressal box at a prominent place in the premises of the Committee to encourage inputs from children and adults alike which shall be operated by the District Magistrate or his nominee;
- (iii) ensure smooth functioning of Children's Committees in the Child Care Institutions for children in need of care and protection within its jurisdiction, for realising children's participation in the affairs and management of the said Child Care Institutions;
- (iv) review the Children's Suggestion Book at least once a month;
- (v) send quarterly information in Form 16 about children in need of care and protection received by it to the District Magistrate with all relevant details on nature of disposal of cases, pending cases and reasons for such pendency;
- (vi) wherever required, issue rehabilitation card in Form 14 to children in need of care and protection to monitor their progress;
- (vii) maintain the following records in a register:
 - (a) entries of the cases listed in a day and next date and the Committee shall prepare a daily cause list of the cases before it;
 - (b) entries and particulars of children brought before the Committee and details of the Child Care Institution where the children are placed or the address where the children are sent;
 - (c) execution of bonds;
 - (d) movement including visits to institutions;
 - (e) children declared legally free for adoption;
 - (f) children recommended for or placed in sponsorship;
 - (g) children placed in individual or group foster care;
 - (h) children transferred to or received from another Committee;
 - (i) children for whom follow up is to be done;
 - (j) children placed in after care;
 - (k) inspection record of the Committee;
 - (l) record of Minutes of the meetings of the Committee;
 - (m) correspondence received and sent;
 - (n) any other record or register which the Committee may require.
- (viii) All information listed in clause (vii) of this rule may be digitised and a software may be developed by the State Governments.
- (ix)

hold periodic meetings with the Superintendent/ Person-in-charge of Child Care Institutions, representatives of concerned non-governmental organisations and social workers/ case workers, Special Juvenile Police Unit/ Child Welfare Police Office/ Anti-Human Trafficking Unit officers to discuss specific issues that may arise;

(x)

keep information about and take necessary follow-up action in respect of missing children in their jurisdiction;

(xi)

Role and responsibilities of Secretary of Committee - The District Child Protection Unit shall appoint a person as a secretary of the Committee. The secretary of the Committee shall assist and support the Committee for discharging their functions effectively.

The secretary of the Committee shall perform following task, namely-

(a)

Take necessary action for the compliance of the decisions of the Committee;

(b)

Submit the action taken report to the Committee for their pursual and further directions;

(c)

Coordinate with District Child Protection Unit or other departments or other agency as and when required;

(d)

Coordinate with probation officers, case workers, child welfare officers and child welfare police officers in the matters related to children in need of care and protection or child victims;

(e)

Coordinate with other Boards and Committees as and when required;

(f)

Prepare all necessary reports of the Committee and share it with concerned authorities;

(g)

Ensure proper maintenance of records of the Committee;

(h)

Ensure the availability of required infrastructure and human resource to the Committee;

(i)

Function as Public Information Officer of the Committee under the Right to Information Act, 2005; and

(j)

Perform any other tasks as assigned by the Committee.

(xii)

The secretary of the Committee shall not interfere in judicial proceeding of Committee.

Chapter V

Procedure in relation to children in need of care and Protection

18.

Production before the Committee.

(1)

Any child in need of care and protection shall be produced before the Committee during the working hours at its place of sitting and beyond working hours before the member as per the duty roster:

Provided that where the child cannot be produced before the Committee, the Committee shall reach out to the child where the child is located.

(2)

Whoever produces the child before the Committee shall make a report in Form 17 containing the particulars of the child as well as the circumstances in which the child was received or found.

(3)

In case of a child less than two years of age, who is medically unfit, the person or the organisation who comes in contact with the child in need of care and protection shall send a written report along with the photograph of the child to the Committee within twenty-four hours and produce the child before the Committee as soon as the child is medically fit along with a medical certificate to that effect.

(4)

The Committee after interaction with the child may issue directions for placing the child with the parent or guardian or Children's Home, where such Home is available in the vicinity of the Committee before which the child is produced, and in the absence of such Home, to direct the placing of the child in safe custody of a fit person or a fit facility.

(5)

The Committee or the member on duty shall issue the order for placing the child in Children's Home in Form 18.

(6)

The Committee or the member on duty shall order immediate medical examination of the child produced before the Committee or the member on duty, if such examination is needed.

(7)

In the case of abandoned or lost or orphaned child, the Committee, before passing an order granting interim custody of the child pending inquiry, shall see that, the information regarding such child is uploaded on a designated portal.

(8)

The Committee may, while making an order in Form 19 for placing a child under the care of a parent, guardian or fit person, pending inquiry or at the time of restoration, as the case may be, direct such parent, guardian or fit person to enter into an undertaking in Form 20.

(9)

Whenever the Committee orders a child to be kept in an institution, it shall forward to the Person-in-charge of such institution, a copy of the order of short term placement pending inquiry in Form 18 with particulars of the Child Care Institution and parents or guardian and previous record. A copy of such order shall also be forwarded to the District Child Protection Unit.

19.

Procedure for inquiry.

(1)

The Committee shall inquire into the circumstances under which the child is produced and accordingly declare such child to be a child in need of care and protection.

(2)

The Committee shall, prima facie determine the age of the child in order to ascertain its jurisdiction, pending further inquiry as per section 94 of the Act, if need be.

(3)

When a child is brought before the Committee, the Committee shall assign the case to a social worker or Case Worker or Child Welfare Officer or to any recognised non Jharkhand Gazette (Extraordinary), Tuesday, 9th January, 2018 23 governmental organisation for conducting the social investigation under sub-section (2) of section 36 of the Act through an order in Form 21.

(4)

The Committee shall direct the person or organisation concerned to develop an individual care plan in Form 7 including a suitable rehabilitation plan. The individual care plan prepared for every child in the institutional care shall be developed with the ultimate aim of the child being rehabilitated and re-integrated based on the case history, circumstances and individual needs of the child.

(5)

The inquiry shall satisfy the basic principles of natural justice and shall ensure the informed participation of the child and the parent or guardian. The child shall be given an opportunity to be heard and his opinion shall be taken into consideration with due regard to his age and level of maturity. The orders of the Committee shall be in writing and contain reasons.

(6)

The Committee shall interview the child sensitively and in a child friendly manner and will not use adversarial or accusatory words or words that adversely impact the dignity or self-esteem of the child.

(7)

The Committee shall satisfy itself through documents and verification reports, before releasing or restoring the child, as per Form 20, in the best interest of the child.

(8)

The social investigation conducted by a social worker or Case Worker or Child Welfare Officer of the institution or any

non-governmental organisation shall be as per Form 22 and must provide an assessment of the family situation of the child in detail, and explain in writing whether it will be in the best interest of the child to restore him to his family.

(9)

Before the Committee releases or restores the child, both the child as well as the parents or guardians may be referred to the Counsellor.

(10)

The Committee shall maintain proper records of the children produced before it including medical reports, social investigation report, any other report(s) and orders passed by the Committee in regard to the child.

(11)

In all cases pending inquiry, the Committee shall notify the next date of appearance of the child not later than fifteen days of the previous date and also seek periodic status report from the social worker or Case Worker or Child Welfare Officer conducting investigation on each such date.

(12)

In all cases pending inquiry, the Committee shall direct the person or institution with whom the child is placed to take steps for rehabilitation of the child including education, vocational training, etc., from the date of first production of the child itself.

(13)

Any decision taken by an individual member, when the Committee is not sitting, shall be ratified by the Committee in its next sitting.

(14)

At the time of final disposal of a case, there shall be at least three members present including the Chairperson, and in the absence of Chairperson, a member so nominated by the Chairperson to act as such.

(15)

The Committee shall function cohesively as a single body and as such shall not form any sub-committees.

(16)

Where a child has to be sent or repatriated to another district or state or country the Committee shall direct the District Child Protection Unit to take necessary permission as may be required, such as approaching the Foreigners Regional Registration Offices and Ministry of External Affairs for a no-objection certificate, contacting the counterpart Committee, or any other voluntary organisation in the other district or state or country where the child is to be sent.

(17)

At the time of final disposal of the case, the Committee shall incorporate in the order of disposal, an individual care plan in Form 7 of such child prepared by the social worker or Case Worker or Child Welfare Officer of the institution or any non-governmental organisation, as the case may be.

(18)

While finally disposing of the case, the Committee shall give a date for follow-up of the child not later than one month from the date of disposal of the case and thereafter once every month for the period of first six months and thereafter every three months for a minimum of one year or till such time as the Committee deems fit.

(19)

Where the child belongs to a different district, the Committee shall forward the age declaration, case file and the individual care plan to the Committee of the district concerned which shall likewise follow-up the individual care plan as if it had passed such disposal order.

(20)

The individual care plan shall be monitored by means of a rehabilitation card in Form 14 issued for the purpose by the Committee passing the disposal order and which shall form part of the record of the Committee which follow up the implementation of the individual care plan. Such rehabilitation card shall be maintained by the Rehabilitation- cum -Placement Officer.

(21)

All orders passed by the Committee in respect of a child in need of care and protection shall also be uploaded on the designated portal with due regard to the confidentiality and privacy of the child.

(22)

When a parent or guardian, wishes to surrender a child under sub-section (1) of section 35 of the Act, such parent or

guardian shall make an application to the Committee in Form 23. Where such parent or guardian is unable to make an application due to illiteracy or any other reason, the Committee shall facilitate the same through the Legal Aid Counsel provided by the Legal Services Authority, the deed of surrender shall be executed as per Form 24.

(23)

The inquiry under sub-section 3 of section 35 of the Act shall be concluded by the Committee expeditiously and the Committee shall declare the surrendered child as legally free for adoption after the expiry of sixty days from the date of surrender.

(24)

In case of orphan or abandoned child, the Committee shall make all efforts for tracing the parents or guardians of the child and on completion of such inquiry, if it is established that the child is either an orphan having no one to take care, or abandoned, the Committee shall declare the child legally free for adoption.

(25)

In case an abandoned or orphan child is received by a Child Care Institution including a Specialised Adoption Agency, such a child shall be produced before the Committee within twenty-four hours (excluding the time necessary for the journey) along with a report in Form 17 containing the particulars and photograph of the child as well as the circumstances in which the child was received by it and a copy of such report shall also be submitted by the Child Care Institution or a Specialised Adoption Agency to the local police station within the same period.

(26)

The Committee shall issue an order in Form 18 for short term placement and interim care of the child, pending inquiry under section 36 of the Act.

(27)

The Committee shall use the designated portal to ascertain whether the abandoned child or orphan child is a missing child while causing the details of the orphan or the abandoned child to be uploaded.

(28)

The Committee, after taking into account the risk factors, and in the best interest of the child, may direct the publication of the particulars and photograph of an orphan or abandoned child in national newspapers with wide circulation within seventy two hours from the time of receiving the child for the purposes of tracing out the biological parents or the legal guardian(s).

(29)

The Committee, after making inquiry as per the provisions of the Act, shall issue an order in Form 25 declaring the abandoned or orphan child as legally free for adoption and send the same information to the Authority.

(30)

Where the parents of the child are traced, the procedure for restoration of the child shall be as per rule 82 of these rules.

(31)

While holding the inquiry relating to a child in need of care and protection who was found to be engaged or kept in bondage for the purpose of employment and /or whose earnings have been withheld, the Committee will, in addition to facilitating the registration of an First Investigation Report under section 79 of the Act, also order for the recovery of the earnings of the child withheld and the Committee, while so ordering recovery, shall be guided by the prescribed rate of minimum wages payable to an unskilled adult worker.

20.

Pendency of cases.

(1)

The Committee shall maintain a 'Case Monitoring Sheet' of every case and in case there is more than one child in one case, a separate sheet shall be used for each child. The case monitoring sheet shall be in Form 26. The said Form shall be kept at the top of each case file and shall be updated from time to time. The following points shall be considered so far as 'progress of inquiry' mentioned in Form 26 is concerned:

(i)

time schedule for disposal of the case should be fixed on the first date of hearing;

(ii)

scheduled date given in column (2) of 'progress of inquiry' shall be the outer limit within which the steps indicated in column (1) is to be completed.

(2)

The Committee shall submit a quarterly report to District Magistrate in Form 16 for review of pendency of cases.

(3)

The District Magistrate shall review the functioning of the Committee including by inspection once every quarter and also appraise the performance of the Chairperson and the members of the Committee on the basis of their participation in the proceedings of the Committee and submit a report to the Selection Committee constituted under rule 87 of these rules.

(4)

The Committee shall submit a quarterly report in Form 18 to the following:

(a)

District Judge;

(b)

District Magistrate

(c)

State Government;

(d)

State Child Protection Society;

(e)

District Child Protection Unit.

Chapter VI

Rehabilitation and Social Re-Integration

21.

Manner of Registration of Child Care Institutions.

(1)

All institutions running institutional care services for children in need of care and protection or children in conflict with law, whether run by the government or voluntary organisation, shall be registered under sub-section (1) of section 41 of the Act, irrespective of being registered or licensed under any other Act for the time being in force.

(2)

All such institutions shall make an application in Form 27 together with a copy each of rules, bye-laws, memorandum of association, list of governing body, office bearers, list of trustees, balance sheet of preceding three years, statement of past record of social or public service provided by the institution to the State Government and a declaration from the person or the organisation regarding any previous conviction record or involvement in any immoral act or in an act of child abuse or employment of child labour or that it has not been black listed by the Central or State Government;

(3)

The State Government shall after verifying that provisions exist in the institution for the care and protection of children, health, education, boarding and lodging facilities, vocational facilities and rehabilitation as per the Act and the rules, may issue a registration certification to such institution under sub-section (1) of section 41 of the Act in Form 28.

(4)

The State Government, may not grant provisional registration where adequate facilities do not exist in the institution applying for registration and the State Government shall issue an order before the expiry of one month from the date of receipt of the application that the institution is not entitled for even provisional registration.

(5)

The State Government, while taking a decision on the application for registration, may consider the following namely:

(i)

registration of the organisation under any law for the time being in force;

(ii)

details of physical infrastructure, water and electricity facilities, sanitation and hygiene, recreation facilities;

(iii)

financial position of the organization and maintenance of documents along with audited statement of accounts for the previous three years;

(iv)

resolution of the Governing Body to run the institution or an open shelter;

(v)

plan to provide services for children such as medical, vocational, educational, counselling, etc., in case of new applicants and details of such services provided in case of existing institutions ;

(vi)

arrangements of safety, security and transportation;

(vii)

details of other support services run by the organisation;

(viii)

details of linkages and networking with other governmental, non-governmental, corporate and other community based agencies on providing need-based services to children;

(ix)

details of existing staff with their qualification and experience;

(x)

details of registration under Foreign Contribution Regulation Act and funds available, if any;

(xi)

a declaration from the person or the organisation regarding any previous conviction record or involvement in any immoral act or in an act of child abuse or employment of child labour;

(xii)

any other criteria as prescribed by the State Government.

(6)

The State Government shall conduct a detailed inspection where provisional registration has been granted or review annually after registration under sub-section (1) of section 41 of the Act, of the facilities, staff, infrastructure and compliance with the standards of care, protection, rehabilitation and reintegration services and management of the institution or the organisation as laid down under the Act and the rules.

(7)

If the inspection or the annual review reveals that there is unsatisfactory compliance with the standards of care, protection, rehabilitation and reintegration services and management of the institution as laid down under the Act and the rules or the facilities are inadequate, the State Government may, at any time, serve notice on the management of the institution and after giving an opportunity of being heard, declare within a period of sixty days from the date of the detailed inspection or annual review as the case may be, that the registration of the institution or organisation, shall stand withdrawn or cancelled from a date specified in the notice and from the said date, the institution shall cease to be an institution registered under sub-section (1) of section 41 of the Act.

(8)

When an institution ceases to be an institution registered under the Act or has failed to apply for registration within the time frame laid down in the said provision or has not been granted provisional registration, the said institution shall be managed by the State Government or the children placed therein shall be transferred by the order of the Board or the Committee, to some other institution, registered under sub-section (1) of section 41 of the Act.

(9)

All institutions shall be bound to seek renewal of registration three months prior to the expiry of the period of registration and in case of their failure to seek renewal of registration before the expiry of the period of registration of the institution, the institution shall cease to be an institution registered under sub-section (1) of section 41 of the Act and provisions of sub-rule (8) of this rule shall apply.

(10)

An application for renewal of registration of an institution shall be disposed of within sixty days from the date of receipt of application.

(11)

The decision on renewal of registration shall be based on the annual review done in the year in which the renewal is sought.

(12)

The Central Government shall facilitate developing a model online system for receipt and processing of applications and grant or cancellation of registration and in the interim the systems existing in the States and Union Territories shall

continue.

22.

Open Shelter.

(1)

The State Government may establish open shelters by itself or through voluntary or non-governmental organisations.

(2)

All organisations and persons who wish to establish open shelters or already running open shelters shall, make an application in Form 27 to the State Government for registration.

(3)

The applicants shall submit a report of the need for opening such open shelters along with a survey on the status of children indicating the number of children where the open shelter is proposed to be established. After proper police verification and other inquiry as deemed necessary, the organisation or person may be selected for running the open shelter.

(4)

The open shelters shall be registered as provided under sub-section (1) of section 41 of the Act in Form 28.

(5)

The services provided in the open shelters may include day care and night residential facilities including food, washing facilities and toilets, and any other facility as the State Government may deem fit.

(6)

The capacity of an open shelter should be such as to accommodate twenty-five to fifty children at one time and should include a kitchen, dining facilities, bathrooms and toilets, lockers and recreational facilities.

(7)

In cases where, the agency in charge of the Open Shelter finds that a child may require more than short term care and protection exceeding twenty-four hours, such child may be produced before the Committee for appropriate further steps.

(8)

The open shelter shall not refuse admission to any child in need of care and protection at any time.

(9)

Each open shelter shall send monthly information in Form 29 to the District Child Protection Unit and the Committee regarding the children availing the services of the open shelter.

23.

Foster Care.

(1)

The State Government may place children in need of care and protection in foster care including group foster care through order of the Committee for a short or extended period of time.

(2)

The District Child Protection Unit shall be the nodal authority for implementing the foster care programme in a district.

(3)

All decisions related to placement of a child in foster care shall be taken by the Committee. Children in the age group of six years and above may be considered for placement in foster care in the circumstances mentioned in sub-rule (1) of rule 44 of these rules. Children below six years of age shall be, as far as possible placed in adoption.

(4)

Children in need of care and protection who are living in community may also be considered for placement in foster care based on the child study report in Form 31 prepared by the District Child Protection Unit.

(5)

The Committee shall take into consideration the individual care plan and the opinion of the child before deciding the nature of foster care with due regard to his age and maturity. The child shall be informed and prepared throughout the process.

(6)

Foster care may be for short term or long term depending upon the needs of the child. The duration of short term Foster care shall be for a period of not more than one year.

(7)

Long term foster care, shall be for a period exceeding one year. This can be periodically extended by the Committee till the child attains eighteen years of age on the basis of assessment of the compatibility of the child with the foster care parents or in a group foster care setting.

(8)

Recognizing that every child has the right to grow in a family environment, every attempt shall be made to reunite the child with his biological family, if possible.

(9)

The Committee before placing the child in foster care shall obtain a Home Study Report of the foster family through the District Child Protection Unit in Form 30.

(10)

Children with special needs may be considered either for placement in foster family or group foster care, provided the Home Study Report of the foster family supports their fitness or group setting has facilities for care of such children.

(11)

The number of children placed under group foster care shall not exceed eight children in one unit including biological children of the foster caregiver.

(12)

The District Child Protection Unit, while selecting foster family shall consider the following, namely :

(i)

both the spouses must be Indian citizens;

(ii)

both the spouses must be willing to foster the same child;

(iii)

both the spouses must be above the age of thirty-five years and must be in good physical, emotional and mental health;

(iv)

ordinarily the foster family should have an income with which they are able to meet the needs of the child;

(v)

medical reports of all the members of the foster family residing in the premises should be obtained including reports for Human Immuno Deficiency Virus (HIV), Tuberculosis (TB) and Hepatitis B etc. to determine that they are medically fit; and

(vi)

the foster family should have adequate space and basic facilities.

(13)

The District Child Protection Unit, while selecting Group foster care setting shall consider the following illustrative criteria:

(i)

registration of the group setting under the Act;

(ii)

recognition as a fit facility by Committee;

(iii)

existence of child protection policy; and

(iv)

sufficient space and proper amenities for children.

(14)

The process for selection of Foster family or Group foster setting shall be notified by the State Government. Till the time State Government does not notify the guidelines for foster care, central model guidelines will be considered as guidelines for the state.

(15)

The Committee shall pass the final order in Form 32 for placing the child in foster care, specifying the period for which the child is placed in foster care.

(16)

The foster family or group foster care giver shall sign an undertaking for foster-care of the child in Form 33.

(17)

The District Child Protection Unit shall maintain a record of each child in foster care in Form 34.

(18)

The Committee shall conduct monthly inspection of the foster families or foster care givers in Form 35 to check the well-being of the child.

(19)

The foster family or group foster care giver shall:

(i)

provide adequate food, clothing and shelter and education;

(ii)

provide care, support and treatment for child's overall physical, emotional and mental health;

(iii)

ensure protection from exploitation, maltreatment, harm, neglect and abuse;

(iv)

provide age appropriate facilities for recreation, extra-curricular activities such as sports, music, dance, drama, art, etc.;

(v)

provide vocational training according to the interests of the child;

(vi)

respect the privacy of the child and his biological family or guardian, and acknowledge that any information provided about them is confidential and is not to be disclosed to another party without prior consent;

(vii)

provide treatment in emergent situations and inform the Committee and biological family about the same which may pass appropriate orders wherever necessary;

(viii)

support contact between the child and his biological family in consultation with the Committee keeping in view the best interest of the child;

(ix)

share and discuss the information pertaining to the progress of the child periodically with the Committee and biological family of the child and produce the child before the Committee as and when directed by the Committee; and

(x)

ensure that the child's whereabouts are known at all times, including reporting any changes of address, holiday plans and any episodes of running away of the child to the Committee.

24.

Sponsorship.

(1)

The State Government shall prepare sponsorship programmes, which may include:

(i)

individual to individual sponsorship;

(ii)

group sponsorship;

(iii)

community sponsorship;

(iv)

support to families through sponsorship; and

(v)

support to Children Homes and Special Homes The state government shall prepare sponsorship programmes till the time central model guidelines will be considered as guidelines for the state.

(2)

The sponsorship programme shall be implemented by the District Child Protection Unit which shall provide a panel of persons or families or organisations interested in sponsoring a child.

(3)

The panel will list sponsors according to the area of interest such as education, medical support, nutrition, vocational training etc., and the nature of sponsorship.

(4)

The District Child Protection Unit shall forward the panel to the Board or the Committee or the Children's Court.

(5)

The Board or the Committee or the Children's Court may suo motu, or on an application received in that behalf, consider the placement of a child under sponsorship for which purpose it shall verify from the panel whether a sponsor is available to support such child and pass an order for placement of the child under sponsorship in Form 36.

(6)

The District Child Protection Unit, in case of individual sponsorship, shall open a account in the name of the child to be operated preferably by the mother. The money shall be transferred directly from the bank account of the District Child Protection Unit to the bank account of the child.

(7)

The duration of the sponsorship shall not ordinarily exceed three years.

25.

After Care of Children Leaving Institutional Care.

(1)

The State Government shall prepare a programme for children who have to leave Child Care Institutions on attaining eighteen years of age by providing for their education, giving them employable skills and placement as well as providing them places for stay to facilitate their re-integration into the mainstream of society.

(2)

Any child who leaves a Child Care Institution may be provided after care till the age of twenty-one years on the order of the Committee or the Board or the Children's Court, as the case may be , as per Form 37 and in exceptional circumstances ,for two more years on completing twenty-one years of age .

(3)

The District Child Protection Unit shall prepare and maintain a list of organisations, institutions and individuals interested in providing after care as per their area of interest such as education, medical support, nutrition, vocational training etc. and the same shall be forwarded to the Board or the Committee and all Child Care Institutions for their record.

(4)

The Probation Officer or the Child Welfare Officer or Case Worker or social worker, shall prepare a post release plan and submit the same to the Board or the Committee, two months before the child is due to leave the Child Care Institution, recommending after care for such child, as per the needs of the child.

(5)

The Board or the Committee or the Children's Court, while monitoring the post release plan will also examine the effectiveness of the aftercare programme, particularly whether it is being utilized for the purpose for which it has been granted and the progress made by the child as a result of such after-care programme.

(6)

Children who are placed in after care programme, shall be provided funds by the State Government for their essential expenses; such funds shall be transferred directly to their bank accounts.

(7)

The services provided under the after-care programme may include:

(i)

community group housing on a temporary basis for groups of six to eight persons;

(ii)

provision of stipend during the course of vocational training or scholarships for higher education and support till the person gets employment;

(iii)

arrangements for skill training and placement in commercial establishments through coordination with National Skill Development Programme, Indian Institute for Skill Training and other such Central or State Government programmes and corporates , etc.;

(iv)

provision of a counsellor to stay in regular contact with such persons to discuss their rehabilitation plans ;

(v)

provision of creative outlets for channelising their energy and to tide over the crisis periods in their lives;

(vi)

arrangement of loans and subsidies for persons in after-care, aspiring to set up entrepreneurial activities; and

(vii)

encouragement to sustain themselves without State or institutional support.

26.

Management and Monitoring of Child Care Institutions.

(1)

The personnel strength of a Child Care Institution shall be determined according to the duty, posts, hours of duty and category of children that the staff is meant to cater to.

(2)

The staff of the Child Care Institution shall be subject to control and overall supervision of the Person-in-charge who by order, shall determine their specific duties and responsibilities in keeping with the statutory requirements of the Act and these rules.

(3)

The number of posts in each category of staff shall be fixed on the basis of capacity of the institution and shall proportionately increase with the increase in the capacity of the institution.

(4)

In case of Child Care Institutions housing girls, only female Person-in charge and staff shall be appointed.

(5)

Any person associated with a Child Care Institution should not have been convicted of an offence or have been involved in any immoral act or in act of child abuse or employment of child labour or in an offence involving moral turpitude or hold any office in any political party during his tenure.

(6)

No person shall be appointed to or work in a Child Care Institution without police verification.

(7)

The suggested staffing pattern for an institution with a capacity of 100 children may be as below:

S. No

Personnel/ Staff

Number

1

Person-in-charge (Superintendent)

1

2

Probation Officer/Child Welfare Officer/Case

Workers (NGOs) A Child Welfare Officer may be designated as

Rehabilitation-cum-Placement Officer

3

3

Counselor/ Psychologists/mental health expert

2

4

House Mother/ House Father

4

5

Educator/ Tutor

2(Part time)

6

Medical Officer (Physician)

1 (on call)

7

Para-medical staff/ Staff Nurse/Nursing Orderly

1

8

Store Keeper cum Accountant

1

9

Art & Craft & activity teacher

1(Part time)

10

PT Instructor-cum-Yoga trainer

1 (Part time)

11

Cook

2

12

Helper

2

13

House keeping

2

14

Driver

1

15

Gardener

1(Part time)

(8)

In case of institutions housing infants, provision for ayahs and paramedical staff shall be made as per need.

(9)

The security personnel shall be deployed as per nature and requirement of the Child Care Institution, taking into consideration strength of the children, age groups, physical and mental status, segregation facility based on the nature of offence and structure of the Institution.

(10)

The security personnel to be engaged or appointed shall be adequately trained and oriented to deal with the children with sensitivity preferably ex-servicemen or retired paramilitary personnel or through Director General of Resettlement.

(11)

The security personnel shall not be with arms or guns but have training and special skills to handle a crisis situation, control violence and escape of children from the institution, conduct search and frisking and security surveillance.

27.

Fit Facility.

(1)

The Board or the Committee shall on an application from any institution or organisation run by Government or non-governmental organisation, recognise the facility as a fit facility provided the manager of that facility is willing temporarily to receive a child for a specific purpose or for group foster care.

(2)

An application in Form 38 for recognition shall be accompanied with a copy each of rules, bye-laws, memorandum of association, list of governing body, office bearers, list of trustees, balance sheet of the preceding three years, statement of past record of social or public service provided by the institution or organisation or an order can be given to an organization considering its specialization and need of the child by Board or Committee.

(3)

Any facility for recognition as a fit facility shall:

(i)

meet the basic standards of care and protection to the child;

(ii)

provide basic services to any child placed with it;

(iii)

prevent child placed with it to any form of cruelty or exploitation or neglect or abuse of any kind; and

(iv)

abide by the orders passed by the Board or the Committee .

(4)

The Board or the Committee, after proper inspection and inquiry to ensure that provisions exist in the institution for the care and protection of children with reference to their health, education, boarding and lodging facilities, vocational facilities and rehabilitation as per the rules, and consideration of such other material as may be available, may grant recognition to such institution or organisation as a fit facility in Form 39:

Provided that any person associated with such institution or organisation should not have been convicted of an offence or have been involved in any immoral act or in act of child abuse or employment of child labour or in an offence involving moral turpitude.

(5)

A decision on the application for recognition of an institution or organisation shall be taken by the Board or the Committee within a period of fifteen days from the date of receipt of the application.

(6)

The recognition to an institution or an organisation as a fit facility shall be initially for a period of three years which may be renewed for a further period of three years in accordance with sub-rule (4) of this rule.

(7)

The Board or the Committee may, if dissatisfied with the standard of care and protection provided, or conditions prevailing in the facility, or the management of the institution or the organisation recognised under the Act or on an adverse report made by an inspection committee appointed under section 54 of the Act, or for any other reason, at any time, by a reasoned order, withdraw the recognition of the institution or the organisation as a fit facility and from the date specified in the order of the Board or the Committee, the institution or the organisation shall cease to be a fit facility recognized under the Act and the rules.

(8)

Where the recognition of a fit facility is withdrawn by the Board or the Committee, intimation of the same shall be sent to the Children's Court, Special Juvenile Police Unit and District Child Protection Unit and the children placed with such an institution or organisation may be placed by the Board or the Committee or the Children's Court to another fit facility or any other Child Care Institution.

(9)

A list of fit facilities approved by the Board or the Committee shall be kept in that office and be sent to the Children's Court, Special Juvenile Police Unit, the District Child Protection Unit and the State Child Protection Society.

(10)

An institution or organisation shall be recognised as a fit facility for purposes which may include:

(i)

short term care;

(ii)

medical care treatment and specialised treatment;

(iii)

psychiatric and mental health care;

(iv)

de-addiction and rehabilitation;

(v)

education;

- (vi)
vocational training and skill development;
- (vii)
witness protection; and
- (viii)
group foster care.

(11)

The services to be provided by the fit facility may include:

- (i)
food, clothing, water, sanitation and hygiene;
- (ii)
mental health interventions including counselling;
- (iii)
medical facilities including first aid and to facilitate specialised treatment;
- (iv)
formal age appropriate education including bridge education and continuing education and life skill education; and
- (v)
recreation, sports, fine arts and group work activities.

(12)

The placement of a child in a fit facility shall be for a period as deemed fit by the Board or the Committee or the Children's Court.

28.

Fit Person.

(1)

Any individual who is fit to temporarily receive a child for care, protection or treatment, for a period as may be necessary, may be recognised by the Board or the Committee as a fit person.

(2)

The Board or the Committee may identify a panel of persons on the basis of their credentials, respectability, expertise, professional qualifications, experience of dealing with children and their willingness to receive the child and shall recognise them as fit persons for the purposes of the Act:

Provided that such a person should not have been accused of an offence under the Act or have been involved in any immoral act or in act of child abuse or employment of child labour or in an offence involving moral turpitude.

(3)

The Board or the Committee may also appoint any person as a fit person on need basis for a child or children after verifying the credentials of such person, and wherever possible, after getting police verification done on such a person .

(4)

The Board or the Committee may, if dissatisfied with the standard of care and protection provided or for any other reason, at any time, by a reasoned order withdraw the recognition of the person as a fit person from the date specified in the order of the Board or the Committee.

(5)

Where the recognition of a fit person is withdrawn by the Board or the Committee, intimation of the same shall be sent to the Children's Court, Special Juvenile Police Unit and District Child Protection Unit and the child placed with such a fit person may be placed by the Board or the Committee or the Children's Court to another fit person or with a fit facility or any Child Care Institution.

(6)

A list of fit persons recognised by the Board or the Committee shall be kept in the office of the Board and the Committee and the Children's Court and be sent to the Special Juvenile Police Unit, the District Child Protection Unit and the State Child Protection Society.

(7)

The Board or the Committee or the Children's Court may place the child with a fit person in cases wherever required, including where the child cannot be sent to a Child Care Institution due to distance and/ or odd time.

(8)

The fit person shall:

(i)

have the capacity and willingness to receive the child; and

(ii)

provide basic services for care and protection of the child.

(9)

The Board or the Committee or the Children's Court, depending on the need of the child and in consultation with the fit person shall determine the period for which a child shall remain with the fit person.

(10)

The child shall not be placed with a fit person for a period exceeding thirty days and in such cases where the child requires further care, the Committee may consider the placement of the child in foster care or may consider other rehabilitative alternatives for the child. The Board or the Children's Court in such cases where the period of placement of the child may exceed thirty days, refer the matter to the Committee for further orders in respect of the child.

29.

Physical infrastructure.

(1)

The accommodation in each institution shall be as per the following criteria, namely:-

(i)

Observation Home:

(a)

separate observation homes for girls and boys;

(b)

classification and segregation of children according to their age group preferably 7-11 years, 12-16 years and 16-18 years, giving due consideration to physical and mental status and the nature of the offence committed.

(ii)

Special Home:

(a)

separate special homes for girls above the age of 10 years and boys in the age groups of 11 to 15 and 16 to 18 years;

(b)

classification and segregation of children on the basis of age and nature of offences and their mental and physical status.

(iii)

Place of Safety:

(a)

for children in the age group of 16 to 18 years alleged to have committed heinous offence pending inquiry ;

(b)

for children in the age group of 16 to 18 years found to be involved in heinous offence upon completion of inquiry ;

(c)

for persons above 18 years alleged to have committed offence when they were below the age of 18 years pending inquiry ;

(d)

for persons above 18 years found to be involved in offence upon completion of inquiry ;

(e)

for children as per the orders of the Board under clause (g) of sub-section (1) of section 18 of the Act.

(iv)

Children's Home:

(a)

while children of both sex below 10 years may be kept in the same home, separate bathing and sleeping facilities shall be maintained for boys and girls in the age group of 5-10 years;

(b)

separate children's homes for boys and girls in the age group of 7-11 years and 12- 18 years;

(c)
separate facilities for children upto the age of six years with appropriate facilities for infants.

(2)
The Child Care Institutions shall be child-friendly and in no way shall they look like a jail or lock-up.

(3)
Every Child Care Institution shall keep a copy of the Act and the rules framed by the State Government , for use by both the staff and children residing therein.

(4)
Each Child Care Institution shall have a Management Committee for the management of the institution and monitoring the progress of every child in the home.

(5)
The Child Care Institutions for children in conflict with law and children in need of care and protection shall function from separate premises as per the criteria elaborated.

(6)
The suggested norms for building or accommodation in each institution with 50 children may be as under:

(i)
2 Dormitories
Each 1000 Sq.ft. for 25 children i.e. 2000 Sq.
ft.

(ii)
2 Class rooms
300Sq.ft. for 25 children i.e. 600 Sq. ft.

(iii)
Sickroom/First aid room
75 Sq.ft. per children for 10 i.e. 750 Sq. ft.

(iv)
Kitchen
250 Sq. ft.

(v)
Dining hall
800 Sq. ft.

(vi)
Store
250 Sq.ft.

(vii)
Recreation room
300 Sq.ft.

(viii)
Library
500 Sq.ft.

(ix)
5 Bathroom 25 Sq.ft. each i.e. 125 Sq. ft.

(x)
8 Toilets
25 Sq. ft. i.e. 200 Sq.ft.

(xi)
Office rooms
300 Sq.ft. (b) Person-in-charge room 200 Sq.ft.

(xii)
Counselling and Guidance room

120 Sq.ft.

(xiii)

Workshop

1125 Sq. ft. for 15 children @ of 75 Sq.ft. per trainee

(xiv)

Residence for Person-incharge

2 rooms of 250 Sq.ft. each (b) Kitchen 75 Sq.ft.

(b) bathroom cum toilet 50 Sq ft.

(xv)

2 rooms for Juvenile Justice Board or Child

Welfare Committee

300 Sq. ft each i.e. 600 Sq.ft.

(xvi)

Playground

Sufficient area according to total number of children

Total

8495 Sq.ft.

(7)

The Person-in-charge shall stay within the institution and be provided with quarters and in case he is not able to stay in the Child Care Institution for valid reasons, any other senior staff member of the institution shall stay in the institution and be in a position to supervise the overall care of the children and take decisions in the case of any crisis or emergency.

(8)

There shall be proper and non-slippery flooring for preventing accidents.

(9)

There shall be adequate lighting, heating and cooling arrangements, ventilation, safe drinking water, clean and accessible gender and age appropriate and disabled friendly toilets and high walls with barbed wire fencing.

(10)

All institutions under the Act shall:

(i)

make provision of first-aid kit, fire extinguishers in kitchen, recreation room, vocational training room, dormitories, store rooms and counselling room;

(ii)

conduct periodic inspection of electrical installations;

(iii)

ensure proper storage and inspection of articles of food; and

(iv)

ensure stand-by arrangements for water storage and emergency lighting.

(11)

Special infrastructural facilities and necessary equipment shall be provided to differently-abled children. Such facilities and equipment shall be designed under the guidance of specialists or experts.

(12)

Other logistical and functional requirements which would be provided may include:

(i)

computer sets;

(ii)

photocopiers;

(iii)

printer, scanner cum fax;

- (iv)
telephone with internet facility;
 - (v)
web cam ;
 - (vi)
furniture for officials, record keeping cabinets, work stations, wheel chair and stretchers for medical room;
 - (vii)
chairs and tables for study and dining hall;
 - (viii)
projector.
- 30.

Clothing, Bedding, Toiletries and other Articles.

- (1)
The clothing and bedding shall be as per the scale and climatic conditions. The requirements of each child and the minimum standards for clothing and bedding shall be as under:

A. Bedding

S. No.

Article

Quantity to be provided per child

1.

Mattress

1 at the time of admission and subsequently 1
after every 1 year.

2.

Cotton Durry

2 at the time of admission and subsequently 2
after every 2 years.

3.

Cotton bed sheets

2 at the time of admission and subsequently 1
after every 6 months.

4.

Pillow (Cotton stuffed)

1 at the time of admission and subsequently 1
after every 1 year.

5.

Pillow covers

1 at the time of admission and subsequently 1
after every 1 year.

6.

Cotton blankets/ Khes

2 at the time of admission and subsequently 1
after every 2 years.

7.

Cotton filled quilt

1 at the time of admission and subsequently 1
after every 2 years (in cold region in addition to the blankets).

8.

Mosquito net

1 at the time of admission and subsequently 1
after every 6 months.

9.

Cotton towels

2 at the time of admission and subsequently 1
after every 3 months.

B. Clothing for Girls

S. No.

Article

Quantity per child

1

Skirts and Blouse or Salwar Kameez or Half Sari
with Blouse and Petticoat

5 sets per year for girls depending on age and
regional preferences.

2

Age appropriate undergarments

3 sets every quarter.

3

Sanitary Towels

12 packs per year for older girls.

4

Woollen Sweaters (full sleeves)

2 sweaters yearly.

5

Woollen Sweaters (Half sleeves)

2 sweaters yearly.

6

Woollen Shawls

1 per year.

7

Nightwear

2 sets every 6 months.

C. Clothing for Boys

S. No.

Article

Quantity per child

1

Shirts

2 at the time of admission and subsequently 1
after every 6 months.

2

Shorts

2 at the time of admission and subsequently 1
after every 6 months for younger boys.

3

Pants

2 at the time of admission and subsequently 1
after every 6 months for older boys.

4

Age appropriate undergarments

3 sets every quarter.

5

Woollen jerseys(full sleeves)

2 yearly.

6

Woollen jerseys (half sleeves)

2 yearly.

7

Woollen Caps

1 in 1 year.

8

Kurta Pyjama for night wear

2 sets every 6 months.

D. Miscellaneous Articles

1.

Slippers

1 pair at the time of admission and subsequently after every 6 months.

2.

Sports shoes

1 pair at the time of admission and subsequently

1 pair after every 1 year.

3.

School uniform

2 sets every six months for children attending schools.

4.

School bag

1 every year for children attending schools.

5.

School shoes

1 pair at the time of admission in school and subsequently 1 pair after every 6 months.

6.

Handkerchiefs

2 at the time of admission and subsequently 2 after every 2 months.

7.

Socks

3 pairs every six months.

8.

Stationery

As per need.

(2)

In addition to the clothing specified above, each child shall be provided, once in three years, with a suit consisting of one white shirt, one pair of shorts or pants, one pair of white canvas shoes and one blazer for use during ceremonial occasions. In the case of girls it shall be one white half sari or one salwar kameez or one white skirt and one white blouse, a pair of white canvas shoes and a blazer.

(3)

In every hospital attached to the institution where there is provision for in-patient cots, the following scale has to be followed:

S. No. Night clothing and bedding Scale for supply

1.
Mattress
One per bed per 3 years.
2.
Cotton bed sheets
Four per bed per year.
3.
Pillows
One per bed per two year.
4.
Pillow covers
Four per bed per year.
5.
Woollen blankets
One per bed per 2 years.
6.
Pyjamas and loose shirts (hospital type for boys)
3 pairs per child per year.
7.
Skirts and blouses or salwar kameez for girls
3 pairs per child per year.
8.
Cotton durry
One per bed per three years.

(4)

Toiletry: Every resident of the Child Care Institution shall be issued oil, soap and other material as per the following scale:

S. No.

Items

Quantity to be issued per child

1.
Hair Oil for grooming the hair
100 ml per month.
2.
Toilet soap/handwash
2 bars of 100gm per month.
3.
Tooth brush
1 in every 3 months.
4.
Toothpaste
100gm (a tube) per month.
5.
Comb
1 in every 3 month.
6.
Shampoo sachets
8 in a month (10ml/ per sachet).
7.
Bathing soap

2 bars of 125gm per month.

8.

Hair clip/ band

2 bands in 3 month.

9.

Moisturiser or coldcream (during winters)

250 ml in a month.

(5)

For washing of clothes and towels, bed-sheet, etc., the following scale may be followed:

(i)

washing soap: 3 soaps for one month (125 gms) or equivalent washing powder;

(ii)

whitening or bleaching agent to the extent required only for white clothing.

The hospital clothing shall not be mixed with other clothing at the time of washing and if necessary, the Superintendent can issue the above items separately for washing of hospital clothing. The superintendent may get installed washing machines, as required.

(6)

The following items shall be provided for maintaining the Child Care Institutions in a healthy and sanitary condition:

S. No.

Items

Scale of Supply

1.

Broom stick

25 to 40 per month depending on the area of the institution.

2.

Pesticide spray

As per the institution doctor's advice.

3.

Effective bugs killing agent

As required.

4.

Phenyl and cleaning acid

Depending on the area of lavatories to be (daily) cleaned as per institution doctor's advice.

5.

Mosquito repellent machines

2 per room per month with adequate fillets.

31.

Sanitation and Hygiene.

(1)

Every Child Care Institution shall have the following facilities, namely:

(i)

sufficient treated drinking water; water filters or RO shall be installed at multiple locations in the premises for easy access such as kitchen, dormitory, recreational rooms etc.;

(ii)

sufficient water including hot water for bathing and washing clothes, maintenance and cleanliness of the premises;

(iii)

proper drainage system with regular maintenance;

(iv)

arrangements for disposal of garbage;

- (v)
protection from mosquitoes by providing mosquito nets or repellants;
- (vi)
annual pest control;
- (vii)
sufficient number of well-lit and airy toilets with proper fittings in the proportion of at least one toilet for seven children;
- (viii)
sufficient number of well-lit and airy bathrooms with proper fittings in the proportion of at least one bath room for ten children;
- (ix)
sufficient space for washing and drying of clothes;
- (x)
washing machine wherever possible;
- (xi)
clean and fly-proof kitchen and separate area for washing utensils;
- (xii)
sunning of bedding twice every month and clothing on regular basis;
- (xiii)
maintenance of cleanliness in the Medical Centre;
- (xiv)
daily sweeping and wiping of all floors in the home;
- (xv)
cleaning or washing of the toilets and bathrooms twice everyday;
- (xvi)
proper washing of vegetables and fruits and hygienic manner of preparing food;
- (xvii)
cleaning of the kitchen slabs, floor and gas after every meal;
- (xviii)
clean and pest proof store for maintaining food articles and other supplies;
- (xix)
disinfection of the beddings at least once a year;
- (xx)
fumigation of a sick room or isolation room after every discharge in case of contagious or infectious disease; and
- (xxi)
cleanliness in medical centre.

32.

Daily Routine.

- (1)
Every Child Care Institution shall have a daily routine for children developed in consultation with the Children's Committees, which shall be prominently displayed at various places within the Child Care Institution.
- (2)
The daily routine may provide, inter alia, for a regulated and disciplined life, personal hygiene and cleanliness, physical exercise, yoga, educational classes, vocational training, organised recreation and games, moral education, group activities, prayer and community singing and special programmes for Sundays and holidays and national holidays, festive days, birthdays.

33.

Nutrition and Diet Scale.

- (1)
The following nutrition and diet scale shall be followed by the Child Care Institutions, namely:
 - (i)
the children shall be provided four meals in a day including breakfast;

(ii)

the menu shall be prepared with the help of a nutritional expert or doctor to ensure balanced diet and variety in taste as per the minimum nutritional standard and diet scale;

(iii)

every Child Care Institution shall strictly adhere to the minimum nutritional standard and diet scale suggested as specified below:

S.No.

Name of the articles of diet

Scale per head per day

1

Rice/Wheat/Ragi/Jowar

600 gms, (700 gms for 16-18 yrs age) of which
atleast 100 gms to be either Wheat or Ragi or Jowar or Rice.

2

Dal/ Rajma/ Chana

120 gms.

3

Edible Oil

25 gms.

4

Onion

25 gms.

5

Salt

25 gms.

6

Turmeric

05 gms.

7

Coriander Seed Powder

05 gms.

8

Ginger

05 gms.

9

Garlic

05 gms.

10

Tamarind/ Mango powder

05 gms.

11

Milk (at breakfast)

150 ml.

12

Dry Chillies

05 gms.

13

Vegetables Leafy Non V leafy

100 gms. 130gms.

14

Curd or Butter Milk

100 gms/ml.

15

Chicken once a week or Eggs 4 days

115 gms.

16

Jaggery& Ground Nut Seeds or Paneer

(vegetarian only)

60 gms each (100 gms for paneer) Once in a week.

17

Sugar

40 gms.

18

Tea/Coffee

5gm.

19

Sooji/Poha

150 gms.

20

Ragi

150 gms.

Following items for 50 Children per day

21

Pepper

25 gms.

22

Jeera Seeds

25 gms.

23

Black Gram dal

50 gms.

24

Mustard Seeds

50 gms.

25

Ajwain Seeds

50 gms.

On Chicken Day for 10 Kg. of Chicken

26

Garam Masala

10 gms.

27

Kopra

150 gms.

28

KhasKhas

150 gms.

29

Groundnut Oil

500 gms.

For Sick Children

30

Bread

500 gms.

31

Milk

500 ml.

32

Khichadi

300 gms.

Other Items

33

LP Gas for Cooking only

(2)

Children may be provided special meals on holidays, festivals, sports and cultural day and celebration of national festival.

(3)

Infants and sick children shall be provided special diet according to the advice of the doctor on their dietary requirement.

(4)

The requirement of each child shall also be taken into account including need for iron and folic acid supplements.

(5)

The menu for the day shall be prepared in consultation with the Children's Committee and shall be displayed in the dining hall.

(6)

Variation in diet may be as per seasonal and regional variations, a suggested diet variation is given below:-

(i)

varieties of dal e g., Toor (Arhar), Moong (Green Gram) and Chana (Bengal Gram) may be given alternatively;

(ii)

on non-vegetarian days, vegetarian children shall be issued with either 60 gms of jaggery and 60 gms of groundnut seeds per head in the shape of laddus or any other sweet dish or 100 gms paneer;

(iii)

leafy vegetables such as Fenugreek (Methi), Spinach (Palak), Sarson (Mustard leaves) Gongura/Thotakura or any other saag etc., may also be issued once in a week. If a kitchen garden is attached to any institution, leafy vegetables, should be grown and issued and the Superintendent should try to issue variety of vegetables and see that the same vegetable is not repeated for at least a period of one week;

(iv)

seasonal fruits shall be provided in a non-repetitive manner in sufficient quantities;

(v)

the Person-in-charge may make temporary alterations in the scale of diet in individual cases when considered necessary by him, or on the advice of the doctor of the institution subject to the condition that the scale laid down is not exceeded.

(7)

Meal Timing and Menu:

(i)

Breakfast V 7.30 a.m. to 8.30 a.m.

(a)

upma or chapattis made of Wheat or Ragi or any other dish;

(b)

chutneys from Gongura or fresh curry leave or fresh coriander or Coconut and Putnadal etc., dal or vegetable may be issued as a dish;

(c)

milk;

(d)

any seasonal fruit in sufficient quantity.

(ii)

Lunch at 12.30 to 1.30 P.M. and Dinner V 7.00 P.M. V 8.00 P.M

(a)

rice or Chapattis or combination of both;

(b)

vegetable curry;

(c)

sambar or dal;

(d)

butter Milk or curd.

(8)

Others:

(i)

depending on the season, the Person-in-charge shall have the discretion to alter the time for distribution of food;

(ii)

on the advice of the institution's doctor or at the discretion of the Person-incharge, every sick child who is prevented from taking regular food, on account of his ill-health, may be issued with medical diet as per the scale for sick children;

(iii)

extra diet for nourishment like milk, eggs, sugar and fruits shall be issued to the children on the advice of the institution doctor in addition to the regular diet, to gain weight or for other health reasons and for the purpose of calculation of the daily ration, the sick children shall be excluded from the day's strength;

(iv)

special lunch or dinner may be provided to the children at the Child Care Institution at the rate fixed by the Person-in-charge of the Child Care Institution, from time to time on national festivals and festival occasions, including:

(a)

Republic Day (26th January);

(b)

Independence Day (15th August);

(c)

Mahatma Gandhi's Birth day (2nd October);

(d)

Children's Day (14th November);

(e)

National festivals;

(f)

Local festivals ;

(g)

Annual Day of the Child Care Institution.

34.

Medical Care.

(1)

In all Child Care Institutions, a medical officer shall be made available on call whenever necessary for regular medical checkup and treatment of children.

(2)

A nurse or a para medic shall be available round the clock in all Child Care Institutions.

(3)

Every Child Care Institution may:

(i)

arrange for medical examination of each child admitted in an institution by the Medical Officer within twenty- four hours of admission and in special cases or medical emergencies immediately;

(ii)

arrange for a medical examination of child by the Medical Officer at the time of transfer within twenty four hours before transfer;

(iii)

maintain a medical record of each child on the basis of monthly medical check-up and provide necessary medical facilities;

(iv)

ensure that the medical record includes weight and height record, any sickness and treatment, and other physical or mental problems;

(v)

have facilities for quarterly medical check-ups including dental check-up, eye testing and screening for skin problems and for treatment of children;

(vi)

every institution to have first aid kit and all staff be trained in handling first aid;

(vii)

make necessary arrangements for the immunization of children;

(viii)

take preventive measures in the event of out-break of contagious or infectious diseases;

(ix)

keep sick children under constant medical supervision;

(x)

not carry out any surgical intervention in a hospital on any child without the previous consent of his parent or guardian, unless the parent or guardian cannot be contacted and the condition of the child is such that any delay would, in the opinion of the medical officer, involve unnecessary suffering or injury to the health of the child or danger to life, or without obtaining a written consent to this effect from the Person-in-charge of the institution;

(xi)

provide or arrange for regular counselling of every child and ensure specific mental health interventions for those in need of such services, including separate rooms for counselling sessions within the premises of the institution and referral to specialized mental health centers, where necessary; and

(xii)

refer such children who require specialized drug de-addiction and rehabilitation programme, to an appropriate centre administered by qualified persons where these programmes shall be adopted to the age, gender and other specifications of the child concerned.

(4)

Baseline investigation of Complete Blood Count (CBC), Urine Routine, HIV, VDRL, Hepatitis B and Hepatitis C tests and allergy or addiction to drugs shall be conducted for all children at the time of entry into the institution as suggested by the doctor after examining the child.

(5)

Test for pregnancy or diseases for victims of sexual offences shall be conducted, if required by the order of the Board or the Committee or the Children's Court. In such cases the District Child Protection Unit shall facilitate following of the procedures laid down in the Medical Termination of Pregnancy Act, 1971, if so needed.

(6)

The State Government through the District Child Protection Unit shall make provisions for those children diagnosed with special problems such as hormonal problems, immune -compromised diseases, physical and mental disabilities on the recommendation of the medical officer. The children shall be kept in special care homes or hospitals and avail necessary medical/ psychiatric and psychological support or treatment.

(7)

All girls who have attained puberty shall undergo health assessment to detect iron deficiency. Necessary dietary plan and medicines shall be prescribed by the nutritionist and appointed doctor, if need be.

(8)

A psycho- social profile of every child shall be maintained by the Child Care Institution and updated every month.

Special observations may be recorded, when required. Person-incharge of the institution shall ensure that any recommendations made shall be duly complied with.

35.

Mental Health.

(1)

The environment in an institution shall be free from abuse, allowing children to cope with their situation and regain confidence.

(2)

All persons involved in taking care of the children in an institution shall participate in facilitating an enabling environment and work in collaboration with the therapists as needed.

(3)

Mileu based interventions and individual therapy are must for every child and shall be provided in all institutions.

Explanation. - For the purpose of this sub-rule, "mileu based intervention" is a process of recovery, which starts through providing an enabling culture and environment in an institution so as to ensure that each child's abilities are discovered and they have choices and right to take decisions regarding their life and thus, develop and identify beyond their negative experiences, such intervention which has a critical emotional impact on the child.

(4)

Individual therapy is a specialized process and each institution shall make provisions for it as a critical mental health intervention.

(5)

Every institution shall have the services of trained counselors or collaboration with external agencies such as child guidance centers, psychology and psychiatric departments or similar Government and non-Governmental agencies, for specialized and regular individual therapy for the child.

(6)

The recommendations of mental health experts shall be maintained in every case file, as required.

(7)

No child shall be administered medication for mental health problems without a psychological evaluation and diagnosis by trained mental health professionals.

(8)

Medicines should be administered to the children only by trained medical staff and not by any other staff of the Home.

36.

Education.

(1)

Every institution shall provide education to all children according to the age and ability, both inside the institution or outside, as per requirement.

(2)

There shall be a range of educational opportunities including, mainstream inclusive schools, bridge school, open schooling, non formal education and learning where needed.

(3)

Wherever necessary, extra coaching shall be made available to school going children in the institutions by encouraging volunteer services or tying up with coaching centers or tutors.

(4)

Specialized trainers and experts shall be appointed to cater to the educational needs of children with special needs either physical or mental. Learning disorders shall be identified, assessed and reported in the Individual Care Plan. Further assistance shall be given to the child by trained professionals.

(5)

Regularity of the education programme and attendance of the children shall be ensured.

(6)

Children should be able to avail scholarships, grants and schemes and sponsorships.

37.

Vocational Training.

(1)

Every Child Care Institution shall provide gainful vocational training to children according to their age, aptitude, interest and ability, both inside or outside the Child Care Institution.

(2)

Vocational training shall include occupational therapy, skill and interest based training, aimed at suitable placement at the end of the course. The institute, preferably government recognized, providing vocational training shall give a certificate, on the completion of the course.

(3)

Where vocational training is offered outside the premises of the Child Care Institution, children shall be escorted for such programmes with proper security planning and services, particularly for children who are at risk.

(4)

A record shall be maintained for all children attending the programmes and the progress made by each child shall be reviewed. The report in that regard shall be submitted to the Board or the Committee or the Children's Court, as the case may be, on a quarterly basis.

38.

Recreational Facilities.

(1)

Recreational facilities may include indoor and outdoor games, yoga and meditation, music, television, picnic and outings, cultural programmes, gardening and library, etc.

(2)

Sufficient space shall be made available for outdoor sports and games.

(3)

Picnic and outings may include education fair or science fair, museum, planetarium, botanical garden, zoological garden, etc.,.

(4)

Cultural event or sports competition shall be held once in a quarter to showcase talent on festivals or on days of national festivals.

(5)

Library shall have child friendly environment. There shall be books in regional language, newspapers, children's magazines, puzzle books, picture books, books in braille, audio and video devices, etc.,.

(6)

Space in the home shall be made available for gardening with technical input being given by a gardener to the children.

(7)

Music, dance and art therapy may be included in the list of recreational activities to enhance the healing process of each child.

(8)

Regularity of the activities shall be maintained with support of institutions and non governmental organization, if needed and a report shall be submitted on quarterly basis to the Board or the Committee or the Children's Court, as the case may be.

39.

Management Committee.

(1)

Every Child Care Institution shall have a Management Committee for the management of the institution and monitoring the progress of every child.

(2)

In order to ensure proper care and treatment as per the individual care plans, children shall be grouped on the basis of age, nature of offence or kind of care required, physical and mental health and length of stay.

(3)

The Management Committee shall comprise of:

(i)

District Child Protection Officer (District Child Protection Unit)- Chairperson;

(ii)

Person-in-charge - Member-Secretary;

(iii)

Probation Officer or Child Welfare Officer or Case Worker V Member;

(iv)

Medical Officer V Member;

(v)

Psychologist or Counsellor V Member;

(vi)

Workshop Supervisor or Vocational Instructor V Member;

(vii)

Teacher V Member;

(viii)

Social Worker Member of the Board or the Committee V Member;

(ix)

two child representatives from each of the Children's Committees V Members;

(x)

any other special invitee with the consent of the Chairperson.

(4)

The Management Committee shall meet at least once every month to consider and review:

(i)

care in the institution, housing, area of activity and type of supervision or interventions required;

(ii)

medical facilities and treatment;

(iii)

food, water, sanitation and hygiene conditions;

(iv)

mental health interventions;

(v)

individual problems of children and institutional adjustment;

(vi)

quarterly review of individual care plans;

(vii)

provision of legal aid services;

(viii)

vocational training and opportunities for employment;

(ix)

education and life skills development programmes;

(x)

social adjustment, recreation, group work activities, guidance and counselling;

(xi)

progress, adjustment and modification of residential programmes to the needs of the children;

(xii)

planning post-release or post-restoration rehabilitation programme and follow up for a period of two years in collaboration with after care services, as the case may be;

(xiii)

pre-release or pre-restoration preparation;

(xiv)

release or restoration;

(xv)

post release or post-restoration follow-up;

(xvi)

minimum standards of care, including infrastructure and services available;

(xvii)

daily routine;

(xviii)

community participation and voluntary participation in the residential life of children such as education, vocational activities, recreation and hobby;

(xix)

all registers as required under the Act and the rules maintained by the institution, duly stamped and signed and to check and verify the registers in the monthly review meetings;

(xx)

matters concerning Children's Committees; and

(xxi)

any other matter which the Person-in-charge may like to bring up.

(5)

The Management Committee shall set up a complaint and redressal mechanism in every institution and a Children's Suggestion Box shall be installed in every institution at a place easily accessible to children away from the office set up and closer to the residence or rooms or dormitories of the children.

(6)

The key of the Children's Suggestion Box shall remain in the custody of the Chairperson of the Management Committee and shall be checked every week by the Chairperson of the Management Committee or his representative from District Child Protection Unit, in the presence of the members of the Children's Committees.

(7)

If there is a problem or suggestion that requires immediate attention, the Chairperson of the Management Committee shall call for an emergency meeting of the Management Committee to discuss and take necessary action.

(8)

The quorum for conducting emergency meetings shall be five members, including two members of Children's Committees, Chairperson of the Management Committee, Member of the Board or the Committee, as the case may be, and the Person-in-charge of the Child Care Institution.

(9)

In the event of a serious allegation or complaint against the Person-in-charge of the institution, he shall not be part of the emergency meeting and another available member of the Management Committee shall be included in his place.

(10)

All suggestions received through the suggestion box and action taken as a result of the decisions made in the emergency meeting or action required to be taken shall be placed for discussion and review in the monthly meeting of the Management Committee.

(11)

A Children's Suggestion Book shall be maintained in every institution where the complaints and action taken by the Management Committee are duly recorded and such action and follow up shall be communicated to the Children's Committees after every monthly meeting of the Management Committee.

(12)

The Board or Committee shall review the Children's Suggestion Book at least once a month.

(13)

The complaint box shall be accessible by the Chairperson of the Committee or any other person authorised by him.

40.

Children's Committees.

(1)

Person-in-charge of every institution for children shall facilitate the setting up of children's committees for different age groups of children, that is in the age group of 6 to 10 years, 11 to 15 years and 16 to 18 years and these children's committees shall be constituted solely by children.

(2)

Such children's committee shall be encouraged to participate in following activities:

- (i)
improvement of the condition of the institution;
- (ii)
reviewing the standards of care being followed;
- (iii)
preparing daily routine and diet scale;
- (iv)
developing educational, vocational and recreation plans;
- (v)
respecting each other and supporting each other in managing crisis;
- (vi)
reporting abuse and exploitation by peers and caregivers;
- (vii)
creative expression of their views through wall papers or newsletters or paintings or music or theatre;
- (viii)
management of institution through the Management Committee.

(3)
The Person-in-charge shall ensure that the children's committees meet every month and maintain a register for recording their activities and proceedings, and place it before the Management Committee in their monthly meetings.

(4)
The Person-in-charge shall ensure that the children's committees are provided with essential support and materials including stationary, space and guidance for effective functioning.

(5)
The Person-in-charge may, as far as feasible, seek assistance from local voluntary organisations or child participation experts for the setting up and functioning of the children's committees.

(6)
The local voluntary organisation or child participation expert shall support the children's committees in the following:

- (i)
electing their leaders and in devising the procedure to be followed for conducting the elections;
- (ii)
conducting the elections and monthly meetings;
- (iii)
framing rules for the functioning of children's committees and following it;
- (iv)
maintaining records and Children's Suggestion Book and other relevant documents; and
- (v)
any other innovative activity.

(7)
The Management Committee shall seek a report from the Person-in-charge on the setting up and functioning of the children's committees, review these reports in their monthly meetings and take necessary action or place the same before the Board or the Committee, wherever required.

41.
Inspection.

(1)
The State Government shall constitute State and district level inspection committees.

(2)
The State Inspection Committee shall comprise of a maximum of seven members from among the State Government, namely the Board or Committee, the State Commission for the Protection of Child Rights, the State Human Rights Commission, State Adoption Resource Agency, medical and other experts, voluntary organizations and reputed social workers. The Member-Secretary, State Child Protection Society shall be the Chairperson of the State Inspection

Committee.

(3)

The State Inspection Committee shall carry out inspections of the Child Care Institutions as defined under sub-section (21) of section (2) of the Act housing children in the State in Form 46.

(4)

The State Inspection Committee shall carry out random inspections of the institutions housing children to determine whether such institution is housing children in need of care and protection.

(5)

The State Inspection Committee shall submit report to the Secretary of the Department implementing the Act.

(6)

The State Inspection Committee shall make recommendations for improvement and development of the Institutions in accordance with the provisions of the Act and the rules made there under and shall forward the same to the State Child Protection Society or the District Child Protection Unit for appropriate action.

(7)

The State Inspection Committee shall interact with the children during visits to the institution to determine their well-being and to get their feedback.

(8)

The District Inspection Committee shall comprise of following members:

(i)

Member of the Board or the Committee;

(ii)

District Child Protection Officer as the Member Secretary;

(iii)

Medical Officer;

(iv)

one member of the civil society working in the area of child rights, care, protection and welfare;

(v)

one mental health expert who has experience of working with children.

(9)

The District Inspection Committee shall inspect all Child Care Institutions in the district in Form 46.

(10)

The inspection of the facilities housing children in the district shall be carried out at least once every three months.

(11)

The District Inspection Committee shall submit the report of the findings to the District Child Protection Unit or the State Government and shall also make suggestions for improvement and development of the Child Care Institutions in accordance with the provisions of the Act and the rules made there under.

(12)

The District Inspection Committee shall interact with the children during the visits to the institution to determine their well-being and to elicit their feedback.

(13)

The District Child Protection Unit shall take necessary follow up action on the report of the District Inspection Committee.

42.

Evaluation.

(1)

The evaluation of functioning of the Board, Committee, special juvenile police units, registered institutions, or recognised fit facilities and persons under the Act may be done by the Central Government or the State Government once in three years through institutions and agencies such as reputed academic institutions, schools of social work of Universities, Management Institutions, multi-disciplinary Committee especially constituted for the purpose etc.

(2)

The findings of the evaluation as per sub-rule (1) above shall be shared between the Central and State Governments in order to strengthen and improve the functioning of different structures.

Chapter VII

Adoption

43.

Adoption Related Reporting.

(1)

The Child Welfare Committees shall, furnish the data relating to children declared legally free for adoption and cases pending for decision to the Authority online in the formats provided in the Adoption Regulations and also to the respective State Adoption Resource Agencies, with the assistance of the District Child Protection Units.

44.

Children who are not being adopted after being declared legally free for adoption may be eligible for Foster Care.

(1)

The following categories of children may be considered for Foster Care in following circumstances:

(i)

Children in the age group of 0 to 6 years who are being considered by the Committee as legally free for adoption and those who have been declared legally free for adoption shall not as far as possible be considered for placement in foster care. Such children shall be provided a permanent family through adoption as per Adoption Regulations.

(ii)

If adoptable children between the age of 6 to 8 years do not get a family either in in-country adoption or in inter-country adoption within a period of two years after they are declared legally free for adoption by Child Welfare Committee, such children to be eligible to be placed in family foster care or group foster care, as the case may be, by the Committee on the recommendation of District Child Protection Unit or Specialised Adoption Agency.

(iii)

Children in the age group of 8 to 18 years, who are legally free for adoption but have not been selected by any Prospective Adoptive Parent (PAP) for one year to be eligible to be placed in family foster care or group foster care, as the case may be, by the Committee on the recommendation of District Child Protection Unit or Specialised Adoption Agency.

(iv)

Children with special needs, irrespective of the age, who do not get a family either in in-country adoption or in inter-country adoption within a period of one year after they are declared legally free for adoption by Child Welfare Committee, such children to be eligible to be placed in family foster care or group foster care, as the case may be, by the Committee on the recommendation of District Child Protection Unit or Specialised Adoption Agency, provided the Home Study Report of the foster family supports their fitness and group setting has facilities for care of such children.

(v)

Where the child has remained with a foster family for a minimum of five years other than in pre-adoption foster care, the foster family may apply for adoption and shall be given preference to adopt the child after the child has been declared legally free for adoption and after registering in Child Adoption Resource Information and Guidance System and according to procedures laid down in Adoption Regulations.

45.

Procedure before the Court.

(1)

The procedure for obtaining an Adoption Order from the court concerned would be as provided in Adoption Regulations.

(2)

The Court, for the purpose of an application for adoption order, shall not be bound by the procedure laid down in the Code of Civil Procedure, 1908 (5 of 1908) and Evidence Act, 1872. The procedure, as laid down in the Juvenile Justice (Care and Protection of Children) Act, 2015 and Adoption Regulations shall be followed.

46.

Period for disposal of applications.

(1)

The Court shall dispose of an application for making an adoption order within a period of two months from the date of filing of the application, as provided under sub-section (2) of section 61 of the Act and where the judge of the court concerned ordinarily exercising jurisdiction in such matters is not available for a period of more than one month, the

applications shall be disposed of within stipulated time by other senior most judge.

(2)

No information or Court order regarding adoption disclosing the identity of the child shall be uploaded on any portal except as may be stipulated in Adoption Regulations.

47.

Special provision for protection of adopted children.

- Any case of offence committed against adopted child shall be dealt as per the law applicable to any other child.

48.

Linkage of Child Care Institutions to Specialised Adoption Agencies.

- Linkage of Child Care Institutions with Specialized Adoption Agencies for the purpose of adoption shall be governed by the provisions of section 66 of the Act and Adoption Regulations.

49.

Additional Functions of the Authority.

(1)

The Authority shall perform the following functions, in addition to the functions specified in sub-section (1) of section 68 of the Act, namely:

(i)

receive applications of a non-resident Indian or overseas citizen of India or a foreigner living abroad through authorised adoption agency or Central Authority or the Government Department concerned or an Indian Diplomatic Mission and process the same in terms of sub-section (5) of section 59 of the Act;

(ii)

receive and process applications received from a foreigner or an overseas citizen of India residing in India for one year or more, and who is interested in adopting a child from India in terms of sub-section (12) of section 59 of the Act;

(iii)

issue no-objection certificate in all cases of inter-country adoptions;

(iv)

issue conformity certificate in the inter-country adoption cases under Article 23 of the 1993 Hague Convention on Protection of Children and Cooperation in respect of Inter-Country Adoption;

(v)

intimate the immigration authorities of India and the receiving country of the child about the inter-country adoption cases;

(vi)

maintain Child Adoption Resource Information and Guidance System for transparency in the adoption system;

(vii)

provide support and guidance to State Adoption Resource Agencies, District Child Protection Units, Specialised Adoption Agencies and other stakeholders of adoption and related matters, through trainings, workshops, exposure visits, consultations, conferences, seminars and other capacity building programmes;

(viii)

coordinate with State Governments and the State Adoption Resource Agencies and advise them in adoption related matters;

(ix)

establish uniform standards and indicators, relating to-

(a)

adoption procedure related to orphan, abandoned and surrendered children and also related to relative adoptions;

(b)

quality child care standards in specialised adoption agencies and child care institutions;

(c)

monitoring and supervision of service providers;

(d)

standardisation of documents in cases of adoptions;

(e)

safeguards and ethical practices including online applications for facilitating hassle-free adoptions.

(x)

conduct research, documentation and publication on adoption related matters;

(xi)

maintain a comprehensive centralised database relating to children and prospective adoptive parents for the purpose of adoption in Child Adoption Resource Information and Guidance System;

(xii)

maintain a confidential centralised database relating to children placed in adoption and adoptive parents in the Child Adoption Resource Information and Guidance System;

(xiii)

carry out advocacy, awareness and information, education, and communication activities for promoting adoption either by itself or through its associated bodies;

(xiv)

enter into bilateral agreements with foreign Central Authorities, wherever necessary under the Hague Adoption Convention; and

(xv)

authorise foreign adoption agencies to process applications of non-resident Indians or overseas citizen of India or foreign prospective adoptive parents for inter country adoption of Indian children.

50.

Terms and conditions of appointment of Members of the Steering Committee of the Authority.

(1)

A person for being selected or nominated as a member of the Steering Committee of the Authority shall:

(i)

be an Indian national;

(ii)

not be below the age of twenty-five years and above the age of sixty years, and for the member who is a adoptee as per clause (e) of sub-section (1) of section 69 of the Act , the minimum age would be twenty-one years;

(iii)

not have been convicted or sentenced to imprisonment for an offence under any law for the time being in force; and

(iv)

not have been removed or dismissed from service of the Central or State Government or a body or corporation owned or controlled by Central or State Government.

(2)

The members in clause (d) of sub-section (1) of section 69 of the Act, shall be from different zones on rotation basis.

(3)

The zones and the States covered for the purpose of selection of the members of the Steering Committee shall be as per the grouping made by Inter-State Council and North- Eastern Council from time to time. The States not covered in any of the zonal councils shall be included in the zone having geographical proximity.

(4)

The member from the State Adoption Resource Agency would be selected from the State of the zone under consideration on the basis of:

(i)

number of inspections of Specialised Adoption Agencies conducted by the State Adoption Resource Agency;

(ii)

regularity in conducting the quarterly meetings of the Specialised Adoption Agencies and uploading of the minutes of such meetings in the Child Adoption Resource Information and Guidance System;

(iii)

level of data integrity maintained by the State Adoption Resource Agency among the Specialised Adoption Agencies through the District Child Protection Units concerned;

(iv)

capacity building of stakeholders as well as publicity awareness activities of State Adoption Resource Agency for the promotion of adoption in the State; and

(v)

level of coordination with other stakeholders in the State as well as with the Authority.

(5)

The selected State Adoption Resource Agency would be represented in the Steering Committee by the Secretary of the Department of the State Government dealing with adoption or his representative not below the rank of Deputy Secretary or Joint Director of the State Government.

(6)

The members of the Specialised Adoption Agencies would be selected as per the following criteria available in the Child Adoption Resource Information and Guidance System and as per the record available with the Authority:

(i)

the number of children given in adoption;

(ii)

performance and data integrity in the Child Adoption Resource Information and Guidance System;

(iii)

follow-up of the progress of children placed in adoption;

(iv)

record keeping and documentation;

(v)

child care standards; and

(vi)

no proven complaint of malpractice against the agency.

(7)

The Specialised Adoption Agencies shall be represented by their President or Chairperson or General Secretary or Secretary or Managing Trustee or Director or Manager, as the case may be.

(8)

The selection of the member from the category of advocate or professor in family law shall be from a combined panel of four names, with two names from each category, received from the National Legal Services Authority.

(9)

The members of the Steering Committee, under clause (e) and (f) of sub-section (1) of section 69 of the Act, shall be selected or nominated by a Committee comprising of:

(i)

Secretary, Ministry of Women and Child Development as the Chairperson;

(ii)

Additional Secretary or Joint Secretary in-charge of the Authority in the Ministry of Women and Child Development as member;

(iii) one external expert in the field of child protection as nominated by the Minister for Women and Child Development, as member; and

(iv)

Member Secretary of the Steering Committee, as the Member-Convener.

(10)

The members of the Steering Committee other than ex-officio members shall be appointed with the approval of the Minister for Women and Child Development.

(11)

The tenure of the members of the Steering Committee, other than the ex-officio members shall be two years from the date of appointment, unless the member resigns or is removed or attains the age of sixty years.

(12)

A non-ex-officio member shall not be eligible for a second term.

(13)

In case of any vacancy, a new member will be nominated or selected for the remaining period of the tenure from the same State from the same category.

(14)

A non-ex-officio member of the Steering Committee of the Authority shall cease to be a member if:

- (i)
he resigns as a member, or
- (ii)
he ceases to hold the position by virtue of which he has been represented as a member; or
- (iii)
he is removed on the following grounds:
 - (a)
on being adjudged as an insolvent, or
 - (b)
is convicted of a criminal offence involving moral turpitude, or,
 - (c)
fails to attend three consecutive meetings of the Steering Committee without the leave of the Chairperson of the Steering Committee, or
 - (d)
is found working against the objectives of the adoption programme, the interests of the Authority and is found to be not following the regulations as applicable, or
 - (e)
is found divulging any transaction of business or deliberations in the meetings of the Steering Committee or any document or information circulated to them for the purpose, to media or any other agency, without the prior approval or authorisation of the Chairperson, or
 - (f)
is found accepting benefaction from any source that involves conditions or obligations that are contrary to the mandates and objectives of the Authority.

(15)

A non-ex-officio member other than State Adoption Resource Agency shall be entitled to a sitting fee of Rs.1,000/- per sitting, for attending a meeting of the Steering Committee, travelling allowance in economy class air fare, hotel accommodation and food bill as per the Central Government Rules.

51.

Transaction of business of the Steering Committee of the Authority.

(1)

The Steering Committee of the Authority shall meet once in a month.

(2)

The transaction of business of the Steering Committee may also be convened by circulation in case of urgency and such transaction of business shall have the same effect as if it had been transacted at a formal meeting.

(3)

A meeting of the Steering Committee shall be convened by the Member- Secretary with the approval of the Chairperson.

(4)

The meeting notice shall be issued by the Member-Secretary at least seven working days before the actual date of the meeting.

(5)

An extra ordinary meeting of the Steering Committee may be convened by the Chairperson at any time.

(6)

Five members of the Steering Committee shall form the quorum for the meeting.

(7)

The meeting shall be presided over by the Chairperson and in his absence, a member nominated or designated by the Chairperson.

(8)

All decisions in the Steering Committee shall be taken by majority of the members present excluding the special invitees, if any.

(9)

In case of tie, the Chairperson shall have the casting vote.

(10)

The minutes of the meeting will be authenticated by the Member-Secretary after obtaining the approval of the same by the Chairperson.

(11)

Any other matter relating to the transaction of business of the Steering Committee shall be governed by the procedure adopted by the Steering Committee, whenever required.

52.

Annual Report of the Authority.

(1)

The Chief Executive Officer or any other officer of the Authority duly authorised by the Chief Executive Officer in this behalf shall cause to be prepared the annual report of the Authority under sub-section (1) of section 71 of the Act on or before the 30th day of June following the financial year to which that report relates.

(2)

The annual report prepared under sub-rule (1) shall, after approval by the Steering Committee be signed and authenticated by the Chief Executive Officer.

53.

Accounts and audit of the Authority.

(1)

The annual statement of accounts of the Authority for every financial year shall be prepared by the Chief Executive Officer or such officer of the Authority as may be authorised by the Chief Executive Officer in this behalf.

(2)

The Authority shall forward to the Central Government quarterly reviews of expenditure incurred and the expenditure likely to be incurred during the remaining part of the financial year.

(3)

The Chief Executive Officer shall supervise the maintenance of the accounts of the Authority, the compilation of financial statement and returns and shall also ensure that all account books, connected vouchers and other documents and papers of the Authority required by the office of the Comptroller and Auditor General for the purpose of auditing the accounts of the Authority are placed at the disposal of that office.

(4)

The accounts of the Authority shall be maintained in the formats prescribed by the office of the Comptroller and Auditor General of India from time to time.

(5)

The annual statement of accounts shall be signed and authenticated by the Chief Executive Officer.

(6)

The annual statement of accounts of the Authority shall be submitted to the office of the Comptroller and Auditor General on or before the 30th of June of the following year to which the accounts relate, which shall audit the accounts of the Authority and submit the audit report.

(7)

The Authority shall, within thirty days of the receipt of the audit report, remedy any defect or irregularity pointed out therein, and submit its report to the Central Government and to the office of the Comptroller and Auditor General about the action taken by it.

Chapter VIII

Offences Against Children

54.

Procedure in cases of offences against children.

(1)

A complaint of an offence against a child may be made by child, family, guardian, friend or teacher of the child, child line services, incharge of any staff of Nursing Home, Hospital, maternity home, police, labour inspector, Child Marriage Prohibition Officer, representative of anti human trafficking unit, officer district child protection unit or any other individual or child care institutions or organisation concerned.

(2)

On receipt of information in respect of a cognizable offence against a child, the police shall register a First Information Report (FIR) forthwith.

(3)

On receipt of information of a non- cognizable offence against a child, the police shall make an entry in the Daily Diary which shall be transmitted to the Magistrate concerned forthwith who shall direct appropriate action under sub-section (2) of section 155 of the Code of Criminal Procedure, 1973.

(4)

In all cases of offences against children, the investigation shall be conducted by the Child Welfare Police Officer.

(5)

Where any offence under the Act is committed by a Child Care Institution including a Specialised Adoption Agency, the Committee or the Board as the case may be, may pass appropriate orders for placing the children already placed with the Child Care Institution or the Specialised Adoption Agency in any other Child Care Institution or Specialised Adoption Agency and recommending the cancellation of the registration and withdrawal of recognition of such institution or agency.

(6)

Where an FIR is registered against a person working with a Child Care Institution including Specialised Adoption Agency for any offence under the Act and the rules, such a person shall be debarred from working directly with the children during the pendency of the criminal case.

(7)

Where a person has been dismissed from service or is convicted of an offence under the Act and the rules, he shall stand disqualified from any further appointment.

(8)

In no case a child shall be placed in a police lock-up or lodged in a jail.

(9)

The child and his family shall be provided access to paralegal volunteers under the District Legal Service Authority.

(10)

An immediate need assessment of the child will be conducted in terms of the need for food, clothing, emergency medical care, counselling, psychological support and the same shall be immediately extended to the child at the police station.

(11)

Where a child has been subjected to sexual abuse, the child may be referred to the nearest District Hospital or One-Stop Crisis Centre, as the case may be, if locally available.

(12)

Special children's rooms may be designated in every Court Complex with facility for separate space for children waiting and children who are giving their statement or interview; separate entrances, wherever feasible; video-conferencing facilities for interacting with children, wherever possible; provision for entertainment for children such as books, games, etc. Statements and interviews, other than during trial of children who are, victims, or witnesses, shall be recorded through child friendly procedure in a children's room.

(13)

The statement or the interview of the victim/ witness child shall be conducted while ensuring the following conditions:

(i)

The Magistrate shall record the statement of the child under section 164 of the Code of Criminal Procedure, 1973 in the Children's room or, if possible in the child's place of residence including, home or institution where he or she is residing.

(ii)

The statement shall be recorded verbatim as spoken by the child.

(iii)

The statement may also be recorded by audio-visual means as per the provisions of sub-section (1) of section 164 of the Code of Criminal Procedure, 1973.

(iv)

The child may be accompanied by parent or guardian or social worker.

(14)

The Legal Services Authority may provide a support person or para legal volunteer for pre-trial counselling and to accompany the child for recording of the statement who shall also familiarize the child with the Court and Court environment in advance, and where the child is found to have been disturbed by the experience of coming to the Court, orders for video-conferencing may be passed by the Court, on an application moved by the support person or para-legal volunteer or by the Legal Services Authority, on behalf of the child.

(15)

If the child victim or witness does not belong to the District or State or Country, the statement or interview or deposition of the child may also be recorded through video conferencing.

(16)

Where video-conferencing is not possible, all necessary accommodation, travel expenses for the child and a guardian/ngo worker/case worker/social worker accompanying the child will be provided as per actual by the State Government or Union Territory Administration.

(17)

Separate rooms for vulnerable witnesses may be designated in every Court Complex to record the evidence of child witnesses.

(18)

During a trial involving children, as far as possible, the following norms may be followed to ensure a child-friendly atmosphere:

(i)

Parents or guardian(s) shall accompany the child at all times (only if it is in the best interest of the child). If the said person has a conflict of interest, another person of the child's choice, or fit person, or representative of the fit institution identified, or psychologist appointed by the Committee or Court, shall accompany the child at all times, on approval of the Court.

(ii)

Psychological counselling may also be provided to the child wherever necessary.

(iii)

In a situation where parents or guardians may have been involved in the commission of the crime, or where the child is living in a place where the child is at risk of further trauma, and the same is brought to the notice of the Court, or the Court on its own motion shall direct the child to be taken out of the custody or care, or out of such situation and the child should be immediately produced before the Committee.

(iv)

For the age determination of the victim, in relation to offences against children under the Act, the same procedures mandated for the Board and the Committee under section 94 of the Act to be followed.

(v)

The language(s) used to be familiar to the child and if needed translators and special educators to be made available.

(vi)

Before the statement of the child is recorded, the Court to ensure that the child is capable of making a voluntary statement.

(vii)

No statement of the child to be disregarded as evidence in the trial solely on the basis of the age of the child.

(viii)

Images or statements admissible in the interview of the child not to be detrimental to the mental or physical well-being of the child.

(ix)

Length and questions admissible at the interview not to be taxing and to be suitable to the attention span of the child.

(x)

In case of young children, or otherwise incapacitated child, alternative methods of interaction and evidence collection that is less intimidating to be adopted.

(xi)

The Court to ensure that at no stage during trial, the child comes face to face with the accused.

(xii)

Special permission from school and arrangement for remedial classes for days lost to be ensured by the school authorities.

(19)

The child may be represented, as the case may be, by:

(i)

a lawyer of his choice, or,

(ii)

public prosecutor, or,

(iii)

a lawyer designated or empanelled by the Legal Services Authority.

(20)

All functionaries of the Court and others concerned may be sensitised on the special needs of children and child rights.

(21)

After the process of trial:

(i)

The child or guardian should be informed of the decision of the judicial proceeding and its implication.

(ii)

The child or guardian should be made aware of his legal options.

(22)

The State Government, the Juvenile Justice Board, the Child Welfare Committee and other competent authorities shall, in the best interest of children, ensure that every person, child care institution, school or such other educational institutions abide by the guidelines issued from time to time by State Government.

(23)

The State Government shall, in the best interest of the child, develop age-specific curriculum on child rights education, gender sensitivity and empowerment, and crimes against children, teaching and empowering both children and teachers on various aspects of protection against drug abuse, trafficking, child sexual abuse and exploitation, and gender sensitivity, and other aspects of violence against children.

(24)

A victim of trafficking, exploitation, child labour shall be produced before the Committee and Committee shall issue necessary directions to concerned authority for the rehabilitation of the child

55.

Procedure in case of offence under section 75 of the Act.

(1)

For the purposes of section 75 of the Act and this rule, giving a child in marriage shall be considered as cruelty to the child. On receipt of information of risk of a child being given in marriage, the police or any officer authorised under the Act or under the Prohibition of Child Marriage Act, 2006 (6 of 2007), shall produce the child before the Committee for appropriate directions and rehabilitative measures.

(2)

Where an act of cruelty to a child takes place in a Child Care Institution, or a school, or a hostel, or any residential facility or in any other place of care and protection to the child, considering the best interest of the child, the Board or the Committee or the Children's Court after consultation with the child and or parents or guardians shall provide alternative rehabilitation for the child.

(3)

A child covered under the Act requiring immediate medical attention shall be provided with required medical care and treatment by a hospital or clinic or facility upon a direction of the Board or the Committee made in this regard, free of cost. A failure to respond immediately resulting in serious injury, irreversible damage or threat to life or death shall be deemed to be willful neglect of the child and shall tantamount to cruelty under section 75 of the Act on the direction of the Board or the Committee after a detailed inquiry.

56.

Procedure in case of offence under section 77 of the Act.

(1)

Whenever a child is found to be under the influence of, or in possession of intoxicating liquor or narcotic drugs or psychotropic substances or tobacco products, including for the purpose of sale, the police shall enquire as to how the child came under the influence of, or possession of such intoxicating liquor or narcotic drugs or psychotropic substances or tobacco products and shall register an FIR forthwith.

(2)

The child who has been administered narcotic drugs or psychotropic substances or is found under the influence of the same may be produced either before the Board or the Committee as the case may be, and the Board or the Committee shall pass appropriate orders regarding rehabilitation and de-addiction of the child.

(3)

In case of a child found to be addicted to intoxicating liquor or tobacco products, the child shall be produced before the Committee which shall pass directions for rehabilitation including de-addiction of the child and transfer the child to a fit facility identified for the purpose.

(4)

In case any child is found to have been administered intoxicating liquor or narcotic drugs or psychotropic substances or tobacco products in a Child Care Institution, the child shall be produced immediately before the Board or the Committee, except in such cases where the child is not in a position to be produced before the Board or the Committee and requires immediate medical attention.

(5)

The Board, shall on its own or on complaint received from the Committee, issue directions to the police to register an FIR immediately.

(6)

The Board or the Committee shall also issue appropriate directions for inquiry as to the circumstances in which such product entered the Child Care Institution and reached the child and shall recommend appropriate action against the erring officials and the Child Care Institution.

(7)

The Board or the Committee may also issue directions for transfer of the child to another Child Care Institution as the case may be.

(8)

Any shop selling intoxicating liquor, tobacco products, must display a message at a prominent place on their shop that giving or selling intoxicating liquor or tobacco products to a child is a punishable crime with upto seven years of rigorous imprisonment and a fine of upto one lakh rupees.

(9)

All tobacco products and intoxicating liquor must display a message that giving or selling intoxicating liquor or tobacco products to a child is a punishable crime with upto seven years of rigorous imprisonment and a fine of upto one lakh rupees.

(10)

Giving or selling of intoxicating liquor, narcotic drugs or psychotropic substances or tobacco products within 200 meters of a Child Care Institution or any other home registered or recognised under the Act, or the office of a Committee or a Board shall be deemed to be an offence under section 77 of the Act.

57.

Procedure in case of offence under section 78 of the Act.

(1)

Whenever a child is found to be vending, carrying, supplying or smuggling an intoxicating liquor, narcotic drug, or psychotropic substance, the police shall enquire how and from whom the child came into possession of the intoxicating liquor, narcotic drug, or psychotropic substance and shall register an FIR forthwith.

(2)

A child who is alleged to have committed an offence under section 78 of the Act shall be produced before the Board, which may transfer the child to the Committee, if the child is also in need of care and protection.

58.

Procedure in case of offence under section 80 of the Act.

(1)

Where any orphan, abandoned or surrendered child, is offered or given or received for the purpose of adoption without following the procedures as provided in the Act and the rules, the police shall, suo motu, or on receipt of information in that regard register an FIR forthwith.

(2)

A child who has been so offered, given or received for the purpose of adoption shall be produced before the Committee forthwith which shall pass appropriate directions for rehabilitation of the child, including placing such child in a Specialised Adoption Agency.

(3)

Wherever any offence under section 80 of the Act is committed by a recognised Specialised Adoption Agency or by a person associated with such an agency, the Committee may also pass appropriate orders for placing the other children placed with the Specialised Adoption Agency in any other Child Care Institution or Specialised Adoption Agency.

59.

Procedure in case of offence under section 81 of the Act.

(1)

On receipt of information about the selling or buying of a child, the police shall register an FIR forthwith.

(2)

Giving or agreeing to give, receiving or agreeing to receive any payment or reward in consideration of adoption, except as permitted under the adoption regulations framed by the Authority, towards the adoption fees or service charge or child care corpus by any prospective adoptive parent(s) or parent or guardian of the child or the Specialised Adoption Agency shall amount to an offence under section 81 of the Act and this rule.

(3)

A child, who has been subjected to buying or selling, shall be produced before the Committee forthwith which shall pass appropriate orders for the rehabilitation of the child.

(4)

Where any offence under section 81 of the Act is committed by a parent or a guardian of the child or any other person having actual charge or custody of the child, the Committee shall pass appropriate orders for placing the child in a Child Care Institution or fit institution or with a fit person, as the case may be.

(5)

Where any offence under section 81 of the Act is committed by a Child Care Institution including Specialised Adoption Agency or by a hospital or nursing home or maternity home, or a person associated with such an institution or agency, the Committee may also pass appropriate orders for placing the other children placed with such Child Care Institution or Specialised Adoption Agency or hospital or nursing home or maternity home in any other Child Care Institution or Specialised Adoption Agency or hospital or nursing home or maternity home, as the case may be.

(6)

The Committee shall recommend to the State Government that the registration or recognition of such agency or institution or the registration or license of such a hospital or nursing home or maternity home or such associated person under any law for the time being in force shall also be withdrawn.

60.

Procedure in case of offence under section 82 of the Act.

(1)

A complaint of subjecting a child to corporal punishment under section 82 of the Act may be made by the child or any one on his behalf.

(2)

Every Child Care Institution shall have a complaint box at a prominent place in the building to receive complaints of corporal punishment.

(3)

The complaint box will be opened in the presence of a representative of the District Child Protection Unit once a month.

(4)

All such complaints shall be forthwith presented before the Judicial Magistrate of First Class nearest to the Child Care Institution and copies thereof shall be forwarded to the Board or the Committee.

(5)

The Judicial Magistrate shall get the case investigated by the Child Welfare Police Officer concerned and take appropriate measures on receipt of a complaint.

(6)

The Board or the Committee may consider transferring the child to another Child Care Institution in the best interest of the child who has made the complaint or who has been subjected to corporal punishment.

(7)

Where the Judicial Magistrate First Class finds that the management of the institution is not cooperating with the inquiry or complying with the orders of the court under subsection (3) of section 82 of the Act, the Judicial Magistrate First Class will either take cognizance of the offence himself or direct the registration of FIR and proceed against the person in-charge of the management of the institution.

(8)

Where the Board or the Committee or the State Government issues any directions to the management of the institution in respect of any incident of corporal punishment in the child care institution, the management shall comply with the same.

(9)

In the event of non-compliance, the Board on its own or on the complaint of the Committee or the State Government shall direct the registration of an FIR under sub-section (3) of section 82 of the Act.

(10)

Where a person has been dismissed from service or debarred from working directly with children or is convicted of an offence of subjecting a child to corporal punishment under sub-section (2) of section 82 of the Act, he shall stand disqualified from any further appointment under the Act and the rules.

Chapter IX

Miscellaneous

61.

Duties of the Person-in-charge of a Child Care Institution.

(1)

The primary responsibility of the Person-in-charge is of maintaining the Child Care Institution and of providing care and protection to the children.

(2)

The Person-in-charge shall stay within the premises to be readily available as and when required by the children or the staff and in case where an accommodation is not available in the premises, he shall stay at a place in close proximity to the Child Care Institution till such time such accommodation is made available within the premises of the Child Care Institution.

(3)

The general duties and functions of the Person-in-charge shall include, to:-

(i)

ensure compliance with the provisions of the Act and the rules and orders made there under;

(ii)

ensure compliance with the orders of the Board or the Committee or the Children's Court;

(iii)

provide homely and enabling atmosphere of love, affection, care and concern for children;

(iv)

strive for the development and welfare of the children;

(v)

supervise and monitor discipline and well-being of the children and the staff;

(vi)

plan, implement and coordinate all activities, programmes and operations, including training and treatment programmes or correctional activities as the case may be;

(vii)

segregate a child suffering from contagious or infectious diseases on the advice of the medical officer of the institution;

- (viii)
segregate a child wherever required;
- (ix)
ensure observance and follow-up of daily routine activities;
- (x)
organize local and national festivals in the home;
- (xi)
organize trips or excursions or picnics for children;
- (xii)
send a list of children in Form 40 in the Child Care Institution to the Board or the Committee, as the case may be, every week and bring to the notice of the Board or the Committee, if no date is given for the production of any child before the Board or the Committee;
- (xiii)
allocate duties to personnel;
- (xiv)
maintain standards of care in the Child Care Institution;
- (xv)
ensure proper storage and inspection of food stuffs as well as food served;
- (xvi)
maintain the buildings and premises of the Child Care Institution;
- (xvii)
maintain proper hygiene in the home;
- (xviii)
provide accident and fire preventive measures, disaster management within the premises and also keep first aid kit;
- (xix)
make stand-by arrangements for water storage, power back-up, inverters, generators;
- (xx)
ensure careful handling of equipment;
- (xxi)
employ appropriate security measures;
- (xxii)
conduct periodical inspections, including daily inspection and rounds of the Child Care Institutions;
- (xxiii)
take prompt action to meet emergencies;
- (xxiv)
ensure prompt, firm and considerate handling of all disciplinary matters;
- (xxv)
ensure proper and timely maintenance of the case files;
- (xxvi)
maintain all records and registers required under the Act and these rules;
- (xxvii)
prepare the budget and maintain control over financial matters;
- (xxviii)
organise the meetings of the Management Committee set up under rule 39 of these rules and provide necessary support;
- (xxix)
ensure monthly verification of all records and registers by the Management Committee set up under rule 39 of the rules;
- (xxx)
liaise, co-ordinate and co-operate with the State Child Protection Society and the District Child Protection Unit as and when required;
- (xxxi)

co-ordinate with the legal cum Probation Officer in the District Child Protection Unit or the District or State Legal Services Authority to ensure that every child is legally represented and provided free legal aid and other necessary support.

(xxxii)

ensure the production of the child before the Board or the Committee or the Children's Court on the date of such production and to ensure that the dates for the said purpose are recorded.

(4)

The Person-in-charge shall inspect the Child Care Institution as often as possible but not less than twice a day. He shall make a record of the timings of his inspection and also note his observations in a separate book maintained for the purpose, especially with regard to:

(i)

maintenance of hygiene and sanitation,

(ii)

maintenance of order,

(iii)

quality and quantity of food,

(iv)

hygienic maintenance of food articles and other supplies,

(v)

hygiene in the medical center and provisions for medical care,

(vi)

behaviour of the children and staff,

(vii)

security arrangements, and

(viii)

maintenance of files, registers and books.

(5)

Anything irregular that comes to the notice of the Person-in-charge shall be enquired into and resolved and the date, time and nature of the action taken shall be noted in the book.

(6)

Where a problem of urgent nature has not been resolved within two working days, the Board or the Committee or the District Child Protection Unit shall be informed.

(7)

In case the Person-in-charge is on leave or otherwise not available, the duties of the Person-in-charge shall be performed by the Child Welfare Officer as designated by the Person-in-charge.

62.

Duties of the Child Welfare Officer or Case Worker.

(1)

Every Child Welfare Officer or Case Worker in the Child Care Institution shall carry out all directions given by the Board or the Committee or the Children's Court.

(2)

The Child Welfare Officer or Case Worker shall establish linkages with voluntary workers and organisations to facilitate rehabilitation and social re-integration of the children and to ensure the necessary follow up.

(3)

The Child Welfare Officer or Case Worker available in the Child Care Institution at the time of receiving a child shall interact with the child received with a view to put the child at ease and befriend him and shall supervise the process of receiving of the child.

(4)

On receipt of information from the police or Child Welfare Police Officer or on arrival of a child in the Child Care Institution, the Child Welfare Officer or Case Worker shall forthwith conduct social investigation of the child through personal interviews with the child and his family members, social agencies and other sources, inquire into antecedents

and family history of the child and collect such other material as may be relevant, and submit the Social Investigation Report to the Board or the Committee or the Children's Court, within fifteen days.

(5)

All the children in the Child Care Institution shall be assigned to a Child Welfare Officer or Case Worker and such Child Welfare Officer or Case Worker shall be responsible for the child assigned to him in all respects viz. care and development of the child, reporting to the Board or the Committee or the Children's Court about the child or maintaining the child's record in the Child Care Institution.

(6)

Upon assignment of the child to a Child Welfare Officer or Case Worker, the Child Welfare Officer or Case Worker shall:

(i)

Prepare the case file of the child;

(ii)

Maintain the Protective Custody Card;

(iii)

Prepare and maintain the medical record of the child and ensure that the treatment of the child is not interrupted or neglected;

(iv)

Meet the child every day to ensure his safety, welfare and development; assist the child to adjust to the life in the Child Care Institution. A newly received child shall be met more often than once a day;

(v)

Gather information about the child within the initial five days to ascertain the child's education, vocational status and aptitude and emotional status;

(vi)

Have the necessary medical or mental tests, assessments and examinations of the child conducted;

(vii)

Study the reports and prepare in consultation with the child and his family members, an individual care plan for the child in Form 7 for the period pending inquiry, to be placed in the case file of the child. The Child Welfare Officer or Case Worker may consult the counsellor, psychologists or such other person as he deems fit in this regard;

(viii)

In keeping with the individual care plan, a daily routine shall be developed for the child and explained to him;

(ix)

Ensure that the child adheres to the routine activities so developed and take timely reports from the caregivers in this respect;

(x)

Review periodically the implementation and effectiveness of the individual care plan and if necessary, suitably modify the individual care plan in Form 7 and/or the routine activities of the child with the approval of the Management Committee;

(xi)

Resolve the problems of the child and deal compassionately with their difficulties in life in the Home;

(xii)

Participate in the orientation, monitoring, education, vocational and rehabilitation programmes in respect of the child and attend parent teacher meetings in schools in respect of children assigned to them;

(xiii)

Attend proceedings of the Board or the Committee or the Children's Court and furnish all information and file all reports that may be called for;

(xiv)

On receiving the copy of the order of declaration of age, to make the necessary changes in the record as regards the age of the child if any change is required and to place the copy of the said order in the case file of the child;

(xv)

Participate in the pre-release programme and help the child to establish contact which can provide emotional and social support to the child after the release;

(xvi)

Maintain contact with the children after their release and extend help and guidance to them;

(xvii)

Visit regularly the residence of the child under their supervision and also places of employment or school attended by such child and submit fortnightly reports or as otherwise directed;

(xviii)

Accompany the child wherever possible from the Board or the Committee or the Children's Court to Child Care Institution as the case may be;

(xix)

Maintain record of the next date of production of the child before the Board or the Committee or the Children's Court or for medical treatment and ensure the production of the child before the Board or the Committee or the Children's Court or for medical treatment on the said date;

(xx)

Maintain the registers as may be specified from time to time;

(xxi)

Any other duty assigned by the Person-in-charge of the Child Care Institution.

(7)

The Child Welfare Officer or Case Worker who has been assigned the duty of verifying the daily cleaning in the premises of Child Care Institution shall do so twice a day, one after the morning cleaning and the other after the evening cleaning. The Child Welfare Officer or Case Worker shall make a note of the same in the House-keeping register.

(8)

The Child Welfare Officer or Case Worker who has been assigned the duty of verifying the daily cooking shall make a note of the same in the Meals Register, in respect of every meal.

63.

Duties of the House Mother or House Father.

(1)

Every house father or house mother shall abide by the directions of the Person-in-charge.

(2)

The general duties, functions and responsibilities of a house father or house mother shall be as follows:

(i)

handle every child in the Child Care Institution with love and affection;

(ii)

take proper care of the child and ensure his welfare;

(iii)

provide each child upon his reception with all necessary supplies like clothing, toiletries and such other items required for daily usage.;

(iv)

replenish the provisions or supplies as per scale and need of the child;

(v)

maintain discipline among the children;

(vi)

ensure that the children maintain personal cleanliness and hygiene;

(vii)

look after maintenance, sanitation and maintain hygienic surroundings;

(viii)

implement the daily routine of every child in an effective manner and ensure the participation of the children;

(ix)

look after safety and security arrangements in the Child Care Institution;

(x)

escort the children whenever they go out of the Child Care Institution for purposes other than production before the Board or the Committee or the Children's Court;

- (xi) report to the Person-in-charge and to the Child Welfare Officer about the child assigned to the Child Welfare Officer;
- (xii) maintain the registers, relevant to their duties; and
- (xiii) any other duty as may be assigned by the Person-in-charge of the Child Care Institution.

64.

Duties of a Probation Officer.

(1)

On receipt of information from the Police or Child Welfare Police Officer under clause (ii) of sub-section (1) of section 13 of the Act, without waiting for any formal order from the Board, the Probation Officer shall inquire into the circumstances of the child as may have bearing on the inquiry by the Board and submit a social investigation report in Form 6 to the Board.

(2)

The social investigation report should provide for risk assessment, including aggravating and mitigating factors highlighting the circumstances which induced vulnerability such as traffickers or abusers being in the neighbourhood, adult gangs, drug users, accessibility to weapons and drugs, exposure to age inappropriate behaviours, information and material.

(3)

The Probation Officer shall carry out the directions given by the Board and shall have the following duties, functions and responsibilities:

(i)

To conduct social investigation of the child in Form 6;

(ii)

To attend the proceedings of the Board and the Children's Court and to submit reports as and when required;

(iii)

To clarify the problems of the child and deal with their difficulties in institutional life;

(iv)

To participate in the orientation, monitoring, education, vocational and rehabilitation programmes;

(v)

To establish co-operation and understanding between the child and the Person-in-charge;

(vi)

To assist the child to develop contacts with family and also provide assistance to family members;

(vii)

To participate in the pre-release programme and help the child to establish contacts which could provide emotional and social support to the child after release;

(viii)

To establish linkages with Probation Officers in other Districts and States for obtaining social investigation report, supervision and follow-up.

(ix)

To establish linkages with voluntary workers and organisations to facilitate rehabilitation and social reintegration of children and to ensure the necessary followup;

(x)

Regular post release follow-up of the child extending help and guidance, enabling and facilitating their return to social mainstreaming;

(xi)

To prepare the individual care plan and post release plan for the child;

(xii)

To supervise children placed on probation as per the individual care plan;

(xiii)

To make regular visits to the residence of the child under his supervision and places of employment or school attended

by such child and submit periodic reports as per Form 10;

(xiv)

To accompany children where ever possible, from the office of the Board to the observation home, special home, place of safety or fit facility as the case may be;

(xv)

To evaluate the progress of the children in place of safety periodically and prepare the report including psycho-social and forward the same to the Children's Court;

(xvi)

To discharge the functions of a monitoring authority where so appointed by the Children's Court;

(xvii)

To maintain a diary or register to record his day to day activities such as visits made by him, social investigation reports prepared by him, follow up done by him and supervision reports prepared by him;

(xviii)

To identify alternatives of community services and to establish linkages with voluntary sector for facilitating rehabilitation and social reintegration of children; and

(xix)

Any other task as may be assigned.

65.

Rehabilitation-cum-Placement Officer.

(1)

A Rehabilitation-cum- Placement Officer shall be designated in all Child Care Institutions, including place of safety.

(2)

The Rehabilitation-cum-Placement Officer may have a Masters Degree in Social Work or Human Resource Management and at least three years experience in the field of rehabilitation, employment creation and resource mobilisation.

(3)

The Rehabilitation-cum- Placement Officer to perform the following functions:

(i)

Identify the skills and aptitude of the children placed in Child Care Institutions through appropriate mechanism and in consultation with the Child Welfare Officer, Case Worker, Counsellor and Vocational instructor;

(ii)

Identify and develop linkages with all such agencies that offer vocational and training services with job placement at the end of the course;

(iii)

Network with persons, corporates, recognised non-governmental organisations and other funding agencies to mobilise resources for sponsoring training program and support for self-employment;

(iv)

Facilitate and coordinate with agencies, individuals, corporates, recognised non governmental organisations and other funding agencies to set up vocational training units or workshops in Child Care Institutions as per age, aptitude, interest and ability;

(v)

Mobilise voluntary vocational instructors who render services to carry out the training sessions in the Child Care Institutions;

(vi)

Inculcate entrepreneurial skills and facilitate financial and marketing support for self-employment;

(vii)

Prepare rehabilitation plans keeping in mind the nature of the offence and the personality traits of the child;

(viii)

Maintain the Rehabilitation Card in Form 14 and monitor the progress made by the child on regular basis and submit such progress reports to the Management Committee;

(ix)

Facilitate the child to get certificates on completion of the education or vocational training courses;

(x)

Make efforts for ensuring effective placement of each eligible and trained child;

(xi)

Organise workshops on Rehabilitation programmes and services available under Central and State Government Schemes, spread awareness and facilitate access to such schemes and services;

(xii)

Organise workshops on personality development, life skill development, coping skills and stress management and other soft skills to encourage the child to become a productive and responsible citizen; and

(xiii)

Conduct regular visits to the agencies where the children are placed to monitor their progress and provide any other assistance as may be required.

66.

Staff Discipline.

(1)

Any dereliction of duty, violation of rules and orders shall be viewed seriously and strict disciplinary action shall be taken or recommended by the Person-in-charge against the erring officials.

(2)

No staff of the Child Care Institution shall be present at an unauthorised location within the Child Care Institution.

(3)

No staff of the Child Care Institution shall bring any prohibited article into the Institution.

(4)

No staff of the Child Care Institution shall consume any addictive substances like liquor, bidi, cigarette, tobacco or any other psychotropic substance within the premises of the Child Care Institution, whether on duty at the relevant time or not or shall report for duty under the influence of any intoxicating substance.

(5)

No staff of the Child Care Institution shall sell or let for gain any article to any child or have any business dealings with such child or his parent or guardian.

(6)

No staff of the Child Care Institution shall use any abusive or vulgar language or discuss age-inappropriate topics or watch pornographic material or read obscene literature in the premises of the Child Care Institution.

67.

Security measures.

(1)

Adequate number of security personnel shall be engaged in every Child Care Institution keeping in mind the category of children housed in the Child Care Institution, age group of children and the purpose of the Child Care Institution and the risk factor to and from the child.

(2)

While engaging security personnel, preference shall be given to ex-servicemen recruited through the Directorate General of Resettlement or agencies recommended by them.

(3)

In Child Care Institutions housing girls, female security guards would be provided for the security inside the Child Care Institution and male security guards may be engaged for the security of the Child Care Institution from outside.

(4)

Security personnel should also be available in reserve for any emergency situation.

(5)

The Person-in-charge shall ensure that appropriate security measures are employed at all times, including the following:

(i)

There shall be sufficient number of guards at all times in different shifts to be posted at the points to be identified by the Person-in-charge in consultation with security in-charge and the Department.

(ii)

Any child, who complains of a medical problem or any other problem at night, shall report to the caregiver concerned. The caregiver shall take such necessary steps as may be required and in case of emergency shall inform the medical officer concerned or the Person-in-charge as the need may be, who shall immediately take appropriate steps.

(iii)

A duty roster shall be prepared and displayed at some prominent place in the premises of the Child Care Institution by the Person-in-charge.

(6)

Every caregiver or other staff of the Home, if he comes to know of any incident or probability of unrest amongst the children, shall bring the same to the notice of the Person-in-charge without any loss of time, who shall take necessary steps as the situation demands and shall inform the Board or the Committee of such information or incident as well as the steps taken by him, in writing.

(7)

The Person-in-charge shall make surprise visits to the Child Care Institution during the night as frequently as possible, but not less than once a week. He shall make a record of the timings of his visit and also note his observations in the register maintained by him in that regard.

(8)

In a case of disturbance outside the Child Care Institution, the shift in-charge shall immediately inform the police station concerned.

(9)

In a case of violence or disturbance inside the Child Care Institution, the shift in-charge shall take assistance of the police with the permission of the Person-in-charge. The shift in-charge shall first issue a warning to the children.

(10)

In case of a natural disaster or fire or any such calamity, the shift in-charge shall take suitable steps for evacuation and safety of the children as per the Disaster Management Protocol as developed by the State Disaster Management Authority for Child Care Institutions.

(11)

To prepare the officers, children and guards to follow the above steps, a practice drill shall be held once a month, without previous notice by the Person-in-charge.

(12)

Closed Circuit Television cameras may be installed at all key points such as all entry and exit points to the Child Care Institution, reception, corridors, kitchen, pantry or store room, dormitories, entry and exit points of the washrooms with due regard to the privacy and dignity of the children.

(13)

Adequate number of scanners and metal detectors may be provided in every Child Care Institution.

68.

Searches and Seizures.

(1)

The Person-in-charge or other authorised functionary of the Home may conduct searches if required, and seize prohibited articles, if found.

(2)

The procedure in case of seizures shall be as under:

(i)

any prohibited article found during the search, shall be seized by the Person-in-charge and a list of such seizure prepared;

(ii)

in case of arms, weapons, articles capable of being used as weapons or tools for criminal activities or addictive substances being found from a child or dormitory, the Person-in-charge shall conduct an inquiry to ascertain the presence of such articles and the persons responsible for such act;

(iii)

the Person-in-charge shall furnish his report in this respect to the police and inform the Board or the Committee at the earliest;

(iv)

the Board may initiate appropriate action upon such report or on the report forwarded by the Committee for disposal of the seized articles;

(v)

the State Government shall take appropriate action against the person responsible, if such person is an officer of the Child Care Institution or against the agency through whom the said person has been engaged or the Child Care Institution;

(vi)

the child responsible shall be dealt with in accordance with the Act and the rules made there under.

(3)

All the articles seized shall be destroyed or disposed off having regard to the nature of the articles, on the orders of the competent court, after being satisfied that the seized articles are not required in any inquiry or departmental action against any officer or in any criminal investigation and proceedings.

69.

Institutional Management of Children.

- A. (1) Every child shall be received by the Person-in-charge of the Child Care Institution or such other official duly authorised by the Person-in-charge to receive a child, referred to as the Receiving Officer.

(2)

The Receiving Officer shall satisfy himself as regards the identity of the child and in case of any doubt, the Receiving Officer shall promptly inform the Person-in-charge who shall forthwith inform the Board or the Committee and produce the child before the Board or the Committee without any delay.

B. Types of Stay at the Child Care Institution. - (1) In case of children in conflict with law, there are three types of stay of children at the Child Care Institution:

(i)

protective custody;

(ii)

overnight protective stay;

(iii)

rehabilitation stay.

(2)

In case of children in need of care and protection, there are two types of stay of children at the Child Care Institution:

(i)

overnight protective stay;

(ii)

rehabilitation stay.

C. Protective Custody. - (1) A Protective Custody Card in Form 41 duly signed by the Board or a custody warrant duly signed by the Children's Court is required for such stay.

(2)

Duration of such stay shall be as directed by the Board or the Children's Court and as extended from time to time by them.

(3)

Such a stay shall be during the pendency of the inquiry.

D. Overnight Protective Stay. - (1) The purpose of the stay is to provide shelter to the child and prevent his being kept overnight at the police station or at any other unsuitable place by providing an alternative.

(2)

Such stay may be only after 20:00 hrs in the night and till 14:00 hrs on the following day.

(3)

A child shall be permitted to stay at the Child Care Institution for one night on an application seeking overnight protective stay of the child moved by the Child Welfare Police Officer in writing to the Receiving Officer. The application shall be accompanied with a copy of the relevant documents showing the circumstances in which the child was apprehended or found and the medical condition of the child.

(4)

Upon being satisfied about the identity of the child, the child may be received by the Receiving Officer and Form 42 shall be filled in triplicate. One copy of the form shall be retained as record of the Child Care Institution, one copy shall be handed over to the Child Welfare Police Officer and the third copy shall be forwarded to the Board or the Committee concerned for their record.

(5)

The child shall be handed over to the charge of the Child Welfare Police Officer the next day at the time stated in the form under receipt by the said Child Welfare Police Officer in the copy of the form.

(6)

In case of the Child Welfare Police Officer not taking the charge of the child at the designated time, the child shall be produced before the Board concerned or the Committee by the Person-in-charge of the Child Care Institution with a report stating such fact.

(7)

The particulars of the child shall be entered in the admission and discharge register, noting that the child has been received for overnight protective stay.

(8)

The child shall be searched physically and all his personal belongings, if any that are found, shall be handed over to the Child Welfare Police Officer who has produced the child and who shall seize the articles and furnish a copy of such seizure to the Receiving Officer.

(9)

The child shall be provided food to eat and drink, if the child is hungry, irrespective of the time of receiving such child.

(10)

The child shall be placed for the night in the reception dormitory or the segregation unit as the case may be.

E. Rehabilitation Stay. - (1) A child may be sent to the Children's Home by the Committee for such a stay and to the special home or the place of safety by the Board or the Children's Court.

(2)

The child shall be issued the Rehabilitation Card in Form 14 which shall state the duration of stay of the child, unless the duration is shortened by a specific order in that respect by the Board or the Committee or the Children's Court.

F. Procedure to be Adopted at the time of Receiving the Child. - (1) The Receiving Officer shall follow the following procedure at the time the child is produced:

(i)

a full personal description of the child shall be entered in the admission and discharge register. In case of rehabilitation stay, the date of release of the child shall also be noted;

(ii)

the child shall be searched after explaining the requirements and the process, and with due regard to decency and dignity and all the personal belongings shall be dealt with as stated in rule 72 of these rules. A girl child shall be searched only by a female member of the staff;

(iii)

the child shall be provided food to eat and drink if the child is hungry, irrespective of the time of receiving such child;

(iv)

the child shall be provided medical care in case of ill-health, injury, mental ailment, disease or addiction requiring immediate attention;

(v)

the child shall be segregated in specially earmarked dormitory or ward or hospital in case he is suspected to be suffering from contagious or infectious disease requiring special care and caution;

(vi)

the child shall be asked about any immediate and urgent needs like appearing in an examination or interview, contacting family members. A note of the same or of the fact that no such need is present shall be made by the Receiving Officer and put up before the Child Welfare Officer or Case Worker to whom the child is assigned. The said note shall be placed in the case file of the child.

(2)

Every child received in the Child Care Institution shall be kept for the first fourteen days of his stay in the reception dormitory made specifically for the purpose or the segregation unit, so that the child adjust to the life in the Child Care Institution.

G. Procedure to be adopted after the child is received. - (1) The following procedure shall be adopted on the same day or the next day if the child is received in the night:

(i)
photograph of the child shall be taken. One photograph shall be kept in the case file of the child and another shall be fixed on the index card with the particulars of the child. A copy shall be kept in an album serially numbered and a copy of the photograph shall be sent to the Board or the Committee as well as to the District Child Protection Unit and be uploaded on the designated portal set up for the purpose;

(ii)
the child may have a bath and be provided fresh clothes. The caregiver shall issue the child toiletry items, new sets of clothes, bedding and other outfit and equipment as per rule 30 of these rules, a list of which shall be kept in his case file. The provisions will be replenished from time to time as per rule 30 of these rules;

(iii)
the Child Welfare Officer or Case Worker shall familiarise every newly admitted child with the Child Care Institution and its functioning, particularly in the following areas:-

(a)
personal health, hygiene and sanitation;

(b)
discipline of the Child Care Institution and code of behaviour;

(c)
daily routine activities and peer interaction; and

(d)
rights, responsibilities and obligations within the Child Care Institution.

(iv)
the child shall be examined by the medical officer, who shall record the state of health of the child, and of any wound or mark on his person and any other observation which the medical officer thinks fit and a copy of which shall be placed in the medical record of the child;

(v)
a Child Welfare Officer or Case Worker shall be assigned to the child by the Person-in-charge.

H. Procedure to be adopted during the first fourteen days of receiving the child. - (1) The assigned Child Welfare Officer or Case Worker shall interact with the child as often as possible.

(2)
Within two days of the receipt of the child, if required, he may be examined by a panel of doctors to understand his physical, medical, psychological state and his state of addiction, if any, for assessment of his personality and requirements to assist in the rehabilitation plan to be prepared for him.

(3)
The Child Welfare Officer or Case Worker assigned to the child shall also interact with the family members of the child, where available. A case history in Form 43 shall be prepared and maintained in the case file of the child. Information for the same may be collected through all possible and available sources including the parents or guardians, home, school, friends, employer and community of the child.

(4)
The Child Welfare Officer or Case Worker shall assess the educational level and vocational aptitude of the child on the basis of tests and interviews, conducted with the assistance of other technical staff. Necessary linkages, in this respect, shall be established with outside specialists and community based welfare agencies, psychologist, psychiatrist, child guidance clinic, hospital and other Government and non-governmental organisations.

I. Procedure to be adopted on the expiry of the first fourteen days. - (1) The child shall be shifted to one of the regular dormitories and assigned a specific bed, cabinet and study table in that dormitory.

(2)
Assignment of the dormitory shall be done on the basis of:

- (i)
age;
- (ii)
nature of offence committed by or against the child;
- (iii)
physical and mental status of the child;
- (iv)
children, requiring special care, shall be kept in a different dormitory.

(3)
An individual care plan in Form 7 of the child shall be prepared by the Child Welfare Officer or Case Worker on the basis of the child's case history, education and vocational aptitude. In case of rehabilitation stay, the care plan shall be formulated for the complete period of the stay and shall necessarily include any and all directions given by the Board or the Committee or the Children's Court towards the rehabilitation including bridge courses, formal, informal or continuing education.

(4)
The Child Welfare Officer or Case Worker shall review the individual care plan and note his opinion in the rehabilitation card in Form 14 on the basis of his own observations, interaction with the child and his teachers or instructors and the feedback received from the house father or house mother.

(5)
The Child Welfare Officer or Case Worker shall also maintain a record of any difficulty faced by the child during his stay at the Child Care Institution with a note of the steps taken to resolve the difficulty.

(6)
The Child Welfare Officer or Case Worker shall similarly keep a record of the complaints made by the child with regard to the facilities in the Child Care Institution with a note of the steps taken thereon.

(7)
The individual care plan shall be reviewed every fortnight during the initial three months and thereafter, every month. A report of its effectiveness or inadequacy shall be prepared with reasons for such opinion.

J. Procedure to be adopted after three months. - (1) The progress of the child shall be examined, with specific reference to the aims and targets noted in the individual care plan for the child. The progress of the child shall be reviewed and noted in the rehabilitation card in Form 14.

(2)
The quarterly progress report shall be placed before the Management Committee for perusal and consideration.

(3)
After deliberation by the Management Committee, the individual care plan shall be appropriately modified. The routine of the child and the approach towards rehabilitation of the child shall also be suitably modified. Record of such modified care plan and daily routine shall be maintained in the case file of the child. The progress shall be reviewed and recorded in the rehabilitation card in Form 14.

K. Pre-release planning. - (1) A well-conceived programme of pre-release planning and follow up of cases discharged from Children's Homes, special homes and places of safety shall be organised in all institutions as per the directions of the Board or the Committee or the Children's Court.

(2)
In the event of a child leaving the Child Care Institution without permission or committing an offence within the institution, the information shall be sent by the Person-incharge to the police and the family, if known; and the detailed report of circumstances along with the efforts to trace the child if the child is missing, shall be sent to the Board or the Committee or the Children's Court, as the case may be.

L. Daily Routine in the Child Care Institution. - (1) Every child shall obey the order of an officer of the Child Care Institution or house representative and shall remain under discipline.

(2)
Every institution shall have a daily routine for the children in consultation with the Children's Committee, which shall be prominently displayed at various places within the institution.

(3)

The daily routine shall include, inter alia, for a regulated and disciplined life, personal hygiene and cleanliness, physical exercise, yoga, educational classes, vocational training, organised recreation and games, moral education, group activities, prayer and community singing and special programmes for Sundays and holidays.

M. Behaviour of the Child. - (1) The children in the Child Care Institution will be oriented and trained to follow the rules and standards of good behaviour.

(2)

Every unacceptable behaviour shall be taken note of by the Children's Committee and the child found in violation of rules may be made to give an explanation. The Children's Committee may recommend appropriate action to the Person-in-charge. A copy of the report containing the description of the incident and the action taken thereupon shall be submitted to the Board or the Committee or the Children's Court by the Person-in-charge within twenty-four hours. A copy of same shall also be placed before the Management Committee for planning a long term strategy for prevention of such incidents.

(3)

A copy of the report shall be kept in the case file of the child concerned.

(4)

The Person-in-charge may deal with the violation appropriately giving due consideration to the recommendation of the Children's Committee and the safety and dignity of the child.

(5)

The Person-in-charge may seek the assistance of the counsellor or the Child Welfare Officer or Case Worker, any non-governmental organisation associated with the Child Care Institution in dealing with the situation.

(6)

A child showing exceptionally good behaviour shall be considered for appropriate reward or benefits by the Person-in-charge and note of the same shall be placed in the case file of the child.

N. Manner of dealing with unacceptable behaviour. - (1) The action taken shall be commensurate with the nature and degree of violation and the age of the child and may be any of the following:

(i)

formal warning;

(ii)

assignment of house-keeping tasks;

(iii)

imposition writing i.e. writing a number of times that he shall not repeat the behaviour; and

(iv)

forfeiture of privileges viz. permission to watch television, permission to go for outdoor activity, sports and recreation and other preferred activity;

(2)

No child shall be subject to corporal punishment or any mental harassment including humiliating behaviour affecting the dignity of the child.

O. Exceptional Good behaviour. - The following shall be considered good behaviour, namely :-

(i)

following the rules of discipline and adhering to the routine, assessed over a period of a month;

(ii)

preventing, any other child from indulging in any unacceptable behaviour or preventing violence;

(iii)

preventing any mishap by raising an alarm, evacuating other children in case of disaster;

(iv)

assisting any officer of the Child Care Institution in maintaining order. For the House representatives, in situations that may develop into an emergency, the behaviour before the sounding of the alarm would be considered;

(v)

informing the Child Welfare Officer of any plan of creating unrest or of escape;

(vi)

inform the Person-in-charge about any prohibited article or contraband;

(vii)

helping another child to come out of his trauma;

(viii)

performing exceptionally well in an examination in continuation of his studies, or vocational or rehabilitation courses;

(ix)

positive and adaptive behaviour;

(x)

any other good behaviour as found exceptional by the Person-in-charge.

P. Reward or Benefits for maintaining exceptional behaviour. - The rewards to a child, at such rates as may be fixed by the management of the institution from time to time, may be granted by the Person-in-charge as an encouragement for good work and good behaviour and at the time of release, the reward shall be handed over after obtaining a receipt from the parent or the guardian, who comes to take charge of the child or child himself.

70.

Prohibited Articles.

(1)

No person shall bring into the Child Care Institution the following prohibited articles, namely:-

(i)

intoxicants of any description, psychotropic substances, liquor, ganja, bhang, opium, smack etc;

(ii)

all explosives, poisonous substances, acid and chemicals, whether fluid or solid of whatever description;

(iii)

all arms, ammunition and weapons, knives and cutting implements of every kind and articles which are capable of being used as a weapon of whatever description;

(iv)

all obscene matter;

(v)

string, rope, chains and all materials which are capable of being converted into string or rope or chains, of whatever description;

(vi)

wood, bamboo, club, stick, ladder, bricks, stones and earth of every description;

(vii)

playing cards or other implements for gambling;

(viii)

tobacco items, pan masala or similar item;

(ix)

medicine that has not been specifically prescribed;

(x)

any other article specified in this behalf by the State Government by a general or special order.

(2)

All bullion, metal, coin, jewellery, ornaments, currency notes, securities and articles of value of every description including electronic items such as mobile phone, digital camera, ipad, etc., shall be deposited in safe custody.

(3)

The disposal of the prohibited articles shall be as per rule 72 of these rules.

71.

Articles found on search and inspection.

(1)

The Person-in-charge shall ensure that every child received in the institution is searched, his personal belongings inspected and money or any valuables found with the child is kept in the safe custody of the Person-in-charge. In case of search of a female child, the search shall be carried out by female staff only. In every institution, a record of money, valuables and other articles found with a child shall be maintained in the "Personal Belongings Register" which shall contain a description of the articles.

(2)

The entries made in the Personal Belongings Register, relating to each child, shall be read over to the child in the presence of a witness, whose signature shall be obtained in token of the correctness of such entries and it shall be countersigned by the Person-incharge.

72.

Disposal of articles.

(1)

The money or valuables belonging to a child shall be disposed of in the following manner, namely:

(i)

on receipt of a child in an institution, the Person-in-charge shall deposit the money belonging to the child in the bank account of the child;

(ii)

the valuables, and other articles, if any, shall be kept in safe custody;

(iii)

when such child is transferred from one institution to another, all his money, valuables and other articles, shall be transferred along with the child to the Person-in-charge of the institution to which he has been transferred together with a full and correct statement of the description thereof;

(iv)

at the time of release of such child, all valuables and other articles kept in safe custody and the money deposited in the name of the child shall be handed over to the parent or guardian, as the case may be, with an entry made in this behalf in the register and signed by the parent or the guardian;

(v)

when a child in an institution dies, the valuables and other articles left by the deceased and the money deposited in the name of the child shall be handed over by the Person in-charge to the parent or guardian of the child;

(vi)

a receipt shall be obtained from such person for having received such money, valuables and other articles; and

(vii)

if no claimant appears within a period of six months from the date of death or escape of a child, the valuables and other articles and money deposited in the name of the child shall be disposed of as per the decision taken by Management Committee under rule 39 of these rules.

73.

Maintenance of case file.

(1)

The case file of each child maintained in the Child Care Institution in safe custody shall be confidential.

(2)

The case file shall be produced before the Board or the Committee or the Children's Court on every date of production of the child for perusal of the Board or the Committee or the Children's Court.

(3)

The case file shall contain the following namely:

(i)

report of the person or agency who produced the child before the Board or Committee including the report of the police;

(ii)

copy of FIR or DD entry in case of offence committed by or against the child;

(iii)

photo ID, if available;

(iv)

order of assignment of the Case Worker or Child Welfare Officer;

(v)

case history form;

(vi)

report of any urgent need of the child;

- (vii)
reports of the Person-in-charge, Probation Officer or Child Welfare Officer, counsellor and caseworker;
- (viii)
the case file of the child maintained in any previous institution, if any;
- (ix)
report of the initial interaction with the child, information from family members, relatives, community, friends and miscellaneous information;
- (x)
source of further information about the child, his family etc.;
- (xi)
observation reports from staff members;
- (xii)
regular health status reports from Medical Officer, drug de-addiction progress reports, as the case may be;
- (xiii)
psycho-social profiling, regular counselling reports, any other mental health intervention report, wherever applicable;
- (xiv)
report of Intelligence Quotient (I.Q) testing, aptitude testing, cognitive assessment, educational or vocational tests, if conducted;
- (xv)
instructions regarding training and treatment programme and special precautions to be taken;
- (xvi)
copy of the personal belongings register;
- (xvii)
copy of order declaring the age of the child;
- (xviii)
leave and other privileges granted;
- (xix)
Rehabilitation Card;
- (xx)
quarterly progress report;
- (xxi)
individual care plan, including pre-release programme, post release plan and follow Jharkhand Gazette (Extraordinary), Tuesday, 9th January, 2018 up plan as prescribed and modifications therein;
- (xxii)
fortnightly and monthly report of the effectiveness of the care plan;
- (xxiii)
record of difficulties faced by the child and their resolution;
- (xxiv)
record of the complaints of the child and action taken on them;
- (xxv)
feedback given by the child;
- (xxvi)
leave of absence or release under supervision;
- (xxvii)
report about a visitor visiting the child being found to have objectionable or prohibited articles;
- (xxviii)
report of the child having such articles and action taken on the same;
- (xxix)
report of any unacceptable behaviour and outcome;
- (xxx)
report of any exceptional behaviour and outcome;

(xxxi)

special achievements and violation of rules, if any;

(xxxii)

note of the rewards or earnings of the child and receipt by the child or his parent or guardian;

(xxxiii)

release or restoration order;

(xxxiv)

escort order, if any;

(xxxv)

compliance report of release in case of children under rehabilitation intervention stay;

(xxxvi)

report of the child not being released and compliance report of the directions issued on non-release of a child;

(xxxvii)

follow-up reports;

(xxxviii)

annual photograph;

(xxxix)

follow-up report of post release cases as per the direction of the Board or the Committee or the Children's Court;

(xl)

copy of any other report called by the Board or the Committee or the Children's Court in respect of the child; and

(xli)

remarks, if any.

(4)

The medical record of a child shall contain all reports and records of the child regarding the status of his physical and mental health, addiction status and treatment, etc.

(5)

It shall be the responsibility of the Child Welfare Officer or Case Worker concerned to maintain the case file.

(6)

All the case files maintained by the institutions may be computerised and the State Government may develop appropriate processes for the same.

74.

Visits to and communication with children.

(1)

Every child in the Child Care Institution may be permitted to have one meeting in a week with his relatives:

Provided that in special cases, where parents or guardians have travelled a long distance from another State or District, the Person-in-charge may allow the parents or guardians entry into the premises and a meeting with their children on other days on confirmation of their identity and they being reported not to have been involved in subjecting the child to abuse and exploitation.

(2)

A newly received child shall be permitted to meet his parent or guardian or family member on their first visit on any day.

(3)

No meeting shall be permitted with the parent or guardian or relatives where such visitors have been found to be involved in subjecting the child to violence, abuse and exploitation or carrying any prohibited articles, except with the express permission granted by the Board or the Committee or the Children's Court or when such meeting has been specifically directed by the counsellor of the child.

(4)

Every child shall be allowed to write two letters in a week to his parent or guardian or to his relatives. Necessary stationary and postage for the letters shall be provided by the Person-in-charge.

(5)

The Person-in-charge may peruse any letter written by or to the child and may for reasons to be noted in the case file of the child, refuse to deliver or issue the letter. A report of the same shall be prepared and placed before the Management

Committee. A copy of the report shall be retained on the case file and another copy shall be sent to the Board or the Children's Court or the Committee.

(6)

Every child shall be allowed to bring any written communication for the purpose of handing over to the Board or the Committee or the Children's Court, as the case may be, and be provided stationary, etc. for the same.

(7)

The Person-in-charge may allow a child to speak with his parents or guardians on telephone once a week under supervision of the Child Welfare Officer or Case Worker or Probation Officer and record shall be duly maintained of such calls.

(8)

Every person desiring to meet the child shall, before the meeting, disclose his name and address with proof, which shall be noted in the visitors register and signed by the visitor. Copy of the photo identity card containing the address and a photograph of the visitor to be taken before the meeting, shall be retained by the institution. If the visitor refuses to disclose his particulars, he shall be denied the meeting.

(9)

The visitor shall, submit himself for a search at the main gate, female visitors shall be searched by female staff only.

(10)

Every meeting shall take place in the presence of the Child Welfare Officer or Case Worker or Probation Officer of the Child Care Institution, who shall be responsible for any irregularity that occurs and who shall be so placed that he is able to see and to prevent any objectionable or prohibited article being passed between the parties.

(11)

Every child shall be carefully searched before and after the meeting in the presence of visitor. The child should not be having anything with him before he goes for the meeting.

(12)

If any objectionable or prohibited article is found in the search conducted before the meeting:

(i)

the said article shall be seized;

(ii)

the Person-in-charge shall conduct an inquiry to know the identity of the person(s) responsible for the article reaching the child;

(iii)

if the person(s) responsible are from the staff of the Child Care Institution, appropriate action will be initiated against them; and

(iv)

a detailed report of the inquiry and its result shall be forwarded to the Department and the Board or court of competent criminal jurisdiction.

(13)

If any objectionable or prohibited article is found in the search conducted after the meeting:

(i)

the article shall be seized;

(ii)

in case of any illegal article being found warranting legal action, the article and the visitor shall be detained and the police informed. The visitor and such article shall be handed over to the police;

(iii)

a report of such visitor shall be prepared and placed in the case file of the child;

(iv)

a report of the incident shall be forwarded to the Board or court of competent criminal jurisdiction; and

(v)

copy of the report shall be placed in the case file of the child.

(14)

Any child who abuses the privilege of meeting shall be denied the same for such period as the Person-in-charge may

direct. A report of the same shall be sent to the Board or the Committee or the Children's Court and a copy shall be retained in the case file of the child.

(15)

Every child shall be entitled to communicate with his legal counsel provided that:

(i)

the rules of search and seizure shall apply to all legal counsels also;

(ii)

every such interview shall take place within the sight of a home official, though at a safe distance so as to be out of hearing;

(iii)

the person wishing to have an interview with the child in the capacity of his advocate shall apply in writing, giving his name, address and enrolment number with a copy of a vakalatnama, duly attested by the Board or the Committee or the Children's Court;

(iv)

any child who claims to have no counsel shall be permitted to meet the legal aid counsels who visit the Child Care Institution in the normal course.

75.

Death of a Child.

(1)

On the occurrence of any case of death or suicide of a child in a Child Care Institution, the procedure to be adopted shall be as under:

(i)

The institution must ensure that an inquest and post-mortem examination is held at the earliest.

(ii)

In case of natural death or death due to illness of a child, the Person-in-charge shall obtain a report of the Medical Officer stating the cause of death and a written intimation about the death shall be given immediately to the nearest Police Station, Board or Committee and the parents or guardians or relatives of the child.

(iii)

Immediate information shall be given by the case-worker or Probation Officer or Child Welfare Officer to the Person-in-charge and the Medical Officer and the Person-in-charge shall immediately inform the nearest police station, Board or Committee and parents or guardians or relatives of the deceased child.

(iv)

If a child dies within twenty-four hours of his admission to the Child Care Institution, the Person-in-charge of the Child Care Institution shall report the matter to the police and the District Medical Officer or the nearest Government hospital and the parents or guardians or relatives of such child without delay.

(v)

The Person-in-charge and the Medical Officer of the Child Care Institution shall record the circumstances of the death of the child and send a report to the concerned Magistrate, the police, the Board or the Committee or the Children's Court and the District Medical Officer or the nearest Government hospital where the dead body of the child is sent for examination and determination of the cause of death and the person-in-charge and the Medical Officer shall also record in writing their views on the cause of death, if any, and submit it to the concerned Magistrate and to the police.

(vi)

The Person-in-charge and the Medical Officer at the Child Care Institution shall make themselves available for any inquiry initiated by the police or the Magistrate regarding the cause of death and other details regarding such child.

(vii)

As soon as the inquest is over, the body of the child shall be handed over to the parent or guardian or relatives or, in the absence of any claimant, the last rites shall be performed under the supervision of the Person-in-charge of the Child Care Institution in accordance with the known religion of the child after retaining a photograph of the child for future reference.

76.

Abuse and Exploitation of the Child.

(1)

Every institution shall evolve a system of ensuring that there is no abuse, neglect and maltreatment and shall include the staff who is aware of what constitutes abuse, neglect and maltreatment, and their early indication and how to respond to these abuses.

(2)

In the event of any physical, sexual or emotional abuse, including neglect of children in an institution by those responsible for care and protection, the following action shall be taken namely :

(i)

the incidents of abuse and exploitation shall be reported by any staff member of the institution immediately to the Person-in-charge on receiving such information;

(ii)

when an allegation of physical, sexual or emotional abuse comes to the knowledge of the Person-in-charge, a report shall be placed before the Board or Committee, who in turn shall, order for special investigation;

(iii)

the Board or Committee shall direct the local police station or Special Juvenile Police Unit to register a case, take due cognizance of such incidents and conduct necessary investigation;

(iv)

the Board or Committee shall take necessary steps to ensure completion of inquiry and provide legal aid as well as counselling to the child victim;

(v)

the Board or Committee shall transfer such a child to another institution or place of safety or fit person, as the case may be;

(vi)

the Person-in-charge of the institution shall also inform the Chairperson of the Management Committee and place a copy of the report of the incident and subsequent action taken in its next meeting;

(vii)

in the event of any other crime committed in respect of children in institutions, the Board or Committee shall take cognizance and arrange for necessary investigation to be carried out by the local police or Special Juvenile Police Unit;

(viii)

the Board or Committee may consult Children's Committee setup in each institution to enquire into the fact of abuse and exploitation as well as seek assistance from voluntary organisations, child rights experts, mental health experts or crisis intervention centres in dealing with matters of abuse and exploitation of children in an institution.

77.

Maintenance of Registers.

(1)

The persons mentioned in column (3) shall maintain registers and forms under the Act and the rules made there under in column (2) whose custodian shall be the persons mentioned in column (4) thereof as under:

Table

S.No.(1)

Register and forms (2)

To be maintained by (3)

Custodian (4)

1.

Admission and Discharge Register which will indicate change of nature of custody.

Child Welfare Officer/Case Worker/Receiving Officer

Person-in-charge

2.

Attendance Registers for staff and children.

Shift Incharge

Person-incharge

3.

Budget Statement file.

Person-in-charge

Person-incharge

4.

Case file of each child.

Child Welfare Officer or Case Worker

Person-incharge

5.

Cash Book.

Accounts Officer/Cashier

Person-incharge

6.

Children's Suggestion Book.

Children's Committee

Person-incharge

7.

Counselling Register.

Counsellor

Person-incharge

8.

Drug de-addiction programme enrolment and
progress register.

Child Welfare Officer/ Case Worker

Person-incharge

9.

Handing over Charge Register.

Shift Incharge

Person-incharge

10.

House-keeping and Sanitation Register.

House Parent

Person-incharge

11.

Inspection Book.

Person-in-charge

Person-incharge

12.

Legal Services Register.

Child Welfare Officer/ Case Worker

Person-incharge

13.

Library Register.

Teacher

Person-incharge

14.

Log Book.

Driver

Person-incharge

15.

Meals Register/Nutrition Diet File.

House Parent

Shift Incharge

16.

Medical File of each child.

Staff Nurse

Person-incharge

17.

Meeting Book.

Child Welfare Officer/ Case Worker

Person-incharge

18.

Minutes Register of Children's Committees.

Child Welfare Officer/ Case Worker

Person-incharge

19.

Minutes Register of Management Committee.

Person-in-charge

Person-incharge

20.

Order Book.

Person-in-charge

Person-in-charge

21.

Personal Belongings Register.

Child Welfare Officer/Case Worker

Person-incharge

22.

Production Register

Probation Officer/ Child Welfare Officer/ Case Worker

Person-incharge

23.

Staff Movement Register.

Incharge of Security

Person-incharge

24.

Stock Register.

L.D.C. or U.D.C.

Person-incharge

25.

Visitor's Book

Security Guards

Main Gate's Keeper

78.

Openness and Transparency.

(1)

All Child Care Institutions shall be open to visitors with the permission of the Board or the Committee or the Person-in-charge, who may allow voluntary organisations, social workers, researchers, doctors, academicians, and such other persons as the Management Committee may permit or consider appropriate keeping in view the security, welfare and the interest of the children.

(2)

Where permission referred to in sub-rule(1) is given by the Person-in-charge, he shall make a monthly report of such permission including the orders received from the Board or the Committee to the State Child Protection Society and also to the Board or the Committee, as the case may be.

(3)

The Person-in-charge of the Child Care institution shall encourage active involvement of the local community and corporates in improving the condition in the institution or support the child.

(4)

The Person-in-charge shall maintain a visitors' book to record the remarks of the visitors.

(5)

The Person-in-charge shall take all steps to inform the visitors to maintain the dignity of children.

79.

Release of a child from a Child Care Institution.

(1)

The Person-in-charge of the Child Care Institution shall maintain a roster of the cases of children to be released on the expiry of the period of stay as ordered by the Board or the Committee or the Children's Court.

(2)

The timely information of the release of a child and of the exact date of release shall be given to the parent or guardian and the parent or guardian shall be called to the Child Care Institution to take charge of the child on that date and if necessary, the actual expenses of the parent's or guardian's journey both ways and of the child's journey from the Child Care Institution shall be paid to the parent or guardian by the Person-in-charge at the time of the release of the child.

(3)

If the parent or guardian, as the case may be, fails to come and take charge of the child on the appointed date, the child shall be taken by the escort of the Child Care Institution; and in case of a girl, she shall be escorted by a female escort who shall hand over the custody to her parent/guardian.

(4)

At the time of release or discharge, a child may be provided with a set of suitable clothing and essential toiletries.

(5)

When the child attains the age of eighteen years, he may be placed, if eligible, in an aftercare programme, subject to the consent of the child and the approval of the Board or the Committee or the Children's Court.

(6)

In case the date of release falls on a Sunday or a public holiday, the child may be discharged on the preceding day with an entry to that effect being made in the register of discharge.

(7)

The Person-in-charge of the Child Care Institution may in appropriate cases, order the payment of subsistence money, at such rates as may be fixed from time to time, by the State Government, and the railway and/or road fares, as the case may be.

(8)

Where a girl child has no place to go after release and requests for stay in the Child Care Institution after the period of stay is over, the Person-in-charge may, subject to the approval of the Board or the Committee or the Children's Court, allow her stay only for a limited period till the time, some other suitable arrangement is made by her.

80.

Child suffering from disease requiring prolonged medical treatment in an approved place and transfer of a child who is mentally ill or addicted to alcohol or other drugs.

(1)

The Board or the Committee or the Children's Court may send the child to a fit facility for such period as may be certified by a medical officer or mental health expert or on the recommendation of the Person-in-charge or Probation Officer or Child Welfare Officer or Case Worker, as necessary for proper treatment of the child who is mentally ill or addicted to alcohol or drugs or any other substance which lead to behavioural changes in a person for the remainder of the term for which he has to stay.

(2)

When the child is cured of the disease or physical or mental health problems, the Board or the Committee or the Children's Court may, order the child to be placed back in the care from where the child was removed for treatment and if the child no longer requires to be kept under further care, the Board or the Committee or the Children's Court may order him to be discharged.

(3)

The State Government may set up separate Integrated Rehabilitation Centres for child addicts on the basis of appropriate age groups.

81.

Transfer of Child.

(1)

During the inquiry, if it is found that the child hails from a place outside the jurisdiction of the Board or the Committee, the Board or the Committee shall order the transfer of the child and send a copy of the order stating the reasons for and circumstances of such transfer to the State Government and District Child Protection Unit.

(2)

The District Child Protection Unit shall accordingly:

(i)

send the information of transfer to the appropriate Board or the Committee having jurisdiction over the area where the child is ordered to be transferred by the Board or Committee; and

(ii)

send a copy of the information to the Person-in-charge of the institution where the child is to be placed for care and protection at the time of the transfer order.

(3)

The child shall be escorted at Government expenses to the place or person as specified in the order and a travelling allowance on a per day basis shall be determined by the Board or the Committee which shall be paid by the District Child Protection Unit of the State which has transferred the child.

(4)

On such transfer, case file and records of the child shall be sent along with the child.

(5)

Where the child is a national of another country, the Board or the Committee shall inform the State Government immediately on the production of the child before the Board or the Committee which may initiate the process for repatriation of the child immediately in consultation with Ministry of Home Affairs and Ministry of External Affairs, as the case may be.

(6)

During the period pending the finalisation of the repatriation, the child shall be kept in a Child Care Institution.

(7)

The expenses for the repatriation of the child to another country shall be borne by the State Government concerned.

82.

Restoration and Follow-up.

(1)

The Board or the Committee or the Children's Court may make an order in Form 44 for the release of the child placed in a Child Care Institution after hearing the child and his parents or guardian, and after satisfying itself as to the identity of the persons claiming to be the parents or the guardian.

(2)

While passing an order for restoration of the child, the Board or the Committee or the Children's Court shall take into account the reports of the Probation Officer, social worker or Child Welfare Officer or Case Worker or non-governmental organisation, including report of a home study prepared on the direction of the Board or the Committee or the Children's Court in appropriate cases, and any other relevant document or report brought before the Board or the Committee or the Children's Court.

(3)

The order of restoration shall include an individual care plan prepared by the Probation Officer or the social worker or the Child Welfare Officer or Case Worker or non governmental organisation.

(4)

The Board or the Committee or the Children's Court, while directing restoration of the child, may pass order for an escort in Form 45, where necessary.

(5)

Besides police, the Board or the Committee may seek collaboration with non governmental organisations to accompany the child back to the family for restoration.

(6)

In case of girls, the child shall necessarily be accompanied by female escorts.

(7)

The copy of the restoration order along with a copy of the order for escort shall be forwarded by the Board or the Committee or the Children's Court to the District Child Protection Unit which shall provide funds for the restoration of the child, including travel and other incidental expenses.

(8)

When a child expresses his unwillingness to be restored back to the family, the Board or the Committee or the Children's Court shall interact with the child to find out the reasons for the same and record the same and the child shall not be coerced or persuaded to go back to the family. The child may also not be restored back to the family where the social investigation report prepared by the Child Welfare Officer or the social worker or the Case Worker or the non-governmental organisation establishes that restoration to family may not be in the interest of the child. The child would also not be restored back to the family where the parents or guardians refuse to accept the child back. In all such cases, the Board or the Committee or the Children's Court may provide alternative means for rehabilitation.

(9)

A follow-up plan shall be prepared as part of the individual care plan by the Probation Officer or the Child Welfare Officer or the Case Worker or the social worker or the non governmental organisation.

(10)

The follow-up report shall state the situation of the child post restoration and the measures necessary in order to reduce further vulnerability of the child.

83.

Juvenile Justice Fund.

(1)

The State Government shall create a fund called the Juvenile Justice Fund for the welfare and rehabilitation of the children dealt with under the Act and the rules.

(2)

The State Government shall make adequate budgetary allocations towards the Juvenile Justice Fund.

(3)

The Juvenile Justice Fund may receive donations, voluntary contributions, subscriptions or funds under Corporate Social Responsibility, whether or not for any specific purpose, and shall be directly credited to the Juvenile Justice Fund.

(4)

The Juvenile Justice Fund may be utilised by the State Government for the following purposes, namely:-

(i)

establishment and administration of Child Care Institutions;

(ii)

supporting innovative programmes for the development of the children in the Child Care Institutions;

(iii)

strengthening of legal assistance and support;

(iv)

providing entrepreneurial support, skill development training or vocational training;

(v)

providing lump-sum subsistence support to children leaving Child Care Institution on attaining the age of eighteen years;

(vi)

providing after care facilities and entrepreneurship fund for providing capital and infrastructure to persons who have crossed the age of eighteen within institutionalized care, for starting up small businesses to support reintegration into

mainstream life;

(vii)

providing support for foster care, sponsorship and after care;

(viii)

rehabilitation of children in special circumstances including children released from militant groups and adult groups and those covered under JJ Act and;

(ix)

meeting the expenses of travel for trial and restoration of children, including the expenses of the escorts including police;

(x)

creating child friendly police stations, Boards, courts and Committees;

(xi)

Capacity building for parents and caregivers to understand needs of children;

(xii)

awareness generation programmes on child rights and offences against children;

(xiii)

creating community-based child protection programmes to identify and report offences against children;

(xiv)

providing specialised professional services, counselors, translators, interpreters, special educators, social workers, mental health workers, vocational trainers etc. for the children covered under the Act;

(xv)

Providing support of two social workers for SJPU

(xvi)

providing recreational facilities and extra-curricular activities for the children covered under the Act including those in Child Care Institutions;

(xvii)

palliative care for cancer affected children and stay facilities for their parents; and

(xviii)

any other programme or activity to support the holistic growth, development and well-being of a child covered under the Act and the rules.

(5)

The Juvenile Justice Fund shall be maintained and administered by Department of the State Government dealing with the implementation of this Act through the State Child Protection Society.

(6)

The State Child Protection Society, with the approval of the State Government shall adopt financial rules to govern the utilisation of the Juvenile Justice Fund.

84.

State Child Protection Society.

(1)

The State Child Protection Society shall perform the following functions namely:

(i)

overseeing the implementation of the Act and the rules framed thereunder in the State and supervision and monitoring of agencies and institutions under the Act;

(ii)

addressing road-blocks, issues, complaints received regarding care and protection of children;

(iii)

ensure that all institutions set up under the Act and the rules are in place and performing their assigned duties;

(iv)

reviewing reports received from various District Child Protection Units on the functioning of institutions in various districts and take action to facilitate the protection of children wherever necessary and monitoring the functioning of the District Child Protection Units;

(v)

develop programmes for foster care, sponsorship and after-care;

(vi)

inquire into, seek reports and make recommendations in cases of death or suicide in Child Care Institutions and under other institutional care;

(vii)

ensure inter-department coordination and liaisoning with the relevant departments of the State and Central Governments and State Child Protection Societies of other States or Union Territories;

(viii)

networking and coordinating with civil society organisations working for the effective implementation of the Act and the rules;

(ix)

maintaining a state level database of all children in institutional care and family based non-institutional care and updating it on a quarterly basis;

(x)

maintaining a database of Child Care Institutions, Specialised Adoption Agencies, open shelters, fit persons and fit facilities, registered foster parents, sponsors, after care organisations and other institutions at the State level;

(xi)

maintaining a database of medical and counselling centers, de-addiction centers, hospitals, open schools, education facilities, apprenticeship and vocational training programmes and centers, recreational facilities such as performing arts, fine arts and facilities for children with special needs and other such facilities at the State level;

(xii)

monitoring and administering the Juvenile Justice Fund set up by the State Government including disbursal of funds to the District Child Protection Units, Special Juvenile Police Units and police stations, as the case may be;

(xiii)

maintaining separate accounts for all funds received by the State Child Protection Society such as the Juvenile Justice Fund, funds under Schemes of Central and State Government and getting the same audited;

(xiv)

generate awareness among public on various aspects of the Act and the rules made thereunder specifically the existing institutional framework, rehabilitation measures, penalties, procedures for better protection of children;

(xv)

organise and conduct programmes for the implementation of the Act including training and capacity building of stakeholders;

(xvi)

commission research programmes on child protection;

(xvii)

co-ordinate with State Legal Services Authority and law schools; and

(xviii)

any other function for the effective implementation of the Act and the rules made thereunder.

(2)

The Member- Secretary of the State Child Protection Society shall be the Nodal Officer in the State for the implementation of the Act and the rules.

85.

District Child Protection Unit.

(1)

The District Child Protection Unit shall perform following functions, namely:

(i)

maintain report of quarterly information sent by the Board about children in conflict with law produced before the Board and the quarterly report sent by the Committee;

(ii)

arrange for individual or group counselling and community service for children;

(iii)

conduct follow up of the individual care plan prepared on the direction of the Children's Court for children in the age group of sixteen to eighteen years found to be in conflict with law for committing heinous offence;

(iv)

conduct review of the child placed in the place of safety every year and forward the report to the Children's Court;

(v)

maintain a list of persons who can be engaged as monitoring authorities and send the list of such persons to the Children's Court along with bi-annual updates;

(vi)

maintain record of run- away children from Child Care Institutions;

(vii)

identify families at risk and children in need of care and protection;

(viii)

assess the number of children in difficult circumstances and create district-specific databases to monitor trends and patterns of children in difficult circumstances;

(ix)

periodic and regular mapping of all child related services at district for creating a resource directory and making the information available to the Committees and Boards from time to time;

(x)

facilitate the implementation of non-institutional programmes including sponsorship, foster care and after care as per the orders of the Board or the Committee or the Children's Court;

(xi)

facilitate transfer of children at all levels for their restoration to their families;

(xii)

ensure inter-departmental coordination and liaise with the relevant departments of the State Government and State Child Protection Society of the State and other District Child Protection Units in the State;

(xiii)

network and coordinate with civil society organisations working under the Act;

(xiv)

inquire into, seek reports and take action in cases of death or suicide in child care institutions and under other institutional care and submit the reports to the State Child Protection Society;

(xv)

look into the complaints and suggestions of the children as contained in the children's suggestion box and take appropriate action;

(xvi)

be represented on the Management Committees within the Child Care Institutions;

(xvii)

maintain a district level database of missing children in institutional care and uploading the same on designated portal and of children availing the facility of Open Shelter and of children placed in foster care;

(xviii)

maintain a database of child care institutions, specialised adoption agencies, open shelter, fit persons and fit facilities, registered foster parents, after care organisations and institutions etc. at the district level and forward the same to the Boards, the Committees, the Children's Courts and the State Child Protection Society, as the case may be;

(xix)

maintain a database of medical and counselling centers, de-addiction centers, hospitals, open schools, education facilities, apprenticeship and vocational training programmes and centres, recreational facilities such as performing arts, fine arts and facilities for children with special needs and other such facilities at the district level and forward the same to the Boards, the Committees, the Children's Courts and the State Child Protection Society;

(xx)

maintain a database of special educators, mental health experts, translators, interpreters, counsellors, psychologists or psycho-social workers or other experts who have experience of working with children in difficult circumstances at the district level and forward the same to the Boards and the Committees and the Children's Court and the State Child

Protection Society;

(xxi)

generate awareness and organise and conduct programmes for the implementation of the Act including training and capacity building of stakeholders under the Act;

(xxii)

organise quarterly meeting with all stakeholders at district level to review the progress and implementation of the Act;

(xxiii)

submit a monthly report to the State Child Protection Society;

(xxiv)

notify the State Government about a vacancy in the Board or the Committee six months before such vacancy arises;

(xxv)

review reports submitted by Inspection Committees and resolve the issues raised through coordination among the stakeholders;

(xxvi)

provide secretarial staff to the Committees and the Boards;

(xxvii)

all other functions necessary for effective implementation of the Act including liasoning with community and corporates for improving the functioning of Child Care Institutions.

(2)

The District Child Protection Officer shall be the Nodal Officer in the district for the implementation of the Act and the rules.

86.

Special Juvenile Police Unit.

(1)

The State Government shall constitute a Special Juvenile Police Unit in each district and city to co-ordinate all functions of police related to children.

(2)

The Central Government shall constitute a Special Juvenile Police Unit for the Railway Protection Force and state government shall constitute SJPU for Government Railway Police at every railway station as per requirement and where a SJPU cannot be set up, at least one Railway Protection Force or Government Railway Police Officer shall be designated as the Child Welfare Police Officer.

(3)

Police Officers with aptitude and sensitivity must be selected at Child Welfare Police Officer not exceeding 45 years of age.

(4)

The Child Welfare Police Officers and other police officers of the SJPU shall be given, appropriate training and orientation to deal with matters concerning children.

(5)

The transfer and posting of the designated Child Welfare Police Officers may be within the SJPU of other police stations or the district unit. If they are transferred outside the district as far as possible should be placed with SJPU.

(6)

The police officer interacting with children shall be as far as possible in plain clothes and not in uniform and for dealing with girl child, woman police personnel shall be engaged. In case where women police personnel is not available a lady from the government or non government agency.

(7)

The Child Welfare Police Officer or any other police officer shall speak in polite and soft manner and shall maintain dignity and self-esteem of the child.

(8)

Where questions that may lead to discomfort of the child are to be asked, such questions shall be asked in tactful manner.

(9)

When an FIR is registered for offence against a child, a copy of the FIR shall be handed over to the complainant or child victim and subsequent to the completion of investigation, copy of report of investigation and other relevant documents shall be handed over to the complainant or any person authorised to act on his behalf.

(10)

No accused or suspected accused shall be brought in contact with the child and where the victim and the person in conflict with law are both children, they shall not be brought in contact with each other.

(11)

The SJPU shall have a list of :

(i)

the Board and Child Welfare Committee in its due jurisdiction, their place of sitting, hours of sitting, names and contact details of Principal Magistrate and members of the Board, names and contact details of Chairperson and members of the Committee and the procedures to be followed before the Board and the Committee; and

(ii)

contact details of the Child Care Institutions and fit facilities in its due jurisdiction.

(12)

The names and contact details of the SJPU or Child Welfare Police Officer shall be placed at a conspicuous part at the police stations, Child Care Institutions, Committees, Boards and the Children's Courts

(13)

The SJPU shall work in close co-ordination with the District Child Protection Unit, the Board and the Committee in the matters concerning the welfare of children within its jurisdiction.

(14)

The SJPU may coordinate with the District Legal Services Authority to provide legal aid to children.

(15)

The SJPU shall meet on quarterly basis and report of such meetings shall be forwarded to Nodal Officer appointed under these rules and copy of such report also be sent to the concerned District Child Protection Unit, CID and State Child Protection Society.

(16)

The SJPU shall coordinate with the District Legal Services Authority to provide legal aid to children. There shall be atleast two para legal volunteers attached to every police station who shall assist the children who come before the CWPO.

(17)

The SJPU shall take cognizance of adult perpetrators of crimes against children and ensure that they are, without delay, apprehended and booked under the appropriate provisions of the law and for this purpose the district level units shall maintain liaison with other units of police stations.

(18)

A Nodal Officer from police not below the rank of Inspector General of Police shall be designated to coordinate and upgrade the role of police on all issues pertaining to care and protection of children under the Act and the rules.

(19)

A separate cadre shall be created for SJPU. The separate cadre can deal with cases related to children and women and the necessary action and guidelines in this regard shall be issued by Home department.

(20)

SJPU officer at the district level shall be responsible for making all the police stations child friendly as per the procedures of which shall be laid down by the Home Department.

(21)

The Officer heading the SJPU should not be transferred before 3 years except in case of promotion.

(22)

The CWPOs will be paid advance from District Child protection Unit in case of conducting rescue operation or for repatriation of the child to the family.

(23)

Provision for each thanna to meet the child immediate expense will also be provided from Juvenile Justice Fund

(24)

The Nodal Officer shall hold quarterly review of SJPU shall issue necessary directions for their effective functioning.
87.

Selection Committee and its composition.

(1)

The State Government shall constitute a Selection Committee for a period of three years by notification in the Official Gazette consisting of the following members, namely:

(i)

a retired judge of High Court as the Chairperson to be appointed in consultation with the Chief Justice of the High Court concerned;

(ii)

one representative from the Department implementing the Act not below the rank of Director as the ex-officio Member Secretary;

(iii)

two representatives from two different reputed non-governmental organisations respectively working in the area of child development or child protection for a minimum period of seven years but not running or managing any children's institution;

(iv)

two representatives from academic bodies or Universities preferably from the faculty of social work, psychology, sociology, child development, health, education, law, and with special knowledge or experience of working on children's issues for a minimum period of seven years; and

(v)

a representative of the State Commission for Protection of Child Rights.

(2)

The Committee shall continue for a maximum period of three months after the completion of its tenure by which time new Committee shall be constituted.

(3)

If a vacancy arises in the Selection Committee, the Member Secretary shall intimate the Secretary of the Department implementing the Act who shall take steps to fill the vacancy for the remaining period at the earliest.

(4)

The quorum for the meeting of the Selection Committee shall be not less than four Members, including the Chairperson and the Member Secretary.

(5)

The Member Secretary of the Selection Committee shall convene the meetings of the Selection Committee at such times as may be necessary for facilitating and carrying out the functions of the Selection Committee.

(6)

The Member Secretary shall maintain the minutes of the selection process and all other meetings of the Selection Committee.

(7)

The Chairperson and non-official members of the Selection Committee shall be paid such sitting fees and travel allowances as may be fixed by the State Government from time to time.

(8)

All communications relating to the working and discharge of the functions of the Selection Committee shall be addressed to the Office of the Member Secretary, who shall place the same before the Selection Committee.

(9)

All records relating to selection shall be placed on the website of the State Government Department concerned.

88.

Selection of Chairperson and Members of the Committee or Board.

(1)

The Member Secretary of the Selection Committee shall initiate the process of filling up a vacancy six months prior to the incumbent demitting office:

Provided that if a vacancy arises on account of resignation or death of the Chairperson of the Committee or a Member of

the Board or Committee the Member Secretary of the Selection Committee shall immediately initiate the process for filling up such vacancy.

(2)

For selection of members of the Board or Chairperson and members of the Committee, the State Government through the Member Secretary of the Selection Committee shall call for applications through public advertisement in the local and national newspapers and official website of the Department implementing the Act.

(3)

The Member Secretary shall screen all the applications received and place the applications which fulfill the basic eligibility requirements before the Selection Committee.

(4)

The Selection Committee shall evaluate the candidates on the basis of qualifications, experience of working with children and personal interaction with the candidate.

(5)

A member selected by the Selection Committee should not:

(i)

be holding such full-time occupation that may not allow the person to give necessary time and attention to the work of the Board or the Committee as per the Act and rules;

(ii)

be associated with any Child Care Institution, directly or indirectly, during his tenure as a member of the Board or Committee or have any other conflict of interest.

(iii)

hold any office in any political party during his tenure, or

(iv)

be insolvent.

(6)

Where the Selection Committee is required to consider an application for renewal of tenure of Members of the Board or Committee as the case may be, it shall evaluate the application on the basis of the following criteria, namely:

(i)

regular performance appraisals of the Member carried out by the District Judge or District Magistrate quarterly as per a specified format, a copy of which shall be made available to the Chairperson and Members of the Selection Committee by the Member Secretary;

(ii)

complaints if any, received and addressed by the Selection Committee against the person seeking an extension of tenure; and

(iii)

interaction with such applicant.

(7)

The Selection Committee shall, on the basis of the evaluation procedure and criteria, select and recommend a panel of names in order of merit to the State Government for appointment as Members of the Board or Chairperson or Members of the Committee as the case may be.

(8)

In recommending a panel of names, the Selection Committee shall prepare separate panels for the position of Chairperson of the Committee, Members of the Committee and Members of the Board respectively.

(9)

The Selection Committee shall prepare a three member panel for each position, which shall be valid for a period of one year.

(10)

The list of finalised names shall be duly signed by all members of the Selection Committee present at the time of selection and the Member Secretary of the Selection Committee shall forward the finalised list to the State Government for appointment. The State Government shall constitute one or more Boards or Committees, as the case may be, in each district through notification in Official Gazette within a period of two months of receipt of recommendations of

Selection Committee.

(11)

Names on the panel shall be valid for consideration for a period of one year which may be extended by six months where a new panel has not yet been constituted, in order to fill in vacancies which may arise during such period either due to non-reporting of the selected persons within a stipulated time from the date of appointment, or otherwise during the tenure of the Board or Committee.

(12)

If a vacancy in the Board or Committee arises, the District Child Protection Unit shall inform the State Government for filling up such vacancy.

(13)

The State Government shall fill the vacancies on the basis of the panel of names recommended by the Selection Committee within a period of three months from receiving such information from the District Child Protection Unit.

(14)

If any complaint is made against a member of the Board or Committee, the State Government shall hold necessary inquiry except in respect of judicial officers; complaints against judicial officers shall be forwarded to the Registrar of the High Court for action.

(15)

The State Government shall complete the inquiry within a period of one month and take appropriate action within two months.

(16)

If a criminal case is registered against the person concerned, Government may suspend the appointment for such term as appropriate after due inquiry.

89.

Training of Personnel Dealing with Children.

(1)

The State Government shall provide for training of personnel appointed under the Act and the rules and each category of staff, keeping in view with their statutory responsibilities and specific jobs requirements.

(2)

The training programme shall include:

(i)

introduction of the Act and the rules made there under;

(ii)

orientation on child welfare, care, protection and child rights;

(iii)

induction training of the newly recruited personnel;

(iv)

refresher training courses and skill enhancement programmes, documentation and sharing of good practices; and

(v)

conferences, seminars and workshops.

(3)

The following categories of personnel shall have to undergo training for minimum period of fifteen days, namely:-

S. No.

Personnel

1

Staff of Children's Court and Principal Magistrates of Juvenile Justice Boards

2

Members of Juvenile Justice Boards

3

Chairpersons and Members of Child Welfare Committees

4

Child Welfare Police Officers and other police officers of Special Juvenile Police Units

5

Programme Managers and Programme Officers of State Child Protection Societies and State Adoption Resource Agency

6

Staff of State Adoption Resource Agency

7

Legal-cum-Probation Officers under District Child Protection Units and Probation Officers in Child Care Institutions

8

Staff of District Child Protection Units and State Child Protection Society

9

Persons-in-charge of Child Care Institutions(including Open Shelters)

(4)

The State Government shall also provide training to other personnel such as social workers, Child Welfare Officers, Case Workers, rehabilitation cum placement Officers, care givers, house fathers and house mothers of Child Care Institutions, security personnel and other staff of Child Care Institutions, Frontline Workers, bridge course educators, outreach workers and community volunteers, Social Workers of Specialised Adoption Agencies, Directors or Incharge of Specialised Adoption Agencies, chief functionaries of organisations granted registration for running Child Care Institutions under the Act, mental health practitioners, psychologists, psychiatrists, psychiatric social workers, legal services lawyers, members of Committees or societies constituted under the Act and the rules thereunder.

(5)

The State Governments, while organising training programmes for the stakeholders at State or District level, shall ensure that training modules and training manuals to be developed by State Child Protection Society are in consultation with National Institute of Public Cooperation and Child Development or Institutions having requisite expertise in order to maintain uniformity in the training process throughout the country.

(6)

The Judicial Academy in States may develop training module and training manual for the training of Principal Magistrates including on child psychology, use of child friendly procedures and ensuring child friendly environment, care, protection and rehabilitation of children and organise such training programmes at the State level.

(7)

The Police Academy in States may develop training module and training manual in consultation with National Police Academy for the training of police and Child Welfare Police Officers including on child psychology, use of child friendly procedures and ensuring child friendly environment, care, protection and rehabilitation of children and organise such training programmes at the State level.

(8)

The State Legal Services Authority shall organise training programme for legal service lawyers and para legal volunteers.

(9)

The State Child Protection Society in consultation with institutions with requisite expertise shall organise training programme for Probation Officers.

(10)

The Central Adoption Resource Authority, may develop appropriate training modules and manuals for Specialised Adoption Agencies and staff of State Adoption Resource Agency and organise training programmes.

90.

Pending Cases.

(1)

No child shall be denied the benefits of the Act and the rules made there under.

(2)

The benefits referred to in sub-rule (1) shall be made available to all persons who were children at the time of the commission of the offence, even if they ceased to be children during the pendency of the inquiry or trial.

(3)

While computing the period of detention or stay or sentence of a child in conflict with law, all such period which the child had already spent in custody, detention, stay or sentence of imprisonment shall be counted as a part of the period of stay or detention or sentence of imprisonment contained in the final order of the court or the Board.

91.

Monitoring by National Commission for Protection of Child Rights and State Commissions for Protection of Child Rights.

(1)

In addition to the functions specified under the Commissions for Protection of Child Rights Act, 2005 (4 of 2006), the National Commission or the State Commission may perform following functions in consultation with the Central and State Government, namely:

(i)

review setting up of institutions created under the Act;

(ii)

develop Information, Education and Communication (IEC) material on child rights and gender sensitivity;

(iii)

develop protocols for reformation and rehabilitation of children;

(iv)

create awareness about identification and reporting of crimes against children such as drug abuse, trafficking, child sexual abuse and exploitation including child marriage, and other aspects of violence against children;

(v)

conduct sensitisation workshops for panchayati raj institutions and municipal corporations on crimes against children including identification and reporting of crimes for enhanced protection;

(vi)

develop information material detailing the rights of the child victims or witnesses and their families, and containing useful information in local languages, which may be provided to the victim and her/his family;

(vii)

develop training module for stake holders along with the State Child Protection Societies and National Institute of Public Cooperation and Child Development.

92.

Inquiry in case of a Missing Child.

(1)

A missing child is a child, whose whereabouts are not known to the parents, legal guardian or any other person or institution legally entrusted with the custody of the child, whatever may be the circumstances or causes of disappearance, and shall be considered missing and in need of care and protection until located or his safety and well-being established.

(2)

When a complaint is received about a child who is missing, the police shall register an First Information Report forthwith.

(3)

The police shall inform the Child Welfare Police Officer and forward the FIR to the Special Juvenile Police Unit for immediate action for tracing the child.

(4)

The police shall:

(i)

collect a recent photograph of the missing child and make copies for District Missing Persons Unit, Missing Persons Squad, National Crime Records Bureau/ Media etc.;

(ii)

fill the form on the designated portal;

(iii)

fill the specific designed 'Missing Persons Information Form' and immediately send to Missing Persons Squad, District Missing Persons Unit, National Crime Record Bureau, State Crime Records Bureau, Central Bureau of Investigation, and other related institutions;

(iv)

send the copy of the First Information Report by post/email to the office of the nearest Legal Services Authority along with addresses and contact phone numbers of parents or guardian of the missing child or the Child Care Institution, after uploading the relevant information onto the designated portal;

(v)

prepare sufficient number of Hue and Cry notices containing photograph and physical description of the missing child to be sent for publication.

(vi)

give wide publicity by publishing or telecasting the photographs and the description of the missing child, as feasible in (a) leading newspapers (b) Television/electronic media (c) local cable television network and social media and thereafter submit for ratification by the Board or the Committee or the Children's Court, as the case may be.

(vii)

give wide publicity in the surrounding area through the use of loud speakers and the distribution and affixture of Hue and Cry notice at prominent places. Social networking portals, Short Message Service alerts and slides in cinema halls can be used to reach out to the masses;

(viii)

distribute Hue and Cry notice at all the outlets of the city or town, that is, railway stations, bus stands, airports, regional passport offices and other prominent places;

(ix)

search areas and spots of interest such as movie theatres, shopping malls, parks, amusement parks, games parlours and areas where missing or run away children frequent should be identified and watched;

(x)

scan the recordings of the Closed Circuit Television Cameras installed in the vicinity of the area from where the child was reported missing and on all possible routes and transit destination points like bus stands, railway stations, and other places;

(xi)

inquire from under construction sites, unused buildings, hospitals, and clinics, childline services, and other local outreach workers, railway police, and other places;

(xii)

details of missing children should be sent to the District Crime Record Bureaus of the neighbouring States and Station House Officers (SHOs) of the bordering police stations including in-charge of all police posts in their jurisdiction and shall conduct regular interaction with the concerned so that follow up action is ensured.

(5)

Where a child cannot be traced within a period of four months, the investigation of the case shall be transferred to the Anti Human Trafficking Unit in the District which shall make reports every three months to the District Legal Services Authority regarding the progress made in the investigation.

(6)

When a child is traced:

(i)

he shall be produced before the Board or the Committee or the Children's Court, as the case may be, for appropriate directions;

(ii)

the police shall send a report to the District Legal Services Authority which shall provide counselling and support services to the child and the family; and

(iii)

the police shall conduct an inquiry whether the child has been subjected to any offence under the Act or any other law and if so, proceed accordingly.

(7)

The Central Government or the State Government may develop appropriate Standard Operating Procedures for the manner of inquiry in cases of missing children to give effect to these rules.

93.

Non-Compliance of the Act and the Rules.

- Any officer/institution, statutory body etc., who fails to comply with the provisions of the Act and the Rules framed there under, the State Government may take action against such officer/ institution, statutory body etc. after due inquiry and simultaneously make alternative arrangements for discharge of functions for effective implementation of the Act.

94.

Repeal.

- The Juvenile Justice (Care and Protection of Children) State Rules, 2007 notified vide 770 dated 25/05/2009, are hereby repealed:

Provided that any action taken or order issued under the provisions of the Rules of 2007 prior to the notification of these rules shall, in so far it is not inconsistent with the provisions of these rules, be deemed to have been taken or issued under the provisions of these rules.

Form 1

[Rules 8 (1), 8 (5) and 8(7)]

Social Background Report

FIR/DD No

U/Sections

Police Station

Date & Time

Name of I.O.

Name of CWPO

1. Name

2. Father/Mother/Guardian's name.....

3. Age/ Date of birth

4. Aadhaar Card No.....

5. Address.....

6. Religion

(i)

Hindu (OC/ BC/ SC/ST)

(ii)

Muslim/ Christian/ Other (pl. specify)

7. Whether the child is differently abled:

(i)

Hearing Impairment

(ii)

Speech Impairment

(iii)

Physically disabled

(iv)

Mentally disabled

(v)

Others (please specify)

8. Family Details:

S.No(1)

Name and Relationship (2)

Age(3)

Sex (4)

Education (5)

Occupation (6)

Income (7)

Health status (8)

History of Mental Illness (if any) (9)

Addictions (if any) (10)

9. Reasons for leaving home

10. Whether there is a history of involvement of family members in offences, if any

Yes

No

11. Habits of the child

A

B

(i) Smoking

(i) Watching TV/movies

(ii) Alcohol consumption

(ii) Playing indoor/ outdoor games

(iii) Drug use (specify)

(iii) Reading books

(iv) Gambling

(iv) Drawing/painting/acting/singing

(v) Begging

(v) Any other

(vi) Any other

12. Employment Details, if any.....

13. Details of income utilization:

(i)

Sent to family to meet family need

Yes

No

(ii)

Used by self for:

Yes

No

(a)

For dress materials Yes/No

(b)

For gambling Yes/No

(c)

For alcohol Yes/No

(d)

For drug Yes/No

(e)

For smoking Yes/No

(f)

Savings Yes/No

14. The details of education of the child:

(i)

Illiterate

(ii)

Studied up to V Standard

(iii)

Studied above V Standard but below VIII Standard

(iv)

Studied above VIII Standard but below X Standard

(v)

Studied above X Standard

15. The reason for leaving School

(i)

Failure in the class last studied

(ii)

Lack of interest in the school activities

(iii)

Indifferent attitude of the teachers

(iv)

Peer group influence

(v)

To earn and support the family

(vi)

Sudden demise of parents

(vii)

Bullying in school

(viii)

Rigid school atmosphere

(ix)

Absenteeism followed by running away from school

(x)

No age appropriate school nearby

(xi)

Abuse in school

(xii)

Humiliation in school

(xiii)

Corporal punishment

(xiv)

Medium of instruction

(xv)

Others (pl. specify)

16. The details of the school in which studied last:

(i)

Corporation/Municipal/Panchayat

(ii)

Government/SC Welfare School/BC Welfare School

(iii)

Private management

17. Vocational training, if any

18. Majority of the friends are

(i)

Educated

(ii)

Illiterate

(iii)
The same age group

(iv)
Older in age

(v)
Younger in age

(vi)
Same sex

(vii)
Opposite sex

(viii)
Addicts

(ix)
With criminal background

19. Whether the child has been subjected to any form of abuse: Yes/No

S.No

Type of Abuse

Remarks

1.

Verbal abuse - parents/siblings/
employers/others , (pl. specify)

2.

Physical abuse(pl. specify)

3.

Sexual abuse parents/siblings/ Employers/others
(pl. specify)

4.

Others (pl. specify)

20. Whether the child is a victim of any offence:

Yes

No

21. Whether the child is used by any gangs or adults or group of adults or has been used for drug peddling:

Yes

No

22. Reason for alleged offence such as parental neglect or over protection, peer group influence
etc.....

23. Circumstances in which the child was apprehended

24. Details of articles recovered from the child:

.....

25. Alleged role of the child in the
offence:.....

.....

26. Suggestions of Child Welfare Police
Officer.....

Signed by

Child Welfare Police Officer

Form 2

[Rule 8 (8)]

Undertaking By The Parent Or Guardian or Fit Person Given Interim Custody Pending Inquiry

Whereas I,..... (Name) resident of House no..... Street

Village/Town.....District.....State.....do hereby declare that I am willing to take charge of

(name of the child)..... aged..... under the orders of the Board subject to the following terms and conditions:

1. That I have annexed true, correct and authentic identification and address proof of myself.
2. That I undertake to produce him/her before the Board as and when required.
3. That I shall do my best for the welfare and education of the child as long as he/ she remains in my charge and shall make proper provision for his/her maintenance.
4. That in the event of his/her illness, he/she shall have proper medical attention in the nearest hospital and a report of it followed by a fitness certificate shall be submitted before the Board.
5. That I shall do my best to ensure that the child will not be subjected to any form of abuse/ neglect or exploitation
6. That if his/her conduct requires further supervision or care and protection, I shall at once inform the Board.
7. That if the child goes out of my charge or control, I shall immediately inform the Board.

Date thisday of20

Signature of person executing the Undertaking/ Bond,

(Signed before me)

Juvenile Justice Board.

Form 3

[Rule 10 (1)(iii)]

Supervision Order

When the child is placed under the care of a fit person/fit institution/Probation Officer pending inquiry FIR/DD No. of..... 20.....PS.....

Whereas (name of the child) is alleged to have committed an offence and is placed under the care of (Name)..... (address).....on executing a bond by the said and the Board is satisfied that it is expedient to deal with the said child by making an order placing him/her under supervision.

It is hereby ordered that the said child be placed under the supervision offor a period of.....subject to the following conditions:

1. That the child shall reside at..... for a period of.....and shall be produced before the Board as and when directed.
2. That the child shall not be allowed to quit the district jurisdiction ofwithout the permission of the Board.
3. That the child shall not be allowed to associate with such person who shall negatively influence the child.
4. That the person under whose care the child is placed shall arrange for the proper care, education and welfare of the child.
5. That the preventive measures will be taken by the person under whose care the child is placed to see that the child does not commit any offence punishable by any law in India.
6. That the child shall be prevented from taking narcotic drugs or psychotropic substances or any other intoxicants. The person under whose supervision the child is placed shall report any such act of the child to the Board.

Dated this.....day of..... 20.....

(Signature)

Principal Magistrate/ Member Juvenile Justice Board

Note: Additional, conditions, if any may be inserted by the Juvenile Justice Board.

Form 4

[Rule 10 (1)(iv)]

Order of Placing a Child in Child Care Institution Pending Inquiry

To

The Officer in charge

Whereas on the.....day of.....20.....,(Name of the child), son/ daughter of.....aged.....,residing at alleged to be involved in FIR/DD No. PSis ordered by the Juvenile Justice Board to be kept in the Child Care Institution (Observation Home/ Place of Safety) namely for a period of

This is to authorize and require you to receive the said child into your charge, and to keep him in the Child Care Institution (Observation Home/ Place of Safety)..... and to produce the child as and when directed

by the Board, for the aforesaid order to be carried into execution according to law.

Next date of hearing.....

Given under my hand and the seal of Juvenile Justice Board

This day of 20.....

(Signature)

Principal Magistrate/Member

Juvenile Justice Board.

Form 5

[Rule 10 (2)]

Order for Social Investigation Report

FIR No.....

U/Sections.....

Police Station.....

To,

Probation Officer/ Person in-charge of Voluntary or Non-Governmental Organization.

Whereas(Name of the Child), son/daughter of..... ageresiding at....., has been produced before the Board.

You are hereby directed to enquire into the social antecedents, family background and circumstances of the alleged offence by the said child and submit your social investigation report on or beforeor within such time as allowed to you by the Board.

You are also hereby directed to consult an expert in child psychology, psychiatric treatment or counselling or any other expert for their expert opinion if necessary and submit such report along with your Social Investigation Report.

Dated thisday of20.....

(Signature)

Principal Magistrate/ Member

Juvenile Justice Board.

Form 6

[Rules 10 (9), 11 (2), 64(1), 64(3)(i)]

Social Investigation Report For Children In Conflict With Law

Sl. No.....

Submitted to the Juvenile Justice Board..... (address).

Probation Officer/ Voluntary/Non- Governmental Organization..... (Name of the person)

FIR No.....

Under sections.....

Police Station.....

Nature of offence alleged: Petty Serious Heinous

1. Name.....

2. Age/Date/Year of birth.....

3. Aadhaar Card No

4. Sex.....

5. Caste.....

6. Religion.....

7. Father's Name.....

8. Mother's Name

9. Guardian's Name.....

10. Permanent Address.....

11. Landmark of the address.....

12. Address of last residence.....

13. Contact no. of father/mother/family member.....

14.

Whether the child is differently abled: Yes/No

- (i)
Hearing Impairment
- (ii)
Speech Impairment
- (iii)
Physically disabled
- (iv)
Mentally disabled
- (v)
Others (please specify)

15.

Family Details:

- S.No (1)
- Name and Relationship (2)
- Age (3)
- Sex (4)
- Education (5)
- Occupation (6)
- Income (7)
- Health status (8)
- History of Mental Illness (if any) (9)
- Addictions (if any) (10)

16. If the child or person is married, name, age and details of spouse and children:

.....
.....

17. Relationship among the family members:

- i. Father & mother
Cordial/ Non cordial/ Not known
- ii. Father & child
Cordial/ Non cordial/ Not known
- iii. Mother & child
Cordial/ Non cordial/ Not known
- iv. Father & siblings
Cordial/ Non cordial/ Not known
- v. Mother & siblings
Cordial/ Non cordial/ Not known
- vi. Child & siblings
Cordial/ Non cordial/ Not known
- vii. Child & grandparents
(paternal/maternal)
Cordial/ Non cordial/ Not known

18.

History of involvement of family members in offences, if any:

- S. No.
- Relationship
- Nature of Crime
- Legal status of the case
- Arrest if any made
- Period of confinement
- Punishment awarded

1.

Father

2.

Step father

3.

Mother

4.

Step mother

5.

Brother

6.

Sister

7.

Others (uncle/ aunty/ grandparents)

19. Attitude towards religion of child and family.....

20. Present living conditions

21. Other factors of importance if any.....

22. (i) Habits of the child (Tick as applicable)

A

B

(a) Smoking

(g) Watching TV/movies

(b) Alcohol consumption

(h) Playing indoor/ outdoor games

(c) Drug use (specify)

(i) Reading books

(d) Gambling

(j) Religious activities

(e) Begging

(k) Drawing/painting/acting/singing

(f) Any other

(l) Any other

(ii)

Extra-curricular interests.....

(iii)

Outstanding characteristics and personality traits.....

23. Child's opinion/reaction towards discipline in the home.....

24. Employment Details of the child, if any.....

25. Details of income utilization and manner of income utilization.....

26. Work record (reasons for leaving vocational interests, attitude towards job or employers).....

27. The details of education of the child:

(i)

Illiterate

(ii)

Studied up to V Standard

(iii)

Studied above V Standard but below VIII Standard

(iv)

Studied above VIII Standard but below X Standard

(v)

Studied above X Standard

28. Attitude of class mates towards the child.....
29. Attitude of teachers and classmates towards the child.....
30. The reason for leaving School (tick Yes/No as applicable)
- (i)
Failure in the class last studied
 - (ii)
Lack of interest in the school activities
 - (iii)
Indifferent attitude of the teachers
 - (iv)
Peer group influence
 - (v)
To earn and support the family
 - (vi)
Sudden demise of parents
 - (vii)
Bullying in school
 - (viii)
Rigid school atmosphere
 - (ix)
Absenteeism followed by running away from school
 - (x)
There is no age appropriate school nearby
 - (xi)
Abuse in school
 - (xii)
Humiliation in school
 - (xiii)
Corporal punishment
 - (xiv)
Medium of instruction
 - (xv)
Others (pl. specify)
31. The details of the school in which studied last:
- (i)
Corporation/Municipal/Panchayat
 - (ii)
Government/SC Welfare School/BC Welfare School
 - (iii)
Private management
32. Vocational training, if any.....
33. Majority of the friends are
- (i)
Educated
 - (ii)
Illiterate
 - (iii)
The same age group
 - (iv)
Older in age
 - (v)

Younger in age

(vi)

Same sex

(vii)

Opposite sex

(viii)

Addicts

(ix)

With criminal background

34. Attitude of the child towards friends.....

35. Attitude of friends towards the child.....

36. Observations of neighbours towards the child.....

37. Observations about neighborhood (to assess the influence of neighborhood on the child).....

38. Whether the child has been subjected to any form of abuse, if applicable: Yes/No

S.No

Type of Abuse

Remarks

1.

Verbal abuse - parents/ siblings / employers / others , (pl. specify)

2.

Physical abuse(pl. specify)

3.

Sexual abuse parents/siblings/ Employers/others (pl. specify)

4.

Others (pl. specify)

39. Whether the child is a victim of any offence: Yes/No

40. Whether the child is used by any gangs or adults or group of adults or has been used for drug peddling: Yes/No

41. Does the child has tendency to run away from home, give details if any: Yes/No

42. Circumstances of apprehension of the child.....

43. Alleged role of the child in the offence.....

44. Reason for alleged offence:

(i)

Parental neglect

(ii)

Parental overprotection

(iii)

Parents criminal behaviour

(iv)

Parents influence (negative)

(v)

Peer group influence

(vi)

Bad habits (to buy drugs/alcohol)

(vii)

Others (pl. specify)

45. Whether the child has been apprehended earlier for any offence, if yes give details including stay in a child care institution Yes/No

46. Previous institutional/case history and individual care plan, if any:
47. Physical appearance of the child:
48. Health condition of the child (including medical examination report, if applicable)
49. Mental condition of the child:
50. Any other remark

Result of Inquiry

1. Emotional factors
2. Physical condition
3. Intelligence
4. Social and economic factors.....
5. Suggestive causes of the problems.....
6. Analysis of the case, including reasons/contributing factors for the offence
7. Opinion of experts consulted.....
8. Recommendation regarding rehabilitation by Probation Officer/Child Welfare Officer.....

Signature of the Probation Officer/ Child Welfare Officer/ Social Worker

Stamp and Seal where available

Form 7

[Rules 11(3), 13(7)(vi), 13(8)(ii), 19(4), 19(17), 62(6)(vii), 62(6)(x), 69 I (3)]

Individual Care Plan

Child in Conflict with Law/ Child in Need of Care and Protection

(tick whichever is applicable)

Name of Case Worker/Child Welfare Officer/Probation officer.....

Date of preparing the ICP

Case/Profile No.....of 20.....

FIR No.....

U/Sections (Type of offence),applicable in case of Children in Conflict with Law.....

Police Station.....

Address of the Board or the Committee.....

Admission No.(if child is in an institution).....

Date of Admission (if child is in an institution).....

Stay of the child (Fill as applicable)

(i)

Short term (up to six months)

(ii)

Medium Term (six months to one year)

(iii)

Long term (more than 1 year)

A. Personal Details (to be provided by child/parent/both on admission of the child in the institution)

1. Name of the Child.....
2. Age/Date of Birth.....
3. Aadhaar Card No.....
4. Sex: Male/Female.....
5. Father's name:.....
6. Mother's name.....
7. Nationality.....
8. Religion.....
9. Caste.....
10. Language spoken.....
11. Level of Education.....
12. Details of Savings Account of the child, if any.....

13. Details of child's earnings and belongings, if any.....
14. Details of awards/rewards received by the child, if any.....
15. Based on the results of Case History, Social Investigation report and interaction with the child, give details on following areas of concern and interventions required, if any

S.No.

Category

Areas of concern

Proposed Interventions

1.

Child's expectation from care and protection

2.

Health and nutrition needs

3.

Emotional and psychological support needs

4.

Educational and Training needs

5.

Leisure, creativity and play

6.

Attachments and Inter-personal Relationships

7.

Religious beliefs

8.

Self care and life skill training for Protection

from all kinds of abuse, neglect and maltreatment

9.

Independent living skills

10.

Any other such as significant experiences which may have impacted the development of the child like trafficking, domestic violence, parental neglect, bullying in school, etc.

(Please specify)

B. Progress Report of the Child (to be prepared every fortnight for first three months and thereafter to be prepared once a month)

[Note: Use different sheet for Progress Report]

1. Name of the Probation Officer/Case Worker/Child Welfare Officer.....

2. Period of the report.....

3. Admission No.....

4. Board or Committee.....

5. Profile No.....

6. Name of the Child.....

7. Stay of the child (Fill as applicable)

(i)

Short term (up to six months)

(ii)

Medium Term (six months to one year)

(iii)

Long term (more than 1 year)

8. Place of interview Dates.....

9. General conduct and progress of the child during the period of the report

.....

10. Progress made with regard to proposed interventions as mentioned in point 14 of Part A of this Form.

S.No.

Category

Proposed Interventions

Progress of the child

1.

Child's expectation from care and protection

2.

Health and nutrition needs

3.

Emotional and psychological support needed

4.

Educational and Training needs

5.

Leisure, creativity and play

6.

Attachments and Interpersonal Relationships

7.

Religious beliefs

8.

Self care and life skill training for Protection
from all kinds of abuse, neglect and maltreatment

9.

Independent living skills

10.

Any other such as significant experiences which
may have impacted the development of the child like trafficking,
domestic violence, parental neglect, bullying in school, etc.

(Please specify)

11. Any proceedings before the Committee or Board or Children's Court

(i)

Variation of conditions of bond

(ii)

Change of residence of the child

(iii)

Other matters, if any

12. Period of supervision completed on.....

Result of supervision with remarks (if any).....

Name and Addresses of the parent or guardian or fit person under whose care the child is to live after the supervision is
over.....

Date of report.....Signature of the Probation Officer.....

C. Pre-Release Report (to be prepared 15 days prior to release)

1. Details of place of transfer and authority concerned responsible in the place of transfer/release

2. Details of placement of the child in different institutions/family

3. Training undergone and skills acquired

4. Last progress report of the child (to be attached, refer Part B)

5. Rehabilitation and restoration plan of the child (to be prepared with reference to progress reports of the child)

S.No.

Category

Rehabilitation and restoration plan of the
child

1. Child's expectation from care and protection
 2. Health and nutrition
 3. Emotional and psychological
 4. Educational and Training
 5. Leisure, creativity and play
 6. Attachments and Inter-personal Relationships
 7. Religious belief
 8. Self care and life skill training for Protection from all kinds of abuse, neglect and maltreatment
 9. independent living skills
 10. Any other
 6. Date of release/transfer/repatriation.....
 7. Requisition for escort if required.....
 8. Identification Proof of escort such as driving license, Aadhar Card, etc.....
 9. Recommended rehabilitation plan including possible placements/sponsorships....
 10. Details of Probation Officer/non-governmental organization for post-release followup.....
 11. Memorandum of Understanding with non-governmental organisation identified for post-release follow-up (Attach a copy).....
 12. Details of sponsorship agency/individual sponsor, if any.....
 13. Memorandum of Understanding between the sponsoring agency and individual sponsor (Attach a copy).....
 14. Medical examination report before release.....
 15. Any other information.....
 - D. Post-Release/restorastion Report Of The Child
 1. Status of Bank Account : Closed / Transferred
 2. Earnings and belongings of the child: handed over to the child or his parents/guardians - Yes/No
 3. First interaction report of the Probation Officer/Child Welfare Officer/Case Worker /social worker/non-governmental organisation identified for follow-up with the child post-release.....
 4. Progress made with reference to Rehabilitation and Restoration Plan.....
 5. Family's behavior/attitude towards the child.....
 6. Social milieu of the child, particularly attitude of neighbours/community.....
 7. How is the child using the skills acquired.....
 8. Whether the child has been admitted to a School or vocation? Give date and name of the school/institute/any other agency Yes/No
 9. Report of second and third follow-up interaction with the child after two months and six months respectively.....
 10. Efforts towards social mainstreaming and child's opinion/views about it.....
 11. Identity Cards and Compensation
- [Instruction: Please verify with the physical documents]
- Identity Cards

Present status (Please tick whichever is applicable)

Yes

No

Action taken

Birth Certificate

School certificate

Caste certificate

BPL Card

Disability Certificate

Immunization card

Ration Card

Adhaar Card

Received compensation from Government

Signature of the Probation Officer/Child Welfare Officer

Stamp and Seal where available

Form 8

[Rule 11(6)]

Undertaking/ Bond To Be Executed By A Parent/ Guardian/ /fit Person In Whose Care A Child In Conflict With Law Is Placed

Whereas I, being the parent, guardian, relative or fit person under whose care.....(name of the child) has been ordered to be placed by the Juvenile Justice Board..... having been directed by the said Board to execute an undertaking/ bond with surety in the sum of Rs...../- (Rupees.....) or without surety, I hereby bind myself to be responsible for the good behavior and well-being of the saidand to observe the following conditions for a period of years with effect from

1. That I shall not change my place of residence without giving previous intimation in writing to the Juvenile Justice Board through the Probation Officer;
2. That I shall not remove the said child from the limits of the jurisdiction of the Juvenile Justice Board without previously obtaining the written permission of the Board;
3. That I shall send the said child daily to school/to such vocation as is approved by the Board unless prevented from so doing by circumstances beyond control;
4. That I shall sincerely give effect to the Individual Care Plan with the help of the Probation Officer;
5. That I shall report immediately to the Board whenever so required by it and also produce the child before the Board as and when directed to do so;
6. That I shall produce the said child in my care before the Board, if he/she does not follow the orders of Board or his/her behavior is beyond my control;
7. That I shall report to the Board if the child goes out of my control or charge;
8. That I shall render all necessary assistance to the Probation Officer to enable him to carry out the duties of supervision;

In the event of my making default herein, I undertake to appear before the Board and bind myself to pay to Government the sum of Rs (Rupees.....). Dated thisday of20.

Signature of person executing the Undertaking/Bond.

(Signed before me)

Principal Magistrate/ Member Juvenile Justice Board

Additional conditions, if any, by the Juvenile Justice Board may be entered numbering them properly;

(Where a bond with sureties is to executed add)

I/We of (place of residence with full particulars) hereby declare myself/ourselves as surety/sureties for the aforesaid (name of the person executing the undertaking/bond) to adhere to the terms and conditions of this undertaking/bond. In case of (name of the person executing the bond) making fault therein, I/We hereby bind myself/ourselves jointly or severally to forfeit to government the sum of Rs...../- (Rupees.....) dated this the..... day of20..... in the presence of

Signature of Surety(ties)

(Signed before me)

Principal Magistrate/ Member, Juvenile Justice Board

Form 9

[Rules 11(7)]

Personal Bond By Child

Whereas I, inhabitant of.....(give full particulars such as house number, road, village/town, tehsil, district, state) have been ordered to be sent back/restored by the Juvenile Justice Boardunder section of the Juvenile Justice (Care and Protection of Children) Act, 2015 on my entering into a personal bond to observe the conditions mentioned herein below. Now, therefore, I do solemnly promise to abide by these conditions during the period.....

I hereby bind myself as follows:

1. That during the period..... I shall not ordinarily leave the village/town/district to which I am sent and shall not ordinarily return to.....or go anywhere else beyond the said district without the prior permission of the Board;
2. That during the said period I shall attend school/ vocational training in the village/town or in the said district to which I am sent;
3. That in case of my attending school/ vocational training at any other place in the said district I shall keep the Board informed of my ordinary place of residence.

I hereby acknowledge that I am aware of the above conditions which have been read over/explained to me and that I accept the same.

(Signature or thumb impression of the child)

Certified that the conditions specified in the above order have been read over/explained to (Name of child)and that he has accepted them as the conditions upon non-compliance of which he/she may be placed in safe custody. Certified accordingly that the said child has been released/ relieved on (date)

Signature

Principal Magistrate/Members Juvenile Justice Board

Form 10

[Rules 11(9) and 64 (3) (xiii)]

Periodic Report By Probation Officer When A Child Is Released On Probation

FIR No..... Police StationU/Sections..... In the matter of..... vs.....

Whereas (name of the child), age....., has on..... (date) been found to be a child in conflict with law, and has been placed under the care of (parent/ guardian/ fit person/fit facility) and under the supervision of(name of Probation Officer)

Reg. No. :-

Age (approximately)

:-

Aadhaar Card No: -

Sex:- Male / Female /

Name:-

Fathers Name:-

Religion:-

Education: -

Vocational Training, if any

Language(s) known:-

Next court date:-

Employment, if any

Date of admission (in case of fit person/fit facility)

Case details and summary

.....
.....

.....

1. Preliminary details:

(i)

Visit Date:/...../.....

(ii)

Name of Parent / Guardian.....

(iii)

Names of Other Adults Living in the Home and with whom the Probation Officer interacted:

a.

b.

c.

2. Observations:

(i)

Child's behaviors.....

(ii)

Physical and mental health status/needs of child and family.....

(iii)

Inter-personal relationship of the child with the family.....

(iv)

Inter-personal relationship with friends.....

(v)

Safety and supervision in the family.....

(vi)

Difficulties faced by the child.....

(vii)

Difficulties faced by the family.....

(viii)

Changes in the household.....

(ix)

Vocational training, if any being undertaken by the child.....

(x)

Engagement of child in any anti-social activities or harmful activities (Examples could be exhibiting bullying behaviour, violent outbursts, destructions, self-harm, lying, defiance, impulsiveness, lack of empathy, sexually deviant actions etc.)

.....

(xi)

Time elapsed since last engagement in any anti-social behavior or harmful activities.....

3. Visit to school/ vocational training centre

(i)

Name of the school/centre.....

(ii)

Name of the Teacher / Principal met.....

(iii)

Any unusual behavior observed.....

(iv)

Feedback received on the progress of the child.....

(v)

Attitude of the peers towards the child.....

(vi)

Attitude of the child towards the peers.....

4. Visit to place of employment:

(i)

Nature of work.....

(ii)

Working hours.....

(iii)

Attitude of the child towards work.....

(iv)

Violation of any labour laws, Low wages or wages being withheld, if observed and action taken against employer.....

5. Did you spend time speaking privately with the child If no, give reasons..... Yes No

6. Progress made as per Rehabilitation and Restoration Plan under the Individual Care Plan (refer point 14 of form 7).....

7. Recommendations for modifications in Rehabilitation and Restoration Plan under the Individual Care Plan , if any:

Prepared by:

(Probation Officer/...../.... (date)

Plan: Date of next visit:

Action point if any:

Signature

(Probation Officer)

Form 11

[Rule 12(1)]

Case Monitoring Sheet

(Separate Sheet may be used in case there are more than one child)

Juvenile Justice Board, District.....

Case No.of.....

Case Name:

Police Station

.....

U/S.....

Date.....

.....

FIR/ GD/ DD No.

.....

Name of Probation

officer.....

Name of Lawyer

.....

(If not represented provide Legal Aid Lawyer)

Name of IO

.....

Name of Child Welfare Police Officer.....

Nature of Offence

Petty

(maximum punishment

upto three years)

Serious

(maximum punishment

between three to seven years)

Heinous

(minimum punishment for seven years or more)

Particulars Of Child

Name

Parents/ Guardian with Contact No.

Present address

Permanent address

Date and Time child Apprehended

Date And Time Of First Production

Date Of Medical Examination Under Section 54

Cr.P.C.

Age Determination

Age on the Date of offence

Date of age Determination

Time taken for age determination

Determination by

Board

Court

Evidence Relied:

Documents

Medical

Custody of the child

In Observation Home/ Place of Safety

Date of grant of bail

Sent under supervision (Name of Institution)

From.....To.....

Progress of Inquiry

(Time schedule for disposal of the case to be fixed on the first day of hearing)

Steps to be taken

Scheduled Date

Actual Date

Day 1: Social Background Report by Police (in
Form No. 1)

Dated.....

Day 1: Consideration of Bail

Dated.....

Day 2: Age determination

Dated.....

Day 2: SIR (Form No.6) by Probation Officer

Dated.....

Day 2: Section 173 CrPC Final Report by Police
on completion of Investigation

Dated.....

Day 3: Submission of Report on Provisions of
further investigation, if any

Dated.....

Day 3: Section 251 CrPC Notice

Dated.....

Day 4-6: Prosecution

Evidence (From..... to.....)

Depending on the number of witnesses continuous
dates may be fixed)

Dated.....

Dated.....

Dated.....

Day 7: Statement of child under Section 281 CrPC

Dated.....

Day 8: Defence Evidence

Dated.....

Day 8: Individual Care Plan (In case of child in institutional care Individual Care Plan should be prepared within one month of admittance

Dated.....

Day 9: Final Arguments

Dated.....

Day 10: Dispositional (Final) Order

Dated.....

Day 11: Post Dispositional Review

Dated.....

signed by

Juvenile Justice Board

Form 12

[Rule 12(2)]

Quarterly Report By Juvenile Justice Board

District

Quarterly Report for the period: From..... to.....

Details of JJB

S.No.

Details

Date of Appointment

Training attended

1.

Principal Magistrate

2.

Member 1

3.

Member 2

4.

Member 3

Visit to Child Care

Institution by Board

Date of visit:

Name and Address of

Home :

Remark:

Visit To Jails By

Principal Magistrate

Date of Visit:

Whether any children

found:

Action taken:

Cases Instituted During The Quarter:

Petty

Serious

Heinous
Total
Number cases
Number of Children
Children granted bail
Children sent to Observation Home
Number of cases where preliminary reports were
submitted in stipulated time
Pendency of cases
Nature of case
Old cases
New cases
Disposal
Current pendency
Less than 4 months
4 months to 6 months
6 months to 1 year
More than 1 year
Petty
Serious
Heinous
Total
Final Order
Total number of final orders passed
Discharged
Transfer to other JJB
Abated on Death
Repatriated to Foreign Country
Transferred to Children's Court
Declared Compounded & file consigned
Terminate d under rule (postproduction
process)
Acquitted/ Finding of commission in offence
Nature of Dispositional Orders where child has
committed Offence (mention the No. of orders)
Complaint/suggestion,
if any, Received and Action Taken

Remark/suggestion

by Board

a. Principal

Magistrate

b. Member : 1

c. Member: 2

Principal Magistrate

Member -1

Member -2

Form 13

[Rules 13(8)(iv)]

Periodic Review of a Child in Place of Safety

FIR No..... PS.....U/Sections

In the matter of vs.

Whereas (name of the child),age....., has on(date) been found to be a child in conflict with law, and has been placed in..... (Name of place of safety)

Date of admission to place of safety -

Period of Review: From..... to.....

Name of the Child.....

Aadhaar Card No.....

Father's Name.....

Date of admission.....

Next date of hearing.....

1. Case details and summary.....

2. Individual Care Plan (Attach a copy).....

3. Fortnightly progress made as per Individual Care Plan.....

4. Development of new interests.....

5. Psycho-social progress made by the child: (to be prepared with the help of a psycho-social expert).....

I. Mental Status Evaluation

a.Appearance (Observed) - Possible descriptors: ? posture, clothes, grooming.

b.Behavior (Observed) - Possible descriptors: ? Mannerisms, gestures, psychomotor activity, expression, eye contact, ability to follow commands/requests, compulsions

II. Attitude (Observed) - Possible descriptors: ? Cooperative, hostile, open, secretive, evasive, suspicious, apathetic, easily distracted, focused, defensive.

III. Level of Consciousness (Observed) - Possible descriptors: ? Vigilant, alert, drowsy, lethargic, stuporous, asleep, comatose, confused, fluctuating.

IV. Orientation (Inquired) - Possible questions: ? "What is your full name?" ? "Where are we at (floor, building, city, county, and state)?" ? "What is the full date today (date, month, year, day of the week, and season of the year)?" ? "How would you describe the situation we are in?"

V. Speech and Language (Observed) A. Quantity - Possible descriptors: ? Talkative, spontaneous, quiet B. Rate - Possible descriptors: ? Fast, slow, normal, pressured. C. Volume (Tone).

VI. Mood (Inquired): A sustained state of inner feeling - Possible questions: ? "How are you feeling?" ? "Have you been discouraged/depressed/low?" ? "Have you been energized/elated/high/out of control lately?" ? "Have you been angry/irritable?"

VII. Affect (Observed): An observed expression of inner feeling.

VIII. Thought Processes or Thought Form (Inquired/Observed): logic, relevance, organization, flow and coherence of thought in response to general questioning during the interview. - Possible descriptors: goaldirected, circumstantial, loose associations, incoherent, evasive, perseveration.

IX. Thought Content (Inquired/Observed)

X. Suicidality and Homicidality - Assessment

XI. Insight (Inquired/Observed) -

XII. Attention (Inquired/Observed) -

XIII. Feelings of guilt/ remorse: present/ absent

6. Status of Current Educational/ Vocational Rehabilitation Programme

? Motivation for the programme.....

? Level of cooperativeness.....

? Regularity.....

? Quality of work/performance.....

7. Impact of institutionalization on the person.....

8. Approach to evaluation/ periodic follow ups.....

Willingness /ability to participate in treatment and rehabilitation in programs/facilities, consistent with public safety.

Recommendations (including whether the person may be released or released on conditions or requires further institutionalization with justification)

Date : / /

Place :

Name :

Designation :

Signature :

Recommendations/Findings:

Signature / Seal

Prepared by:

(Probation Officer/Social Worker/ Child Protection Officer/...../.... (date)

Form 14

[Rules 7 (1) (ii), 13(8)(vi)(C) (cd), 17(1)(vi), 19(20), 65(3)(viii), 69E(2), 69 I (4), 69J(1), 69J(3)]

Rehabilitation Card

FIR No. /Case No.

U/Sections

PS

Nature of Offence: heinous, serious or petty (in case of child in conflict with law)

Name of Probation Officer/Child Welfare Officer/Rehabilitation cum Placement Officer:

.....

Name of the child:

Age:

Aadhaar Card No :

Sex:

Father's name:

Mother's name:

Admission No.

Date of Admission:

Date of Provisional Release / Release:

Services availed under Individual Care Plan -

Indicators

Child's expectation from care and protection

First Month

Plan :

Outcome :

Second Month

Plan :

Outcome :

Third Month

Plan :

Outcome :

Fourth Month

Plan :

Outcome :

Health and Nutrition

First Month

Plan :

Outcome :

Second Month

Plan :

Outcome :

Third Month

Plan :

Outcome :

Fourth Month

Plan :

Outcome :

Emotional and psychological support needed

First Month

Plan :

Outcome :

Second Month

Plan :

Outcome :

Third Month

Plan :

Outcome :

Fourth Month

Plan :

Outcome :

Education and Training

First Month

Plan :

Outcome :

Second Month

Plan :

Outcome :

Third Month

Plan :

Outcome :

Fourth Month

Plan :

Outcome :

Leisure, creativity and play

First Month

Plan

Outcome

Second Month

Plan

Outcome

Third Month

Plan

Outcome

Fourth Month

Plan

Outcome

Attachments and Inter-personal Relationships

First Month

Plan

Outcome :

Second Month

Plan

Outcome :

Third Month

Plan

Outcome :

Fourth Month

Plan

Outcome :

Self Care and Life Skill Training for

Protection from all kinds of abuse, neglect and maltreatment

First Month

Plan

Outcome :

Second Month

Plan

Outcome :

Third Month

Plan Outcome :

Fourth Month

Plan

Outcome :

Independent living skills

First Month

Plan

Outcome :

Second Month

Plan

Outcome :

Third Month

Plan

Outcome :

Fourth Month

Plan

Outcome :

Any other such as significant experiences

which may have impacted the development of the child like
trafficking, domestic violence, parental neglect, bullying in
school etc.

First Month

Plan

Outcome :

Second Month

Plan

Outcome :

Third Month

Plan

Outcome :

Fourth Month

Plan

Outcome :

Report of the detailed psychiatric assessment done by certified psychiatrist to be attached along with Rehabilitation card

Date of report and reason for conducting the said assessment (Provisional Release / Release/ Any other)

1. Overall progress shown by the child on the above mentioned aspects of the Individual Care Plan
2. Child's acceptance and understanding of his actions and its consequences
3. Child's willingness to reform
4. Child's behavior and conduct
5. Offence committed by the child , if any reported by family or neighbourhood, in case of a child in conflict with law who is not placed in a Child Care Institution

Signed by

JJB/ CWC

Form 15

[Rule 17 (1)(i)]

Case Summary Maintained by the Child Welfare Committee

Case No.....

In Re.....

Case Record.....

1. Name of the child.....
2. Aadhaar Card No.....
3. Father's/Mother's/Guardian's name (if available).....
4. Date of production of the child.....
5. Name of person producing the child.....
6. A list of all follow up dates (of the child, before the Committee).....
7. Orders passed by the CWC (tick as applicable)

(i)

Declaration that child is in need of care and protection.

(ii)

Finding on age of child

(iii)

Medical Examination

(iv)

Interim custody

(v)

Undertaking (by parent, guardian or fit person, if applicable)

(vi)

Order appointing Case Worker & NGO etc

(vii)

Order for compensation/recovery of wages (if applicable)

(viii)

Transfer order

(ix)

Final Order (concluding inquiry)

(x)

Any other order.

8. Medical Records including but not limited to age verification.....
9. Social Investigation Report under Form 22.....
10. Individual Care Plan under Form 7.....
11. Rehabilitation Card in Form 14.....
12. Case History Form 43.....
13. All details, documents and records with regards to Sponsorship/Foster Care/Adoption services (if applicable).

Date:

Place:

(Signatures)

Child Welfare Committee

Form 16

[Rules 17(1)(v), 20(2)]

Quarterly Report By Child Welfare Committee

District

Quarterly Report for the period: From..... to.....

Details of CWC

S.No.

Details

Date of Appointment

Training attended

1.

Chairperson

2.

Member 1

3.

Member 2

4.

Member 3

5.

Member 4

Details of Cases with CWC

S.No.

Number of cases at the beginning of Quarter

Number of cases received during the quarter

Number of cases disposed of during the quarter

Number of cases pending at the end of quarter

Reasons for pendency

Final Order

Total number of final orders passed during the quarter

Released to parent/

guardian/ fit person/fit institution

Transfer to other CWC

Ordered to stay in

CCI

Repatriated to

Foreign Country

Declared legally free

for adoption

Ordered for foster

care / sponsorship/ Aftercare

Recommend to JJB for

filing FIR

Initiate process of

compensation to child, if eligible

Visit To Homes By Chairperson/ Members

Date of visit:

Name and Address of Home visited:

Remarks/Suggestions of the Committee.....

Signature of Chairperson

Seal

Form 17

[Rules 18(2), 19(25)]

Report to be Submitted at time of Production of Child before the Committee

Case No.....

Produced before the Child Welfare Committee.....

Date of production..... Time of production.....

Place of production.....

1. Details of person who is producing the child:

(i)

Name of the person

(ii)

Age.....

(iii)

Sex.....

(iv)

Address

(v)

Contact number.....

(vi)

Occupation/ designation.....

(vii)

Name of the organization/CCI/SAA

2. The child who is being produced:

(i)

Name (if any).....

(ii)

Age (stated age/ age based on appearance)

(iii)

Aadhaar Card No.....

(iv)

Sex

(v)

Identity mark/s.....

(vi)

Language used by the child.....

3. Details of parents / guardians (if available):

(i)

Name

(ii)

Age.....

(iii)

Address.....

(iv)

Contact number.....

(v)

Occupation.....

4. Place where the child was found.....

5. The details of the person (if any) with whom the child was found:

i. Name

ii. Age.....

iii. Address.....

iv. Contact number.....

v. Occupation.....

6. Circumstances under which the child was found.....

7. Allegation by the child of any offence/ abuse committed on the child in any manner.....

8. Physical condition of the child.....

9. Belongings of the child at the time of production.....

10. Date and Time at which the child came to the CCI/SAA.....

11. Immediate efforts made to trace family of the child

12. Medical treatment, if provided to the child

13. Whether police has been informed

Signature/ Thumb impression of the child

Signature/ Thumb impression of the person who produced the child

Police-Local Police/Special Juvenile Police Unit/ designated child welfare police officer / Railway Police/Probation Officers/ any public servant/Social Welfare Organization/Social Worker/ Person in-charge CCI/ SAA/ any citizen/Child himself/herself (fill as applicable)

Form 18

[Rules 18 (5), 18 (9) and 19 (26)]

Order of Placement of a Child in an Institution

(Children's Home/Fit Facility/SAA)

Case No.....

To,

The Officer-in-Charge,

Whereas on theday of20 (name of the child), son/daughter of agedresiding at being in care and protection under the Juvenile Justice (Care and Protection) Act 2015 is ordered by the Child Welfare Committee, to be kept in the Children's Home/SAA/Fit Facility.....for a period of

This is to authorize and require you to receive the said child in your charge, and to keep him/her in the Children's Home/ Fit Facility /SAA..... for the aforesaid order to be carried into execution according to law. The concerned official shall upload the details in case of an orphan or abandoned child in the TrackChild/ relevant Web Portal.

Given under my hand and the seal of Child Welfare Committee.

This day of

(Signature)

Chairperson/ Member

Child Welfare Committee

Encl:

Copy of the orders, particulars of home and previous record, case history and individual care plan, as applicable:

Form 19

[Rule 18(8)]

Order for placement of child under the care of a Parent, Guardian or fit Person Pending Inquiry

Case No.of20.....

In Re.....

Whereas (name of the child) has on(date) been found to be in need of care and protection, and is placed under the care and supervision of (name)..... (address).....on executing a bond by the said and the Committee is satisfied that it is expedient to deal with the said child by making an order placing him/her under supervision.

Reason for the child being produced before the CWC.....

It is hereby ordered that the said child be placed under the supervision of (name).....
(address)..... for a period of This shall be subject to the following conditions that:

1. the child along with the copies of the order and the bond, if any, executed by the said..... shall be produced before the Committee as and when required by the person executing the bond
2. the child shall reside at for a period of
3. the child shall not be allowed to quit the district jurisdiction ofwithout the permission of the Committee.
4. the child shall go to school/ vocational training centre regularly. The child shall attend(name of) school/ vocational training centre (if already identified) at(address of school/ vocational training centre).
5. the person under whose care the child is placed shall arrange for the proper care, education and welfare of the child.
6. the child shall not be allowed to associate with undesirable characters and shall be prevented from coming in conflict with law.
7. the child shall be prevented from taking narcotic drugs or psychotropic substances or any other intoxicants.
8. the directions given by the Committee from time to time, for the due observance of the conditions mentioned above, shall be carried out.

Dated this _____ day of _____ 20 _____

(Signature)

Chairperson/ Member Child Welfare Committee

? Additional conditions, if any may be inserted by the Child Welfare Committee

Form 20

[Rule 18(8) and 19 (7)]

Undertaking by the Parent or Guardian or 'fit Person'

Iresident of House no.....Street Village/TownDistrict State
.....do hereby declare that I am willing to take charge of (name of the child) Aged..... under the orders of the Child Welfare Committee..... subject to the following terms and conditions:

1. If his conduct is unsatisfactory I shall at once inform the Committee.
2. I shall do my best for the welfare and education of the said child as long as he remains in my charge and shall make proper provision for his maintenance.
3. In the event of his/her illness, he shall have proper medical attention in the nearest hospital.
4. I agree to adhere to the conditions that may be imposed by the Committee from time to time and also to keep the Committee informed about the compliance with the conditions.
5. I undertake to produce him/her before the Committee as and when required.
6. I shall inform the Committee immediately if the child goes out of my charge or control.

Date thisday of

Signature

Signed before Child Welfare Committee

Form 21

[Rule 19(3)]

Order for social investigation report of child in need of care and Protection

To

Child Welfare Officer/ Social Worker/Case Worker/ Person in-charge of Home/ representative of Non- Governmental Organization

Whereas a report under section 31 (2) of the Juvenile Justice (Care and Protection of Children) Act, 2015 has been received from in respect of (name of the child)....., aged (approximate)....., son/daughter ofresiding at....., who has been produced before the Committee under section 31 of the Juvenile Justice (Care and Protection of Children) Act, 2015.

You are hereby directed to conduct Social Investigation as per Form 22 for the above child. You are directed to enquire into socio economic and family background of the said child.

You are directed to submit the Social Investigation Report on or before (date).

Dated thisday of20.....

(Signature)

Chairperson/Member

Child Welfare Committee

Form 22

[Rule 19(8)]

Social investigation report for child in need of care and protection

Sl. No.....

Produced before the Child Welfare Committee.....

Case No.....

Social Investigation Report Prepared by: Child Welfare Officer/ Social Worker/Case Worker/ Person in-charge of Home/
representative of Non- Governmental Organization

Category of child in need of care and protection:

1. Name.....

2. Age/Date/Year of birth.....

3. Sex.....

4. Caste.....

5. Religion.....

6. Aadhaar Card No.....

7. Father's Name.....

8. Mother's Name

9. Guardian's Name.....

10. Permanent Address.....

11. Landmark of the address.....

12. Address of last residence.....

13. Contact no. of father/mother/family member.....

14. Whether the child is differently abled: Yes/ No

(i)

Hearing Impairment

(ii)

Speech Impairment

(iii)

Physically disabled

(iv)

Mentally disabled

(v)

Others (please specify)

15. Family Details:

S.N . (1)

Name and Relationship (2)

Age (3)

Sex (4)

Education (5)

Occupation (6)

Income (7)

Health status (8)

History of Mental Illness (9)

Addictions (10)

16. Relationship among the family members:

i. Father & mother

Cordial/ Non cordial/ Not known

ii. Father & child

Cordial/ Non cordial/ Not known

iii. Mother & child

Cordial/ Non cordial/ Not known

iv. Father & siblings

Cordial/ Non cordial/ Not known

v. Mother & siblings

Cordial/ Non cordial/ Not known

vi. Child Non

cordial/ Not known

vii. Child & relative

Cordial/ Non cordial/ Not known

17. If child is married, name, age and details of spouse and children.....

18. History of involvement of family members in offences, if any:

S. No.

Relationship

Nature of Crime

Legal status of the case

Arrest if any Made

Period of Confinement

Punishment awarded

1.

Father

2.

Step father

3.

Mother

4.

Step mother

5.

Brother

6.

Sister

7.

Others (uncle/ aunty/ grandparents)

19. Attitude towards religion.....

20. Present living conditions

21. Other factors of importance if any.....

22. Habits of the child

A

B

(i) Smoking

(i) Watching TV/movies

(ii) Alcohol consumption

(ii) Playing indoor/outdoor games

(iii) Drug use (specify)

(iii) Reading books

(iv) Gambling

(iv) Religious activities

(v) Begging

(v) Drawing/painting/acting/singing

(vi) Any other

(vi) Any other

23. Extra-curricular interests.....

24. Outstanding characteristics and personality traits.....

25. The details of education of the child (tick as applicable)

(i)

. Illiterate

(ii)

. Studied up to V Standard

(iii)

. Studied above V Standard but below VIII Standard

(iv)

. Studied above VIII Standard but below X Standard

(v)

. Studied above X Standard

26. The details of the school in which studied last(tick as applicable) :

a. Corporation/Municipal/Panchayat

b. Government/SC Welfare School/BC Welfare School

c. Private management

27. Attitude of class mates towards the child.....

28. Attitude of teachers and classmates towards the child.....

29. The reason for leaving School (tick as applicable)

a. Failure in the class last studied

b. Lack of interest in the school activities

c. Indifferent attitude of the teachers

d. Peer group influence

e. To earn and support the family

f. Sudden demise of parents

g. Bullying in school

h. Rigid school atmosphere

i. Absenteeism followed by running away from school

j. There is no appropriate level of school nearby

k. Abuse in school

l. Humiliation in school

m. Corporal punishment

n. Medium of instruction

o. Others (pl. specify)

30. Vocational training, if any.....

31. Employment Details, if any.....

32. Details of income utilization.....

33. Work record (reasons for leaving vocational interests, attitude towards job or employers).....

34. Majority of the friends are (tick as applicable)

(a)

Educated

(b)

Illiterate

(c)

The same age group

(d)

Older in age

(e)

Younger in age

(f)

Same sex

(g)

Opposite sex

(h)

Addicts

(i)

With criminal background

35. Attitude of the child towards friends.....

36. Attitude of friends towards the child.....

37. observation about neighbourhood (to assess the influence of neighbourhood on the child).....

38. Mental condition of the child: (Present and past).....

39. Physical condition of the child: (Present and past).....

40. Health status of the child

i. Respiratory disorders - present / not known / absent

ii. Hearing impairment - present / not known / absent

iii. Eye diseases- present / not known / absent

iv. Dental disease- present / not known / absent

v. Cardiac diseases- present / not known / absent

vi. Skin disease-present / not known / absent

vii. Sexually transmitted diseases- present / not known / absent

viii. Neurological disorders- present / not known / absent

ix. Mental handicap- present / not known / absent

x. Physical handicap- present / not known / absent

xi. Urinary tract infections -present / not known / absent

xii. Others (pl. specify) -

41. Whether the child has any addiction Yes/ No

42. With whom the child was staying prior to production before the Committee

(i)

Parent(s) - Mother / Father / Both

(ii)

Siblings / Blood relative

(iii)

Guardian(s) - Relationship

(iv)

Friends

(v)

On the street

(vi)

Night shelter

(vii)

Orphanages / Hostels/ Similar Homes

(viii)

Other (pl. specify)

43. History/ tendency of the child to run away from home, if any.....

44. Parents attitude towards discipline in the home and child's reaction.....

45. Reasons for leaving the family (tick as applicable)

(i)

Abuse by parent(s)/guardian(s)/step parents(s)

(ii)

In search of employment

(iii)

Peer group influence

(iv)

Incapacitation of parents

(v)

Criminal behaviour of parents

(vi)

Separation of Parents

(vii)

Demise of parents

(viii)

Poverty

(ix)

Others (please specify)

46. Whether the child is a victim of any offence Yes/No

47. Types of abuse met by the child (tick as applicable)

(i)

Verbal abuse - parents/siblings/ employers/others (pl. specify)

(ii)

Physical abuse

(iii)

Sexual abuse parents/siblings/ Employers/others (Pl. specify)

(iv)

Others - parents/siblings/ employers/others (pl. Specify)

48. Types of ill-treatment met by the child(tick as applicable).

(i)

Denial of food - parents/siblings employers/other (pl. specify)

(ii)

Beaten mercilessly -parents/ Siblings/employers/other (pl. specify)

(iii)

Causing injury -parents/ siblings/employers/other (pl. specify)

(iv)

Detention -parents/ siblings/employers/other (pl. specify)

(v)

Other(please specify)_____parents/siblings/employers/others(pl. specify)

49. Exploitation faced by the child

(i)

Extracted work without payment

(ii)

Little (low) wages with longer duration of work

(iii)

Others (pl. specify)

50. Whether the child has been bought or sold or procured or trafficked for any purpose Yes/ No

51. Whether the child has been used for begging Yes/ No

52. Whether the child is used by any gangs or adults or group of adults or has been used for drug peddling: Yes/ No

53. Previous institutional/case history and individual care plan, if any:.....

54. Details of perpetrator: (such as Name, Age, Contact number, Address details, Physical Characteristics, Relationship with the family, middle men involved, is there any other child from the same village who is abused / harassed / taken / sent by the perpetrator, how the child came in contact with the perpetrator).....

-
55. Attitude of the child towards the perpetrator.....
56. Whether the police have been informed.....
57. Action taken, if any against the perpetrator.....
58. Any other remark.....
- Observations of Inquiry
1. Emotional factors.....
2. Physical condition.....
3. Intelligence.....
4. Social and economic factors.....
5. Suggestive causes of the problems.....
6. Analysis of the case, including reasons/contributing factors for the offence...
7. Reasons for child's need for care and protection.....
8. Opinion of experts consulted.....
9. Psycho-social expert's assessment.....
10. Religious factors.....
11. Risk analysis for the child to be restored to the family
12. Previous institutional/case history and individual care plan, if any:.....
13. Recommendation of Child Welfare Officer/Case Worker/Social Worker regarding psychological support, rehabilitation and reintegration of the child and suggested plan.....

Signature

(Of the Person assigned)

Form 23

[Rule 19(22)]

Application for surrender of child

Date

To

Child Welfare Committee,

District.....

I/ We.....(name of the applicant/s)(relation with the child) of.....(name of the child), aged about.....years , intend to surrender.....name of child) before this Child Welfare Committee as.....(reason/s for surrender).

I/we am /are fully conscious and making this application before this Child Welfare Committee. I have not been forced or unduly influenced by anyone to take this decision of surrendering..... (name of child). I shall have no objection if the child is given in adoption. I am fully aware of the consequences of surrendering the child.

Full signature of the applicant(s)/

Thumb impression (if the CWC deems appropriate)

Name and address.

.....

(Signature of the Chairperson/ member

Before whom such application is submitted)

Committee member/s present:_____

Date.....

Time.....

Place.....

Form 24

[Rule 19(22)]

Deed of surrender

Declaration by Person surrendering the child or children

Case No.....

In Re.....

I/We, the undersigned.....Family name/First name(s).....residing at, surrender the child (named).....Aged.....having date of birth.....for the reason:.....

(ii)

I/we are surrendering my/our child or children on our own and without any coercion, compulsion, threat, payment, consideration, compensation of any kind;

(iii)

I/we have been counselled and informed about the implication that I/we can withdraw our consent until 60th day of this surrender deed after which my/our consent will be irrevocable and I/we shall have no claim over the child or children.

(iv)

I/we have been made aware of the implications of surrender and are conscious of the fact that after the 60th day from date of the surrender deed, the legal parent-child relationship between my/our child or children and me/us will be terminated.

(v)

I/we understand that my/our child may be adopted by person(s) residing in India or abroad and give my/our consent for this purpose.

(vi)

I/we understand that the adoption of my/our child will create a permanent parentchild relationship with the adoptive parent(s) and then cannot claim back the child.

(vii)

I/we wish/ do not wish (please tick whichever is applicable) my/our identity and address to be disclosed to my/our child when he/she returns for root search.

(viii)

I/we declare that I/We have read the above statements carefully and have fully understood the same.

Done at on

[Signature or Thumb Impression of surrendering person(s)]

2. Declaration by Witnesses

We the undersigned have witnessed the above surrender.

(a)

Signature, Name and Address of the first witness

.....
.....

(b)

Signature, Name and Address of the second witness

.....
.....

3. Certification of child welfare committee

We hereby certify that the person and the witness (es) named or identified above appeared before me this date and signed this document in our presence.

Done at on.....

Signature & Seal of Members/Chairperson

Child Welfare Committee

Form 25

[Rule 19(29)]

Certificate declaring the child legally free for adoption

1. In exercise of the powers vested in the Child Welfare Committee.....under section 38 of the Juvenile Justice (Care and Protection of Children) Act, 2015, child..... date of birth.....placed in the care of the Specialized Adoption Agency/Child Care Institution (name & address) vide order no.....dated..... of this Committee, is hereby declared legally free for adoption on the basis of the following:

? Inquiry report of the Probation Officer/ Child Welfare Officer / Social Worker / Case Worker/any other (as the case may be);

? Deed of surrender executed by the biological parent(s) or the legal guardian of the child before this Committee on

(date);

? Declaration submitted by District Child Protection Unit and the Child Care Institution or Specialized Adoption Agency concerned to the effect that they have made restoration efforts as required under Section 40(1) of the Act, the Rules and Adoption Regulations, but, nobody has approached them for claiming the child as biological parents or legal guardian as on date of the said declaration.

2. This is to certify that:

The biological parent(s) / legal guardian, wherever available, has/have been counselled and duly informed of the effects of their consent including the placement of the child or children in adoption which would result in the termination of the legal relationship between the child and his or her family of origin;

The biological parents / legal guardian have given their consent freely, in the required legal form, and the consents have not been induced by payment or compensation of any kind and the consent of the mother (where applicable), has been given only after the birth of the child.

The Specialized Adoption Agency/ Child Care Institution to which the aforesaid child is entrusted shall post the photograph and other essential details of the child in the CARINGS and shall place such child in adoption as per the procedure laid down in the Act and Adoption Regulations.

Signature

Chairperson and Members of the Committee

(Seal of the Child Welfare Committee)

Date:

Place:

To: Child Care Institution /Specialized Adoption Agency/ District Child Protection Unit

Concerned - for information and necessary action.

(Signature: & Seal)

Date:

Form 26

[Rule 20(1)]

Case Monitoring Sheet for Committee

Case Monitoring Sheet

(Separate Sheet may be used in case there are more than one child)

Child Welfare Committee, District.....

Case No.of.....

Case Name:

Police Station

U/S.....

Date.....

FIR/ GD/ DD No.

Name of Probation

Officer.....

Name of IO

Particulars of child

Name

Parents/ Guardian with Contact No.

Present address

Permanent address

Date and time child produced before the committee

Date and time of first production

Date of medical examination under section 54

Cr.P.C. (If Any)

Age Determination

Age on the Date of offence

Date of age Determination

Time taken for age determination

Determination by

Committee

Evidence Relied:

Documents

Medical

Placement of the child

In Children's Home

Sent under

supervision

(Name of Institution)

From.....To?.....

Progress of enquiry

(Time schedule for disposal of the case to be fixed on the first day of hearing)

Steps to be taken

Scheduled Date

Actual Date

Age determination

Dated.....

Social Investigation Report (Form No.22)

Dated.....

Submission of Report on Provisions of further investigation, if any

Dated.....

Statement of Child

Dated.....

Individual Care Plan (In case of child in institutional care Individual Care Plan should be prepared within one month of admittance

Dated.....

Dispositional (Final) Order

Dated.....

Post Dispositional Review

Dated.....

Signed by

Child Welfare Committee

Form 27

[Rule 21(2) and 22 (2)]

Application for registration of child care institution under the juvenile justice (care and protection Of children) act, 2015

1. Detail of Applicant/ Institution which proposes to run the Child Care Institution:

(i)

Type of Institution

(ii)

Name of the Institution / Organization.....

(iii)

Registration number and date of Registration of the Institution/ Organization under the relevant Act (Annex- Relevant documents of registration and bye-laws, memorandum of association)

(iv)

Period of validity to run the Institution / Organization.....

(v)

Complete address of the Applicant/ Institution/ organization.....

(vi)

STD code/ Telephone No.....

(vii)

STD code/ Fax No.....

(viii)

E-mail address.....

(ix)

Whether the organization is of all India character, if yes, give address of its branches, in other states.....

(x)

Whether the Institution/ Organization had been denied registration earlier Yes/No

(xi)

Ref. No. of application which resulted in denial of registration as CCI

(a)

Date of denial.....

(b)

Which department has denied the registration.....

(xii)

Reason for denial of registration as CCI.....

2. Details of the proposed Child Care Institution

(i)

Name of the proposed Child Care Institution.....

(ii)

Type/Kind of Child Care Institution.....

(iii)

Complete address/ location of proposed child Care Institution or organization

(iv)

STD code/ Telephone No.....

(v)

STD code /Fax No.....

(vi)

E-mail address.....

3. Connectivity (Name and Distance from the proposed Child Care Institution):

(i)

Main Road.....

(ii)

Bus-stand.....

(iii)

Railway Station.....

(iv)

Any landmark.....

4. Infrastructure

(i)

No. of Rooms (Mention with measurement).....

(ii)

No. of toilets (mention with measurement).....

(iii)

No. of Kitchen (mention with measurement)

(iv)

No. of sick room.....

(v)

Annex -Copy of blue print of the building (authentic sketch plan of building)...

(vi)

Arrangement to deal with unforeseen disaster also mention the kind of arrangement made:

(i)

Fire

(ii)

Earthquake

(iii)

Any other arrangement

(iv)

Arrangement of Drinking water

(v)

Arrangement to maintain sanitation and hygiene:

(vi)

Pest Control

(vii)

Waste disposal

(viii)

Storage area

(ix)

Any other arrangement

(x)

Rent agreement/ building maintenance estimate (whichever is applicable)(Annex- copy of Rent agreement)

5. Capacity of the Institution/ Organization

i. No. of children (0-6 years) present in the home , (if any)

ii. No. of children (6-10 years) present in the home , (if any)

iii. No. of children (11-15 years) present in the home , (if any)

iv. No. of children (16-18 years) present in the home , (if any)

v. No. of persons (18-21 years) present in the home , (if any)

6. Whether the Child Welfare Committee/Juvenile Justice Board has been informed about the children being housed in the Institution Yes/ No

7. Facilities Available

(i)

Education facility.....

(ii)

Health Checkup arrangement, frequency of checkup, type of checkups proposed to be done.....

(iii)

Any other facility that shall impact on the overall development of the child

8. Staffing

(i)

Detailed staff list.....

(ii)

Education and Experience of the staff

(iii)

Name of partner organizations

(iv)

Name of the chief functionary of the organization

9. Background of the Applicant (Institution / Organization)

(i)

Major activities of the organization in last two years

a. (Annex copy of Annual Report)

(ii)

An updated list of members of the management committee/ governing body in the enclosed format (Annex- resolution of the annual meeting)

(iii)

List of assets/ infrastructure of the organization

(iv)

If the organization registered under the Foreign Contribution (Regulation) Act, 1976 (Annex- certificate of registration)

(v)

Details of foreign contribution received during the last two years (Annex- relevant documents)

(vi)

List of other sources of grant- in- aid funding (if any)with the name of the scheme / project , purpose amount, etc. (separately)

(vii)

Details of existing bank account of the agency indicating branch code account no.

(viii)

Whether the agency agree to open a separate bank account for the grant proposed

(ix)

Annex -Photocopy of Accounts of last three years:

i. Auditors report

ii. Income and expenditure account

iii. Receipt and payment account

iv. Balance sheet of the organization.

I have read and understood The Juvenile Justice (Care and Protection of Children) Act, 2015 and the Juvenile Justice (Care and Protection of Children) Rules, 2016.

I declare that no person associated with the organization has been previously convicted or has been involved in any immoral act or in any act of child abuse or employment of child labour and that the organization has not been blacklisted by the Central or the State Government at any point of time.

.....(Name of the Organization / Institution) has complied with all the requirements to be granted registration as a Child Care Institution under the Juvenile Justice (Care and Protection of Children) Act, 2015 and The Juvenile Justice (Care and Protection of Children) Rules, 2016.

I undertake to abide by all the conditions laid down by the Central/ State Act, Rules, Guidelines and Notifications in this regard.

Signature of the authorized signatory:

Name:.....

Designation:.....

Address.....

District.....

Date.....

Office stamp:

Signature of:

Witness no.1:

Witness no.2:

Form 28

[Rule 21(3) and 22 (4)]

Certificate of registration

(Under section 41 the JJ act)

After perusal of the documents submitted as per Form 27 is granted registration No.....as a Child Care Institution under Section 41(1) of the Juvenile Justice (Care and Protection of Children) Act, 2015 with effect from..... for a period of

....years.

The Institution which has the capacity of..... Children shall remain bound to follow the Juvenile Justice (Care and Protection of Children) Act, 2015, the Juvenile Justice (Care and Protection of Children) Rules, 2016 and regulations framed by the Central/ State Government from time to time.

Dated this day of 20

(Signature)

Seal

Name and Designation

Form 29

[Rule 22(9)]

Monthly report submitted by open shelter to DCPU

1. Name of the Open Shelter.....

2. Name of the In charge

3. Registration No.....

4. Address of the Home.....

5. Period of the Report.....

6. Details of children available on

Sr. No

Name of the child

Father's name

Address of the Child, if available

Date of admission

Reason for admission

Duration of stay

Facilities availed

Produced before CWC (Yes / No)

Remarks , if any

7. Total number of children admitted during the month.....

8. Total number of children in the Open Shelter on the last day of the month.....

9. Total number of children who availed the facilities of the Open Shelter during the month.....

10. Out of these the number of children who availed the services only during the day in the month:

Signature

In charge of the Open Shelter Home

Form 30

[Rule 23(9)]

Home study report for prospective foster parents

Replace with Form in Foster care Guidelines

Date of Registration

-

Aadhar Card No of PFP :

-

Name of the Social Worker

-

Date of Home Visit

-

Part-I of the format shall be filled up by the prospective Foster parents and Part-II of the template shall be filled up by the Social Worker to submit an assessment report along with his/her observation about suitability of the prospective adoptive/ foster parents.

Part-I : Self Assessment

A. Information about the prospective foster parents and their family background

Particulars of the foster parents

Full Name

Date of birth & age

Place of birth

Complete Address with e-mail ID (Present & Permanent Address)

Identity Proof

Religion

Language(s)

Date of Marriage

Present Educational Qualification

Employment/occupation

Name & Address of the present

Employer/Business concern

Annual Income

Health Status

B. Family background information:

(1)

Give a short description of social status and background of the prospective foster parents along with the following information.

Details about Parents of the Applicants

Father

Mother

Name in full

Age

Nationality/Citizenship

Occupation

Previous occupation

Presently residing with

(2)

Please complete the following table with the names of each of your respective children (adopted and biological), their sex, educational status (kindergarten, elementary, etc.) and dates of birth.

Name of the Child

Sex

Date of Birth

Educational Status

(3)

If there are other members residing, please furnish the following information in respect of them.

Name

Nature of Relationship

Age

Gender

Occupation

(4)

Please describe how you believe the foster care would affect the family members (grand parents, children, relatives and others).

C. Professional/Employment Details (Professional career details for last 5 years):

Foster Father

Organisation

Employer Details (Name & Address)

Job Title

From To

Foster Mother

Organisation

Employer Details (Name & Address)

Job Title

From To

D Financial Position: (Give a short description of your income from all sources such as savings, investments, expenditures and liabilities and debts along with supporting documents).....

E Description of Home and Neighbourhood: (Describe the accommodation details and neighbourhood relationship)

(1)

How many rooms do you have in your home and describe the play area available for the child.....

(2)

Please describe the neighbourhood in which you reside, including any aspect that you believe makes it child-friendly.....

F. Attitude and Motivation for foster care:

(1)

Please circle the term which best describes the reason why you wish to take a child in foster care, you may circle more than one option, if applicable:

(a)

Provide a companion to your other children;

(b)

Provide a child with a happy home;

(c)

Other, please specify

(2)

Please circle the statement which describes how you think the foster care arrangement will improve the lives of your other children, you may circle more than one, if applicable:

(a)

They will be less lonely;

(b)

They will learn to be more accommodating;

(c)

They will become more empathetic;

(d)

Not applicable as I have no other children;

(e)

Other, please specify _____

G. Attitude of grandparents/extended family members, other relatives and significant others towards the foster care: (Give a short description about the opinion of other important persons towards foster care who would have impact in the child rearing process).....

H. Anticipated Plans of the prospective foster parents for the child and rearing in the Family:

Please describe how you will manage caring for the child and other life commitments such as work.

(2)

Who will be responsible for caring for the child when you are at work, or absent from the familial home (domestic help, grandparents, spouse).

(3)

Please describe your disciplinary approach to parenting.

(4)

In case the foster child demonstrates adjustment difficulties, please describe the steps that you plan to take to ease his/her transition into the family?

(5)

Would you be prepared to utilize family counselling if the child continues to have difficulties adjusting?

(a)

Yes

(b)

No

I. Preparation and Training: (Give details about the counselling sessions the prospective foster parent(s) have undergone on foster care, child care, handling of needs of children, etc. and their capacity, training and/or experiences in parenting children with their special need, if any)

J. Health Status (Emotional and Physical): (Give details of the state of emotional and physical health status of the applicant(s), if any. If a family member suffers from a particular disease, condition or syndrome, describe how the family copes with it and how this might affect any proposed foster care.)

(1)

Do you or your spouse suffer from any medical condition? If so, would you please provide details?

(2)

Are you or your spouse currently being treated by a psychologist or psychiatrist?

(3)

Are you currently taking any prescribed medication?

(4)

Are there currently any child/ren in your house being treated for a medical condition?

(5)

Does your family have health and hospitalization insurance coverage for all family members?

Signature of the Prospective Foster Parents

Date

Part-II: Assessment Report of the Social Worker

(To be used by the Social Worker to prepare the assessment report)

(The information/facts filled in the template shall be kept confidential by the agencies /authorities.)

1. Factual Assessment

(i)

Have you verified the contents of the facts mentioned in Part I of the template? Yes/No

(ii)

Are you satisfied about the facts mentioned in the documents vis-a-vis observation during interviews and visits? Yes/No

2. Psychosocial Assessment:

2.1

Interaction with the prospective foster parents

(i)

Have you interacted with the prospective foster parents individually and jointly?

(ii)

Are the prospective foster parents well prepared for fostering the child?

2.2

Home visit findings

(i)

When did you visit the home of the prospective foster parents? Who were the members present during your visit?

(ii)

Whom did you interact during the home visit?

(iii)

Have you met any neighbour/relative ? Give a detailed description about the interaction?

(iv)

Whether the home environment is conducive for the child?

(v)

Are the prospective foster parents well prepared for foster care?

(vi)

Did the prospective foster parents have any doubt about parenting issues or any other issues? Have you cleared their doubts?

2.3

Interaction with the family members

(i)

Have you interacted with other family members of the prospective foster parents? What is their opinion about the proposed foster care? Are they positive about the foster care arrangement?

(ii)

Are there any other family member(s) whom you could not interact but they might have a larger role in the proposed foster care? If so, how did you interact? Would you plan to take their views?

(iii)

Have you interacted with older child/ren present in the home of the prospective foster parents? If yes, please give details.

(iv)

Have you noticed any adverse remarks from the family members? If so, how far those remarks may have an impact on the foster care process?

2.4

Financial capacity

(i)

What is your opinion about the financial status of the prospective foster parents? Are they financially sound to welcome another member into their family?

(ii)

Have you observed any financial situation which is hidden in the template?

(iii)

Would you recommend any financial assistance to them?

2.5

Physical and emotional capacity

(i)

Are the prospective foster parents in a good physical and emotional state to take care of a child?

(ii)

Have you observed any physical or psychological issues with the prospective foster parents or any other family members that is going to affect the life of the upcoming child? If so, give details.

(iii)

Are the prospective foster parents emotionally equipped enough to take care of a child?

3. Recommendation for Foster care

3.1

Do you recommend the prospective foster parents for foster care? Put your views and rationale for recommending the prospective foster parents for foster care.

3.2

In case, you do not recommend the prospective foster parents for foster care, cite appropriate reasons for taking such decision.

Signature, name, designation and official seal

Form 31

[Rule 23(4)]

Child Study Report

Child Study Report

S. No.

Item

Response

1

Date of Assessment

2

Source of Referral

3

Photograph of the Child to be refreshed
periodically

{|

|-

| Profile of the Child

|-

| 4

| Name of the Child

|

|-

| 5

| Date of Birth

|

|-

| 6

| Place of Birth

|

|-

| 7

| Age

|

|-

| 8

| Nationality

|

|-

| 9

| Religion

|

|-

| 10

| Education

|

|-

| 11

| Mother Tongue

|

|-

| 12

| Present Address

|

|-

| 13

| Aadhaar Card Number

|

|-

| 14

| Contact Details

(a)

Landline

(b)

Mobile

|

|-

| 15

| (a) Date of Placement

(b)

Name and Permanent details of the child

(c)

Reason for leaving the family

| The child has not been placed in adoption

|-

| 16

| Reason for placement if the child is from
community

| Mother or both

parents in prison

Parents are suffering
from long term illness

Dysfunctional

family(eg substance abuse, domestic violence etc)

Parents in process of
separation

Parents in process of
legal custody dispute

Natural disaster

Others

|}

I Social Worker hereby certify that the information given in this form about childis
correct.

Signature:

Place :

Name:

Date :

Designation:

Form 32

[Rule 23(15)]

Order of foster care placement with a family

Or

Group Foster Care

The child (name and address)approximate age..... d/o or s/o Mr..... and Mrs.....is
in need of care and protection of a family. Mr..... and Mrs.....resident of (complete address and contact
numbers)are declared fit for foster-care placement of the child after considering the
Individual Care Plan, Child Study Report and Home Study Report.

Or

Child Care Institution (Name and address).....is declared fit for foster care placement of the child after
considering the Individual Care Plan and Child Study Report. The child (name) is placed in foster
care for a period of under the supervision of the aforesaid Child Welfare Officer/Social Worker
(name and contact)

Chairperson/ Member

Child Welfare Committee

Form 33

[Rule 23(16)]

Undertaking by the foster family/group foster care organisation

I/Weresident(s) of House no.Street Village/TownDistrictState/
care giver associated with foster care home run by -----organization at(address), do hereby declare
that I/We am/are willing to take charge of (name of the child Aged.....under the orders of the
Child Welfare Committee.....subject to the following terms and conditions:

- i. If the conduct of the child is unsatisfactory I/we shall at once inform the Committee
- ii. I/We shall do my/our best for the welfare and education of the said child as long as he remains in my charge and shall make proper provision for his maintenance.
- iii. In the event of his illness, he shall have proper medical attention in the nearest hospital and a report of it followed by a fitness certificate shall be submitted before the Committee.
- iv. I/We shall inform the Committee about any change of address.
- v. I/We shall do my best to ensure that the child will not be subjected to any form of abuse
- vi. I/We agree to adhere to the conditions laid by the Committee.
- vii. I/We undertake to produce him before the Committee as and when required.
- viii. I/We undertake to inform the Committee immediately if the child goes out of my charge or control.

Date thisday of

Signature and address of 2 witnesses

Signature of Applicant(s)

(Signed before me)

Chairperson/Member, Child Welfare Committee

Form 34

[Rule 23(17)]

Record of a child in foster care

(a)

Case no.....

(b)

Name of the Child.....

(c)

Age.....

(d)

Gender.....

(e)

Aadhaar Card No.....

(f)

Name and address of the Child Care Institution, if any from where the child has been given for foster care.....

(g)

Individual Care Plan

(h)

Any other source of referral.....

(i)

Details of the child placed in foster care including Photograph of the child, foster care giver/parent, biological parents, if available.....

(j)

Details of the placement - individual or group including date and period of placement

(k)

Home Study Report of the biological family, where applicable with photograph

- (l)
Home Study report of the foster family- individual or group care, with photograph
 - (m)
Child Study Report
 - (n)
Address of the Child Welfare Committee
 - (o)
Particulars of the order of the Committee placing the child in foster care
 - (p)
Record (number and significant details) of each visit with the child, foster family, Biological family, if available and child's school
 - (q)
Record of all reviews of the placement including observations, extent and quality of compliance with Care Plan, child's developmental milestones, child's academic progress, and any changes in family environment
 - (r)
In the case of extension or termination of the placement, record of date and reason for termination
 - (s)
Date of the child being handed over to the foster family:
 - (t)
Financial assistance provided, if any
 - (u)
Name of the Case Worker appointed
- Form 35
[Rule 23(18)]
Monthly inspection of foster families/group foster care
(Fill as applicable)
1.
Date of Visit:
 2.
(a) Name :
(b) Date of Birth & Age :
{|
(Affix Recent Photo)
|-
|
(c) Gender
(d) Date of Placement
-
3.
Details of Foster Parents
-
(a) Name of Foster Parents
-
(b) Address
-

| (c) Contact details

|

| -

|

| (i) Landline

|

| -

|

| (ii) Mobile:

|

| -

|

| (d) Aadhaar Card Number:

|

| -

|

| (e) Photograph of Parents

|

| -

|

(Affix recent Photo)

|

(Affix recent Photo)

|}

4. Interaction with the Foster Child

(a)

Child's experience being part of the family (with reference to whether the child is properly cared for - physical, emotional and health) describe

(i) Health Indicators

(a) Present Health

Status

(b) Any record of

Illness

(c) Any other treatment that the child is

undergoing ii) Emotional

Happy and

well-adjusted

In process of

adjusting

maladjusted

(b)

How is the child

performing in his studies? (i) check in relation with the grades/marks the child achieved in previous examinations,

(ii) Foster parents

have regular conversations with the child regarding his/her studies, extra curricular activities

(iii) Do they attend PTA meetings?

YesNoSometimes

YesNoSometimes

(c)

(i) The amount of time parents (foster) spend with the child either alone or together with their own children.

(ii) How do they spend time together as a family and for what?

iii) Does the foster child share with the foster parent's problems he /she is facing either at home, school in the neighbourhood or emotionally feeling not happy?

Having conversations

Dining

Playing

Watching TV

Going to school

Doing homework

together

Others (specify)

YesNoSometimes

(d)

Does the child get support from foster parents' children? (do they mutually help each other)

YesNoSometimes

(e)

Has there been any incident that made the foster child feel discriminated against?

(f)

Has there been any incident/incidents that made you uncomfortable?

(i) The way a foster parent/older sibling/any other member touched you.

(ii)The conversations foster parents/older siblings/any other member had with you

(iii) Any materials- visuals, printed you were made to watch or read

(iv) Were you at any time sexually assaulted or abused?

* *if the answers are

"yes"

immediate steps

should be taken to remove the child and send to a place of safety and support the child with medical and psychosocial therapy.

** Actions to be

taken against the foster carers or parents according to the procedures laid down.

*** Is similar treatment being meted out to their biological child also? Then the biological child should also be treated as a child in need of care and protection and appropriate action may be taken.

YesNo

YesNo

YesNo

YesNo

(g)

Whether the child keeps in contact with his/her family of origin (by telephone, letters, visits). Specify

YesNo

(h)

Have you been beaten by the foster parent at any time?

YesNo

(i)

Have you been spoken to in a manner that you felt humiliated?

YesNo

(j)

Are you made to do household chores?

YesNo

(k)

Do the biological children of the foster parents made to do the same household chores?

YesNo

5.

Interaction with Foster Parents

(a)

Parent's impressions about the behavior (emotional well-being) of the child in the family

Happy and well-adjusted

In process of adjusting

Maladjusted

(b)

Perception about his/her adjustment with the household and with other members in the family

Happy and well-adjusted

In process of adjusting

Maladjusted

(c)

How do you discipline the child?

Reason with the child

Scolding , Chastise

Beat the child

Other Methods (Specify)

(d)

What are the behavior traits that are of concern and how do you as parents deal with them?

Lack of co-operation

Lack of Adjustment

Introvert

Aggressive

Not Communicative

Any Other

(e)

Do you spend time together with the foster child and biological children? Describe.

YesNoSometimes

(f)

Views on the

progress of Child's education and other talents

(i)Child is faring

well in school

(ii) If the child is

not faring well in school do you seek to find out the reasons

(a)from the child

(b) the school teacher

(iii) Do you attend PTA meetings?

YesNo

YesNo

YesNo

Sometimes

(g)

Do the foster parents consult the child while taking decisions on behalf of him/her?

YesNoSometimes

(h)

How does the child show his

approval/disapproval to the foster parent's decisions?

Accept the decision

with happiness

Accept the decisions

but unhappy

Refuse to accept the decision and shows aggressive behavior)

(i)

Are the foster parents aware of the social networks of the child?

YesNo

(j)

Views on child's social relationship with the neighbors, school friends and teachers.

Good and regular interaction

Periodic Interactions

(k)

What is their plan for the child?(To be noted down)

l)

Does the foster child maintain the contact with his/her family of origin? (by telephone, letters, visits).

Specify

YesNoSometimes

m)

Who maintains the bank account of the foster child as a parent?

6. Interaction with biological children of the Foster Parents:

a)

The things they do together with the foster child

Dining

Playing

Watching TV

Going to school

Doing homework together

b)

Do they have quarrels or fights between themselves and the foster child? If yes, how often, on what issues, and how do they resolve it. Please note down.

YesNoSometimes

c)

How do you feel when your parents show love, affection and care to the foster child?

Happy

Unhappy

Angry

Jealous

7. Interaction with the School Teachers:

a)

Information about the academic performance of the child in the school(verify with progress cards to see if the child has shown any progress)

Good

Fair

Satisfactory

Poor

b)

Teacher's observation: if the child has adjusted to his/her foster parents

Happy and

well-adjusted

In process of

adjusting

Maladjusted

c)

Do the foster parents attend parent-teacher meetings?

YesNoSometimes

d)

Do they seem interested in the child's studies?(by enquiring of his academic achievements, his relationship with teachers and classmates)

YesNoIndifferent

e)

Observation on child's behavior in the school(his relationship with teachers, classmates)

Happy and
well-adjusted
In process of
adjusting
Maladjusted

f)

Any concerns of the child in the school. If yes,
give details

8. Interaction with Parents of Origin

a)

Have the parents of origin maintained contact
with their child (by telephone calls, letters, and visits? How
frequently?

YesNoSometimes

b)

Was the child happy to meet them?

YesNo

Upset while meeting them

c)

Did the child raise any issues with regard to
his or her foster carers/parents/family with them?

YesNo

d)

Do they have any interaction with the foster
family regarding the well being of the child?

YesNoSometimes

e)

The family's status to receive back the child

Family is interested

and in a position to receive back the child.

Family is interested

but not in a position to receive back the child.

Family is not interested to receive back the
child.

f)

Received any support

from the government or any other agency in helping them to
receive

back the child from the foster carers (If yes,
give details)

YesNo

9. Interaction with Neighbours

a)

Knowledge about the neighbor fostering a child.

YesNo

b)

Information about the attitude and behavior of
the foster family towards the child

Positive and Happy

Indifferent Attitude

Negative Attitude

Misbehavior towards foster children

c)

Observed any quarrel or issues between the family members and foster child or between neighborhood and the foster child (if yes, give detail)

YesNo

Prepared by Signatures

Form 36

[Rule 24(5)]

Order of sponsorship placement

The child (name and address) age d/o or s/o Mr and/or Mrs has been identified as a child needing sponsorship support for education/ health/ nutrition/ other developmental needs (please specify). The District Child Protection Unit is hereby directed to release Rs.....per month/ Rs as one time sponsorship support to the said child for a period of (days/month) and carryout necessary follow up and for the said purpose shall open a bank account in the name of the child to be operated by

Children's Court/ Principal Magistrate, Juvenile Justice Board/ Chairperson/Member, Child Welfare Committee

Form 37

[Rule 25(2)]

Order of after care placement

The child (name) d/o or s/o has/ will be completing 18 years of age on (date) She/ he is still in need of care and protection for the purpose of rehabilitation and reintegration and specifically for (specify the purpose). She/he is placed in (name of organization) for providing aftercare. The In-charge of the Organization is directed to admit the child and provide all possible opportunities for her/ his rehabilitation and reintegration in its truest sense. The person shall be provided all these opportunities maximum till the age of 21 years only or till reintegration in the society, whichever is earlier. The in-charge will send half yearly report on the status of the child/youth to the Child Welfare Committee.

The State/ District Child Protection Unit is hereby directed to release Rs.....per month towards after-care support to the said person for a period of (days/month) and carryout necessary follow up and for the said purpose shall open a bank account in the name of the person.....

Children's Court/ Principal Magistrate, Juvenile Justice Board/ Chairperson/Member, Child Welfare Committee

Copy to: State/ District Child Protection Unit or concerned Department of the State Government

Form 38

[Rule 27(2)]

Application for fit facility including group foster care

1.

Detail of Institution/ Agency/ Organization

which seeks recognition as fit facility

1.a

Name of the Institution /Agency/ Organization

1.b

Registration number

and date of Registration of the Institution/ Organization under the relevant Act

(Annex- Relevant documents of registration, bye-laws, memorandum of association)

1.c

Complete address of the Applicant/ Institution/ organization

1.d

STD code/ Telephone No.

1.e

STD code Fax No.

1.f

E-mail address

1.g

Whether the organization is of all India

character, if yes, give address of its branches, in other states

1.h

If the Institution

had been denied recognition earlier? If yes

i. Reference No. of

application leading to denial of recognition

ii. Date of denial

iii. Who had denied the recognition iv Reason

for denial of recognition

2.

Details of the proposed fit facility:

2.a

Complete address/ location of proposed Fit
Facility

2.b

STD code/ telephone no

2.c

STD code fax no

2.d

E-mail

3.

Connectivity (Name and Distance from the
proposed Fit Facility):

3.a

Main Road

3.b

Bus -stand

3.c

Railway Station

3.d

Any landmark

4.

Infrastructure:

4.a

No. of Rooms (Mention with measurement)

4.b

No. of toilets (mention with measurement)

4.c

No. of Kitchens (mention with measurement)

4.d

No. of sick room

4.e

Annex - Copy of blue print of the building
(authentic sketch plan of building)

4.f

Arrangement to deal
with unforeseen disaster also mention the kind of arrangement
made:

Fire

Earth quake

Any other arrangement

4.g

Arrangement of Drinking water Annex-Certified
from public health engineering (PHE) Department.

4.h

Arrangement to
maintain sanitation and hygiene:

Pest Control

Waste disposal

Storage area

Any other arrangement

4.i

Rent agreement/ building maintenance estimate
(whichever is applicable)(Annex- copy of Rent agreement)

5.

Capacity of the Fit Facility

6.

Facilities Available (would depend on the
purpose for which recognition as fit facility is to be given)

6.a

Any other facility that shall impact on the
overall development of the child

7.

Staffing

7.a

Detailed staff list

7.b

Name of partner organizations

8.

Background of the Applicant

8.a

Major activities of the organization in last two
years

8.b

An updated list of members of the management
committee/ governing body in the enclosed format (Annex-
resolution of the annual meeting)

8.c

List of assets/ infrastructure of the
organization

8.d

If the organization is registered under the
Foreign Contribution (Regulation) Act, 1976 (Annex - certificate
of registration)

8.e

Details of foreign contribution received last

two years (Annexrelevant documents)

8.f

List of other sources of grant- in - aid funding
(if any)with the name of the scheme / project , purpose amount,
etc. (separately)

8.g

Details of existing bank account of the agency
indicating branch code account no.

8.h

Whether the agency agrees to open a separate
bank account for the grant proposed

8.i

Annex -Photocopy of

Accounts of last three years:

Auditors report

Income and

expenditure account

Receipt and

payment account

Balance sheet of the organization.

I have read and understood The Juvenile Justice (Care and Protection of Children Act), 2015; and the Juvenile Justice (Care and Protection of Children) Rules, 2016.

.....(Name of the Organization / Institution) has complied with all the requirements to be granted recognition as a Fit Facility under the Juvenile Justice (Care and Protection of Children) Act, 2015 and the Juvenile Justice (Care and Protection of Children) Rules, 2016.

I declare that no person associated with the organization has been previously convicted or has been involved in any immoral act or in any act of child abuse or employment of child labour or an offence involving moral turpitude and that the organization has not been blacklisted by the Central or the State Government at any point of time.

I undertake to abide by all the conditions laid down by the Central/ State Act, Rules, Guidelines and Notifications in this regard.

I undertake to abide by the orders passed by the Juvenile Justice Board or the Child Welfare Committee from time to time.

Signature of the authorized signatory:

Name:

Designation:

Address:

District:

Date:

Office stamp:

Signature of:

Witness no.1:

Witness no.2:

Form 39

[Rule 27(4)]

Certificate of recognition of fit facility including group foster care

After perusal of the documents and on the basis of an inspection of the Institution conducted on..... The
(Name of the Institution) is recognized as a Fit Facility under Section 51 of the Juvenile Justice (Care and Protection of Children) Act, 2015 with effect from for a period of years.

The Facility shall remain bound to follow the Juvenile Justice (Care and Protection of Children) Act, 2015, the Juvenile Justice (Care and Protection of Children) Rules, 2016 and regulations framed by the appropriate Government from time to time.

The Facility shall remain bound to comply with the orders passed by the Juvenile Justice Board or the Child Welfare Committee from time to time.

Dated thisday of 20

(Signature)

(Seal)

Dated this day of 20

(Signature)

Chairperson, Child Welfare Committee / Principal Magistrate, Juvenile Justice Board

Form 40

[Rule 61(3)(xii)]

List of children submitted by CCI to board or committee weekly

Details of the Child Care Institution:

Sr. No.

Name of Child

FIR/DD/Case No.

PS

Date of Next Production

Total Number of Children admitted during the week.....

Total Number of Children released during the week.....

Total Number of Children in the Institution as on.....

Signature Person in charge of the CCI

Date:

Form 41

[Rule 69 (C) (1)]

Protective custody card

1. Name of the child :

2. Age of the child :

3. Mother's Name :

4. Father's Name :

5. Name of Guardian :

6. Relationship with Child :

7. Address of parent/guardians :

8. Date of receiving by Organization/Institution :

9. Name & contact details of the person producing child :

10. Date of Inquiry :

This is to authorize and direct you to receive the above named child in your Child Care Institution and keep her/him in your charge for protective custody under the J.J. Act, 2015. And to produce the child on

Next Date of hearing.....

(Signature)

Principal Magistrate/ Member, Juvenile Justice Board

Form 42

[Rules 69 (D) (4)]

Overnight protective stay

Whereas (name of the child)has this day been apprehended/ found to be in need of overnight protective stay at the (Name of the Institution).

The said child has been produced by (Name of the child welfare police officer, fromPolice station ,) . The child has been brought along with the required application seeking protective stay, medical report stating the general health condition of the child which has been duly perused by the person in-charge of the Institution.

The said child has been brought to the Institution at (time) and shall be handed over on the following day to the concerned jurisdiction of the child welfare police officer on or before(mention time).

The personal belongings of the child have been thoroughly searched and the following articles (if any) have been handed over to the concerned child welfare police officer.

In case the concerned child welfare police officer fails to report in due time to take custody of the child, such child shall be produced before the Juvenile Justice Board/ Child Welfare Committee by the Officer in charge of the Institution at the earliest. Copy to:

1. Child Welfare Police Officer
2. Board / Committee
3. The Person in charge of the Institution

Dated this _____ day of _____ 20

(Signature)

(Signature)

The Person in charge of the Institution

Child Welfare Police Officer

Form 43

[Rule 69 (H) (3)]

Case history of the child

(For child care institution)

Case/Profile No.Date & Time

Affix a latest Photograph here

A. Personal Data

1. Name.....
2. Male / Female (tick the appropriate category)
3. Age at the time of admission.....
4. Aadhaar Card No.....
5. Present age.....
6. Category (tick as applicable):

(i)

Separated from family

(ii)

Abandoned/deserted

(iii)

Victim of exploitation and violence (give detail)

(iv)

Run-away

(v)

Any other

7. Religion

(i)

Hindu (OC/BC/SC/ST)

(ii)

Muslim/Christian/Other(pl. specify)

8. Native District & State:

9. Description of the Housing:

(i)

Concrete building/ Kuchha

(ii)

Three bedroom/ two bedroom/ one bedroom/ no separate bedroom

(iii)

Owned / rental

10. By whom the child was brought before the Child Welfare Committee/Juvenile Justice Board (tick as applicable):

i. Police-Local Police/Special Juvenile Police Unit/ designated Child Welfare Police Officer / Railway Police/ Women

Police

ii. Probation Officers

iii. Social Welfare Organization

iv. Social Worker

v. Parent(s)/Guardian (s) (please Specify the relationship)

vi. Any public servant

vii. Any public spirited citizen

viii. Child himself/herself

11. Reasons for leaving the family

i. Abuse by parent(s)/guardian(s)/step parents(s)

ii. In search of employment

iii. Peer group influence

iv. Incapacitation of parents

v. Criminal behaviour of parents

vi. Separation of Parents

vii. Demise of parents

viii. Poverty

ix. Others (please specify)

12. Types of abuse met by the child

i. Verbal abuse - parents/siblings/ employers/others (pl. specify)

ii. Physical abuse

iii. Sexual abuse parents/siblings/ Employers/others(Pl. specify)

iv. Others - parents/siblings/ employers/others (pl. Specify)

13. Types of ill-treatment met by the child.

(i)

Denial of food -parents/siblings employers/other (pl. specify)

(ii)

Beaten mercilessly-parents/ Siblings/employers/other (pl. specify)

(iii)

Causing injury - parents/ siblings/employers/other (pl. specify)

(iv)

Detention - parents/ siblings/employers/other (pl. specify)

(v)

Other (please Specify)

14. Exploitation faced by the child

(i)

Extracted work without payment

(ii)

Little (low) wages with longer duration of work

(iii)

Others (pl. specify)

15. Health status of the child before admission.

(i) Respiratory disorders

- present / not known / absent

(ii) Hearing impairment

- present / not known / absent

(iii) Eye diseases

- present / not known / absent

(iv) Dental disease

- present / not known / absent

(v) Cardiac diseases

- present / not known / absent

(vi) Skin disease

- present / not known / absent

(vii) Sexually transmitted diseases

- present / not known / absent

(viii) Neurological disorders

- present / not known / absent

(ix) Mental handicap

- present / not known / absent

(x) Physical handicap

- present / not known / absent

(xi) Urinary tract infections

- present / not known / absent

(xii) Others (pl. specify)

- present / not known / absent

16. With whom the child was staying prior to admission

i. Parent(s) - Mother / Father / Both

ii. Siblings / Blood relative

iii. Guardian(s) - Relationship

iv. Friends

v. On the street

vi. Night shelter

vii. Orphanages / Hostels/ Similar Homes

viii. Other (pl. specify)

17. Visit of the parents to meet the child

Prior to institutionalization- Frequently / Occasionally / Rarely / Never

After institutionalization - Frequently / Occasionally / Rarely / Never

18. Visit of the Child to his parents

Prior to institutionalization - Frequently / Occasionally / Rarely / During festival times / During summer holidays / Whenever fallen sick / Never

After institutionalization - Frequently / Occasionally / Rarely / During festival times / During summer holidays / Whenever fallen sick / Never

19. Correspondence with parents -

Prior to institutionalization - Frequently / Occasionally / Rarely / During festival times / During summer holidays / Whenever fallen sick / Never

After institutionalization - Frequently / Occasionally / Rarely / During festival times / During summer holidays / Whenever fallen sick / Never

20. Details of disability

21. Type Family: Family / joint family/ broken family / single parent

22. Relationship among the family members:

i Father & mother

Cordial/ Non cordial/ Not known

ii Father & child

Cordial/ Non cordial/ Not known

iii Mother & child

Cordial/ Non cordial/ Not known

iv Father & siblings

Cordial/ Non cordial/ Not known

v Mother & siblings

Cordial/ Non cordial/ Not known

vi Child & siblings

Cordial/ Non cordial/ Not known

vii Child & relative

Cordial/ Non cordial/ Not known

23. History of crime committed by family members, if any:

S. No.

Relationship

Nature of Crime

Legal status of the case

Arrest if any Made

Period of confinement

Punishment Awarded

1.

Father

2.

Step father

3.

Mother

4.

Step mother

5.

Brother(a)(b)(c)(d)

6.

Sister(a)(b)(c)(d)

7.

Child

8.

Others (uncle/ aunty/ grandparents)

24. Properties owned by the family:

(i)

Landed properties (pl. specify the area)

(ii)

Household articles- Cows/ Cattle/ Bull

(iii)

Vehicles- two wheeler/ three wheeler/ four wheeler (lorry/ bus/ car/ tractor/ jeep)

(iv)

Others (please specify)

25. Marriage details of family members:

(i)

Parents Arranged/ Special Marriage

(ii)

Brothers Arranged/ Special Marriage

(iii)

Sisters Arranged/ Special Marriage

26. Social activities of family members:

i. Participate in social and religious functions

ii. Participate in cultural activities

iii. Does not participate in social and religious functions

iv. Not known

27. Parental care towards child before admission:

i. Over protection

ii. Affectionate

iii. Attentive

iv. Not affectionate

v. Not attentive

vi. Rejection

Adolescence History (Between 12 and 18 years)

28. At what age did the child attain puberty?

29. Details of delinquent behaviour if any

i. Stealing

ii. Pick pocketing

iii. Arrack selling

iv. Drug pedaling

v. Petty offences

vi. Violent crime

vii. Rape

viii. None of the above

ix. Others (please specify)

30. Reason for delinquent behaviour

i. Parental neglect

ii. Parental overprotection

iii. Parents criminal behavior

iv. Parents influence (negative)

v. Peer group influence - To buy drugs/alcohol

vi. Others (pl. specify)

31. Habits

A

B

(i) Smoking

(i) Watching TV/movies

(ii) Alcohol consumption

(ii) Playing indoor/outdoor games

(iii) Drug use (specify)

(iii) Reading books

(iv) Gambling

(iv) Religious activities

(v) Begging

(v) Drawing/painting/acting/singing

(vi) Any other

(vi) Any other

Employment Details

32. Employment details of the child prior to entry into the Home:

S.No.

Details of employment

Timing and Duration

Wages earned

(i)

Cooly

(ii)

Rag picking

(iii)

Mechanic

(iv)

Hotel work

(v)

Tea shop work

(vi)

Shoe polish

(vii)

Household works

(viii)

Others (pl specify)

33. Details of income utilization:

Sent to family to meet family need

i. For dress materials

ii. For gambling

iii. For prostitution

iv. For alcohol

v. For drug

vi. For smoking

vii. Savings

34. Details of savings

i. With employers

ii. With friends

iii. Bank/Post Office

iv. Others (pl. specify)

35. Duration of working hours

i. Less than six hours

ii. Between six and eight hours

iii. More than eight hours

Educational Details

36. The details of education of the child prior to the admission to Children's Home

i. Illiterate

ii. Studied up to V Standard

iii. Studied above V Std but below VIII Standard

iv. Studied above VIII Std but below X Standard

v. Studied above X Standard

37. The reason for leaving the School

a. Failure in the class last studied

b. Lack of interest in the school activities

c. Indifferent attitude of the teachers

d. Peer group influence

e. To earn and support the family

f. Sudden demise of parents

g. Rigid school atmosphere

h. Absenteeism followed by running away from school

i. There is no age appropriate school nearby

j. Others (pl. specify)

38. The details of the school in which studied last:

i. Corporation/Municipal/Panchayat

ii. Government/SC Welfare School/BC Welfare School

iii. Private management/ Convents

39. Medium instruction: Hindi/English/Urdu/Tamil/Malayalam/Kannada/ Telugu/Marathi / Gujarati/ Bengali / Other language (please specify)

40. After admission to Children's Home, the educational attainment from the date of admission till date;

No. of years

Class studied

Promoted /detained

41. Vocational training undergone form the date of admission into Children's Home till date.

No. of years

Name of Vocational Trade

Proficiency Attained

Details of certification?

42. Extra-curricular activities developed form the date of admission into the Children's Home till date

(i)

Scout

(ii)

Sports (please specify)

(iii)

Athletics (please specify)

(iv)

Drawing

(v)

Painting

(vi)

Others (pl. specify)

Medical History

43. Height and weight at the time of admission:

44. Physical condition:

45. Medical history of child (gist):

46. Medical history of parent/guardian (gist):

47. Present health status of the child:

Sl. No.

Annual Observation

1st Quarter

2nd Quarter

3rd Quarter

4th Quarter

Date of Review

Height

Weight

Nutritious diet gien

Stree disease

Dental

ENT

Eye

48. Height and Weight Chart

Date, Month and Year

Height

Admissible Weight

Actual Weight

Social History

49. Details of friendship prior to admission into Children's Home:

i. Co-workers

ii. School/Classmate

- iii. Neighbours
- iv. Others (pl. specify)
- 50. Majority of the friends are
 - i. Educated
 - ii. Illiterate
 - iii. The same age group
 - iv. Older in age
 - v. Younger in age
 - vi. Same sex
 - vii. Opposite sex
- 51. Details of membership in group (please specify details)
 - i. Associated with cine fans association
 - ii. Association with religious group
 - iii. Associated with arts and sports club
 - iv. Associated with gangs
 - v. Associated with voluntary social service league
 - vi. Others (please specify)
- 52. The position of the child in the groups/league
 - i. Leader
 - ii. Second level leader
 - iii. Middle level functionary
 - iv. Ordinary member
- 53. Purpose of taking membership in the group:
 - i. For social service activities
 - ii. For leisure time spending
 - iii. For pleasure seeking activities
 - iv. For deviant activities
 - v. Others (please specify)
- 54. Attitude of the group / league
 - i. Respect the social norms and follow the rules
 - ii. Interested in violating the norms
 - iii. Impulsive in violating the rules
- 55. The location/meeting point of the groups
 - i. Usually at fixed place
 - ii. Places are changed frequently
 - iii. No specific places
 - iv. Meeting point is fixed conveniently
- 56. The reaction of the society when the child first came out of the family
 - i. Supportive
 - ii. Rejection
 - iii. Abuse
 - iv. Ill-treatment
 - v. Exploitation
- 57. The reaction of the police towards children
 - i. Compassionate
 - ii. Harsh
 - iii. Aggressive and abusive
 - iv. Exploitative
 - v. Ill-treated
- 58. The response of the general public towards the child
- History of the child (brief)

(i)

Education

(ii)

Health

(iii)

Vocational training

(iv)

Extra curricular activities

(v)

Others

Suggestion of Child Welfare Officer/ Probation Officer after orientation to child and the response towards orientation.

Follow up by Child Welfare Officer/ Probation Officer/ Case Worker/ Social Worker

Quarterly review of case history by management committee

Person in charge/ superintendent/ Child welfare officer/ Probation officer

Form 44

[Rule 82 (1)]

Release cum restoration order

Ms./Mr. (Name of the Child)..... son/ daughter of residence Case No./ Profile Number who was ordered to be placed in an observation home/place of safety/ special home/Children's Home/ by the Juvenile Justice Board/ Children's Court/ Child Welfare Committee under section of the Juvenile Justice (Care and Protection of Children) Act 2015, for a term of on the day of.....20.....and who is now in the Institution, at is directed to be released from the said Institution and supervision and the authority of during the remaining period of stay as reason for discharge).

This order is granted subject to the conditions here on, upon the breach of any of which it shall be liable to be revoked.

Dated

Signature

Juvenile Justice Board/ Children's Court/ Child Welfare Committee Place:

Conditions:

1. The discharged person shall proceed to and live under the supervision and authority of until the expiry of the period of his stay in Children's Homes or fit facility/ detention in observation home/ special homes/ place of safety unless the remission is sooner cancelled.

2. He shall not, without the consent of the remove himself from that place or any other place, which may be named by the said

3. He shall obey such instruction as he may receive from the said with regard to punctual and regular attendance at school/vocation or otherwise.

4. He shall not get involved in any offence and shall lead a sober and industrious life to the satisfaction of.....

6. In the event of his committing a breach of any of the above conditions the remission of the period of stay in the Institution hereby granted shall be liable to be cancelled and on such cancellation he/she shall be dealt with under section 97 of the Juvenile Justice (Care & Protection of Children) Act 2015.

I hereby acknowledge that I am aware of the above conditions which have been read over/ explained to me and that I accept the same.

(Signature or mark of the released child)

Certified that the conditions specified in the above order have been read over/explained to (Name of child)..... and that he/she has accepted them as the conditions upon which his/her release may be revoked.

Certified accordingly that the said child has been discharged on the.....

Signature and Designation of the certifying authority i.e. Person-in-charge of the institution

Form 45

[Rules 82(4)]

Escort order

Case No.....

In the matter of

Boy/Girl Child

Aged about year taken

The Parents of the boy/girl child are reported to be residing at

He/She therefore be sent under supervision of a proper police / recognized non governmental organization escort to the For tracing and for handing over to the parents or close relatives of the said Boy Child/Girl Child residing at the aforesaid address or at other Place which may be shown by the Child, if no such parents or relative are traced or if traced but they are unwilling to take charge of the boy/girl be kept in the custody of the Superintendent Children's Home/ Place of Safety/ Observation Homes of the said district and the said Boy/Girl child be produced before the concerned Child Welfare Committee/ Juvenile Justice Board for further orders.

Orders

Pending Escort, the said Boy/Girl Child shall remain in Children's Home/ Place of Safety/ Observation Homes, residing at present at ----- The State/District Child Protection Unit, or Police Department and recognized Non-governmental organization/ Childline shall positively make immediate arrangement not less than 15 days from the date of receipt of this order by him and send the said Boy Child/Girl Child at his/her aforesaid place of residence.

Dated this.....day of.....20

Chairperson/Member Child Welfare Committee Juvenile Justice Board

CC to:

1.

The Person in charge, Child Care Institution.

2.

The District Child Protection Unit or non-governmental organization or Childline

Ref.: 1. Order of admission of minor..... born on Profile No

Form 46

[Rule 41(3) and 41 (9)]

Inspection by inspection committee

(Fill as applicable)

Date of visit: Time of visit:

Name of the officials inspecting the Home:

1.

2.

3.

A. General Information :

i. Name and address of the Organisation:

ii. Registration No. (Under JJ Act, 2015):

Date of issue :

Date of expiry :

iii. Complete address of the CCI :

iv. Name of the Officer/Person-in-Charge:

v. Contact No: Email Id:

vi. Type of Home (Please tick ? one):

Observation Home/ Special Home/ Place of Safety/ Children's Home/ Open Shelter / Any other (please specify):

vii If Aided/supported: by State Government, Name of the Department:

viii If run by Government:

B. Status of Children:

(i)

Sanction capacity of the Home.....

(ii)

Are the children of both sexes below 10 years kept in the same home Yes No

If yes, number of such children as on today.....

(iii)

Are the bathing and sleeping facilities maintained separately for boys and girls in the age group of 5-10 years Yes

No

(iv)

Are children segregated in the age group given below? Give number of children in the age group of

i. 7-11 years:

ii. 12- 18 years:

iii. Are there children in the age group of 0-5 years staying there? Yes No If yes, Give numbers:

iv. Are there children above 18 years staying there? Yes No If yes, Give numbers:

v. No. of new admissions in the current month.....

vi. No. of children who have moved out/released.....

vii. No. of children referred by CWC/JJB during the month.....

viii. No. of children produced before CWC/JJB during the month.....

ix. No. of children as on last day of the previous month

x. No. of children with special needs, if yes, give details.....

xi. Interventions made for their rehabilitation:

.....
.....
.....
.....
.....
.....

xii. Are the Individual care plans prepared for every child? Yes No

C. Infrastructure:

? Building:

? Rented: Owned.....

? Are CCTV cameras installed at the entrance Yes No

? Security Adequate Inadequate

? Sufficient space to accommodate the children: Yes No

Space available:

No. of rooms / dormitories

Details

Provision of sick room / medical unit

Counseling room

Recreational /

activity room for Children

? Is there a TV set

available with Cable network

? How often are

children allowed to view TV

? Are children playing

games indoors

? What games are

available to them

? Are children playing

games outdoors

? Do they have

equipments/ accessories to play

? Do children go for

picnics/excursions

? Do they have

interactions with eminent personalities

? Is there a recreation room available to children

Yes No

in the evenings or

any time

Yes No

age appropriate games

or not

Yes No

Yes No

Yes No

Yes No

Kitchen / Dining Room

? Is the cooking area

and pantry separate

? Do children get

individual thalis, mugs glasses

? Are cooking utensils

adequate and clean

? Is there a fridge

available for children

? Is there a Oven

available for children

? Is there a Gas stove

available in kitchen

? Is there a chimney

available

? What is the

arrangement to keep the gas cylinders

? Adequate water supply

for washing, cooking

? Adequate drinking

water available (RO)

? Is cooking done by machines or by cook

Yes No

Yes No

Yes No

Yes No

Yes NoYes NoYes NoYes Nosafe/away from children or notYes

Nonmanual or mechanicalYes NoYes No

Number of toilets &
bathrooms for Children

? Flush is working

? Taps in the wash

basin are functioning

? Is the floor slippery

? Drains clean

? Drains are clogged

? Fittings for hanging

clothes/ towels in place

? Cob webs are removed

? Door has a latch

? Door has peep holes

? Frequency of bath a child is allowed

? Water is adequately available

? Adequate numbers of buckets and mugs

? Personal toiletries are provided

? Is washing powder or soap given

? Do children wash their own clothes

? Is there a washer man available

? Is the washing machine functional

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

once or more in a day

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

Yes No

Open space for outdoor activities

Class rooms

space for vocational training

Premises

? Does the home have a child friendly indoors?

Yes No

? How often is the sweeping, swabbing done?

Twice a day or more

? Are the children involved in cleaning exercise during class hours?

Yes No

? Are the facilities of coolers/ heaters available for children?

Yes No

? Are the doors and windows maintained properly?

Yes No

? Are the rooms and dormitories well ventilated?

Yes No

? Is there an alternate provision for lights and fans when there is no electricity available?

Yes No

? Are the outdoors clean, pleasant and child friendly?

Yes No

Clothing / Bedding/Lockers/ Toiletries provided to the children:

? Are the clothes provided as per size and season

Yes No

? Frequency of changing undergarments

Yes No

? New clothes are stitched or bought stitched or bought

? Are the mattresses given individually

Yes No

? Are pillows given individually

Yes No

? Are the mattress and pillows clean

Yes No

? Do children have separate cupboards

Yes No

? Are bed sheets and Khes available

Yes No

? Are blankets available in winters

Yes No

? Number of sets provided on arrival one/two/three/four

? Frequency of providing new clothes

Monthly/ Quarterly

? Are these sets of same color or different colors?

Same/different

? Are children provided with individual lockers to keep their personal items

Yes No

Other articles provided to the children:

.....

D. Services provided to the children:

? Medical facilities/ Maintenance of Health Cards:

.....

? Nutrition / Special Diet:

.....

? Provision of safe drinking water:

.....

? Daily Routine of Children:

Time

Activities / Schedule

Morning

Day Time

Afternoon

Evening

Late evening/ Night

? Education (Formal Education / NFE & Life Skill Training Programme) :

.....

.....

.....

? Computer/ Internet/ Phone

? Is the facility of Computer with
internet available?

Yes No

? Is the facility functional?

Yes No

? Are the children allowed to use
the facility?

Yes No

? Is the telephone for official
purposes only

Yes No

? Are the children allowed to use
telephone

fixed timing/ as and when required

? Is the number of Childline (1098)
displayed near the phone

Yes No

? Counseling/ Guidance services/special educator/physiotherapist, etc. provided :

.....

.....

.....

? Vocational training:

.....

? Recreational facilities:

.....

? Linkages developed with other agencies/ departments:

.....

? Implementation of track the missing child programme:

- Entries of children in track the missing child website:

.....

- User Id and password provided:

.....

? Other programmes and activities initiated:

.....

.....

E. Staff Details :

S.N.
Name
Designation
Date of Joining
Attendance at the time of visit
Remarks

1
2
3
4
5
6
7
8
9
10
11
12
13
14

F. Children's Committee /
Management Committee

? Formation of Children's Committee

:

{|

Yes

No

|-

| ? Age wise formation of Children's
Committee :

|

|-

| ? Frequency of Children's Committee
Meeting:

|-

|

|-

| ? Formation of Management Committee

:

|

Yes

No

|-

| ? Date of constitution of Management
Committee and frequency of meetings held :

|-

|

|-

| G. Record Maintenance :

|}

Staff attendance register

Children attendance register
Central admission register
Individual case file with individual care plan
Communication with CWC/JJB
Children's suggestion book
Children's suggestion box
Medical file / medical cards
Personal belongings register
Management Committee - minutes register
Children's Committee - minutes register
Nutrition / Diet File
Any other record maintained
Observations/ Remarks:

.....
Name of inspection Committee member:

Signature:

Name of inspection Committee member:

Signature:

Name of inspection Committee member:

Signature:

Name of inspection Committee member:

Signature:

Form-47

mez Kki (Age Memo)

(17 Is 19 o"kZ rd ds Juvenile in Conflict with Law ds lanHkZ esa Hkjk tk;sxk)

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1

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4-

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frfFk n'kkZ;k x;k gksA

5-

fu:) O;fDr ds laca/k esa lwpd n~okjk crk;h x;h mez tc fu:) O;fDr

viuh mez ugha tkurk gks

6-

fu:) djus okys inkf/kdkjh n~okjk vuqekfur mez tc fu:) O;fDr

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Form 48

Apprehension Memo

Police Station

.....

Date:

u/s

.....

FIR/GD:

1

Name of the Child In Conflict with

Law

2

Sex

M/F/Transgender

3

Category

SC/ST/OBC/General/PVTG

4

Name of the Parent/Guardian with

address and contact number

5

Present address of the child

6

Permanent address of the child

7

Place of apprehension

8

Time and date of apprehension

9

Name, address and contact number of
parent/ guardian to whom the information of apprehension was
given

10

Name, rank, number of the CWPO to
whom the charge of the child in conflict with law is handed
over/who is dealing with the case

11

Date and time of production before

JJB

12

Name, contact number of the
probation officer informed about the apprehension and the time
when PO was given the information

13

Medical examination

14

Custody

of the Child In Conflict Law before production of JJB:

(1)

Given to parent/guardian/fit person(2) Sent to Observation Home

(3) With CWPO/Police

15

Copy of

FIR/GD given to

- Parent/Guardian

- Probation Officer

{|

No

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| 16

| Reason for apprehension

|

|}

Note: Copy to be delivered to the family of the child in conflict with law with written acknowledgement (Parent/guardian are advised to bring a proof of juvenility (necessary documents)

Copy to be delivered to Probation Officer with written acknowledgement

Name and Signature of Apprehending Officer

Related AI tags, queries and research notes

Translation